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CyberEdge[®] Communications Platform

Your AIG Cyber Insurance policy includes access to the dynamic CyberEdge Communications Platform, powered by Cygnvs, which allows you to report a claim, initiate access to CyberEdge loss prevention services, and stay connected to expert industry news and product updates.

- The platform is an off-network collaboration resource designed for making the most of your cyber insurance policy and critical incident management.
- Finely-grained access controls empower you – the policyholder – to efficiently manage incident response, out-of-band communications, and document storage.

Why the CyberEdge Communications Platform?

- Off-network communication and document storage
- Easily report a claim
- Initiate access to CyberEdge loss prevention services
- Access anywhere at any time

Learn more about Cygnvs by visiting www.cygnvs.com.

AIG Cyber Insurance policyholders will receive an email directly from AIG (aigcyber@aig.com) inviting them to register for the platform and offering assistance with account set up.

For questions, please contact us:

AIG Cyber Risk Advisors
cyberlosscontrol@aig.com

Cygnvs:
onboarding@cygnvs.com

AIG may modify (by adding, removing or replacing a tool or service) or discontinue the Services at any time. AIG may partner with third party vendors to provide any or all Services. In some instances, AIG may have a referral fee structure in place, or an ownership interest, with certain third-party vendors. The Cygnvs Cyber Incident Management Platform is provided by Cygnvs, Inc. AIG disclaims any and all liability, including any express or implied warranties, in connection with the use of such platform.

American International Group, Inc. (AIG) is a leading global insurance organization. AIG member companies provide a wide range of property casualty insurance, life insurance, retirement solutions and other financial services to customers in approximately 70 countries and jurisdictions. These diverse offerings include products and services that help businesses and individuals protect their assets, manage risks and provide for retirement security. AIG common stock is listed on the New York Stock Exchange. Additional information about AIG can be found at www.aig.com | YouTube: www.youtube.com/aig | Twitter: @AIGinsurance www.twitter.com/AIGinsurance | LinkedIn: www.linkedin.com/company/aig. These references with additional information about AIG have been provided as a convenience, and the information contained on such websites is not incorporated by reference herein. AIG is the marketing name for the worldwide property-casualty, life and retirement and general insurance operations of American International Group, Inc. For additional information, please visit our website at www.aig.com. All products and services are written or provided by subsidiaries or affiliates of American International Group, Inc. Products or services may not be available in all countries, and coverage is subject to underwriting requirements and actual policy language. Non-insurance products and services may be provided by independent third parties. Certain property-casualty coverages may be provided by a surplus lines insurer. Surplus lines insurers do not generally participate in state guaranty funds, and insureds are therefore not protected by such funds.

AIG INSURANCE COMPANY OF CANADA

PRIVACY PRINCIPLES

AIG and Individual Privacy

We at AIG Insurance Company of Canada (referred to as "AIG", "we", "our", or "us") abide by these *Privacy Principles* and want you, our applicants, policyholders, insureds, claimants, and any other individuals who provide us with personal information (referred to as "Customers" or "you"), to be aware of how and why we handle personal information. We work hard to respect and maintain your privacy. However, the very nature of our business is such that the collection, use and disclosure of personal information are fundamental to the products and services we provide.

As a worldwide leader in the delivery of insurance products and other services, the member companies of American International Group, Inc. ("AIG Companies") offer numerous products and services to many types of consumers and clients in many different countries around the world. Therefore, differing AIG Companies may adopt differing privacy practices to fit their own jurisdiction and business requirements. The AIG Companies Privacy Policy, located at www.aig.com, may also be applicable to our Customers as we conduct our business.

For the purposes of these *Privacy Principles* personal information means information about an identified or identifiable individual. For example: an individual's name, birth date, address, age, health and financial information is personal information which AIG may collect, use and in certain circumstances, where necessary, disclose, in the course of providing insurance services and carrying on business.

1. Consent and Personal Information

AIG obtains consent for the collection, use, and disclosure of personal information, except where consent is not required by law. AIG does not obtain your consent for the collection, use and disclosure of business contact information. By applying for or purchasing AIG's products and services, you are providing your consent to our collection, use, and disclosure of your personal information as set out in these *Privacy Principles*. AIG relies on the broker's advice where the insurance broker tells AIG that we have a Customer's consent to collect information.

Consent may be obtained by AIG and its affiliated companies directly or through a broker or agent, an insurance adjuster, claims administrator, investigator, or lawyer when personal information is collected for claims purposes.

An individual may decline to consent, or revoke consent, to the collection and use of personal information for insurance purposes but in that case, insurance products and related services and the assessment of applications, claims or complaints may be limited or terminated.

2. Collecting Personal Information

We may collect information directly from the individual concerned on applications for insurance and through direct interactions with us, including via AIG websites, software applications made available by us for use on or through computers and mobile devices (the "Apps"), our social media pages set forth in the links in the footer on AIG.com and other means (for example, from

your application and claim forms, telephone calls, e-mails and other communications with us, as well as from claim investigators, medical professionals, witnesses or other third parties involved in our business dealings with you). We also collect information from various third-party sources such as: insurance brokers, adjusters, other insurance intermediaries, third party administrators, government, industry associations, and other entities that have information about you. For instance, we may obtain your driving record, claims history and/or credit history, where permitted by law, to assist us in underwriting your application for insurance. We and our service providers may supplement the personal information we collect with information from other sources, such as publicly available information from social media services, commercially available sources and information from our affiliates or business partners. This information from third parties is subject to the privacy policies under which the information was collected.

3. Using Personal Information

Personal information is typically collected and used by us for insurance purposes such as: assessing risk, processing applications for insurance coverage, establishing rates, administering insurance products, developing and improving insurance products and services and other services, including actuarial and pricing tools and risk engineering, risk management and loss prevention programs for our insurance clients, claim assessment, processing and settlement, and, where applicable, managing claim disputes. AIG also uses personal information to detect and prevent fraud, to detect, prevent, and respond to actual or suspected information security incidents, compile statistics, verify and provide information to insurance industry associations, report to regulatory or industry entities in accordance with laws and prudent insurance industry practices, and conduct market research. This may also include collecting and disclosing personal information about third parties with respect to claims made against AIG Customers. We may collect and use personal information for other purposes. We will notify you of such other purposes prior to the collection, and use of the personal information.

4. Use of Personal information for Marketing Purposes

AIG may collect and use personal information for marketing purposes, such as identifying and communicating with individuals who are most likely to find AIG products and services of interest. AIG may also disclose personal information to our affiliates to use for marketing purposes to offer you their products and services, which may be of interest to you. You may opt not to have us, or alternatively not to have our affiliates, collect, use or disclose personal information for marketing purposes in which case we and our affiliates will not use or disclose personal information for marketing purposes. Offers of upgraded or additional coverage, special offers and promotional mailings, and offers of additional products and services from our affiliates will not be sent by us or our affiliates. As an AIG customer, if you have not opted out of receiving marketing communications, you may receive marketing emails regarding AIG products and services. Each marketing email will include an unsubscribe mechanism, available for you at any time to remove your consent.

5. Accuracy of Your Personal Information

AIG maintains policies and procedures to ensure that the information we collect and use is accurate, up-to-date, and as complete as possible. However, we rely on individuals to disclose all material information to us and to inform us of any changes required. A request to access or correct your personal information in our possession may be made by contacting the Privacy Officer at the address set out below in the section titled *"Contacting the Privacy Officer,"* and by providing valid proof of your identity.

6. Safeguarding Your Information

We apply appropriate safeguards to our computer networks and physical files. We restrict access to personal information to those AIG employees and non-employee workers, independent third-party service providers or technology service providers (“Authorized Administrators”) reinsurers, consultants or insurance representatives who need to know that information in order to underwrite, adjudicate or administer insurance products and services.

7. Disclosure of Personal Information

Personal information is disclosed by us to both affiliated and unaffiliated insurance companies, reinsurers, insurance and reinsurance brokers and other intermediaries and agents, appointed representatives, distributors, financial institutions and insurance industry organizations at the time of assessing an application for insurance and any renewal, extension, variation or cancellation of any issued policy, as well as in the event of any claim, to the extent necessary for statistical purposes or to assess and rate a specific risk, determine the status of coverage, and to investigate, administer and provide updates regarding claims. We also share information to investigate allegations of fraud; to detect, prevent, and respond to actual and suspected information security incidents; where permitted or required by law; to protect and defend legal claims; and, at the request of government institutions in accordance with applicable law.

AIG may retain an affiliated company, a reinsurer, or an Authorized Administrator to perform on our behalf certain functions in support of the products and services we provide. Such functions could include the underwriting, offering or administering of AIG insurance products and services or any related claims. Accordingly, in certain instances these affiliates or third parties require your personal information to the extent that it is necessary in the performance of those specific reinsurance, underwriting, marketing, consulting, administrative, analytical, rehabilitative, claims, investigation, reporting or related services. AIG obligates these affiliates and third parties to use and take steps to protect personal information in accordance with the requirements of these *Privacy Principles*.

Some AIG affiliates and Authorized Administrators may be located outside of the province in which you reside or in another foreign jurisdiction outside of Canada. When this occurs, the collection, use and disclosure of personal information will be subject to the laws of the jurisdiction in which it is situated. By communicating personal information to us, applying for and/or acquiring the products and services of AIG, you hereby consent to the AIG affiliates or Authorized Administrators located outside of Canada accessing, processing or storing your personal information (as the case may be) and disclosing such personal information as required by the governing laws of that jurisdiction. If you would like to obtain more information about our use of Authorized Administrators or any other service providers located outside of Canada, please contact the Privacy Officer at the address set out below in the section titled “*Contacting the Privacy Officer*”.

AIG may transfer your personal information as an asset in connection with any contemplated or actual sale, merger or other disposal of all or part of our business or assets, or as part of a corporate reorganization or other change in corporate control, including for the purposes of determining whether to proceed with such a transaction or fulfilling any records or other reporting requirements to such parties. In such circumstances, we will ensure that any transfer of personal information is handled by us in accordance with applicable law using appropriate data protection and security measures.

8. Retention and Access to Your Personal Information

We retain personal information for the purposes described in these *Privacy Principles* but only for so long as is necessary to achieve the purpose(s) for which the personal information was collected and as required by law. Personal information is stored at one of our offices in Canada, or at a location of one of our affiliates or Authorized Administrators in the United States or another foreign country, as defined under Section 7 - *"Disclosure of Personal Information"* above. Access to your personal information is limited to our employees and non-employee workers, agents, insurance intermediaries, reinsurers, and Authorized Administrators who need access in order to perform their job or provide services.

In addition, as financial services institution, we are required to comply with regulated minimum retention periods for personal information. We will provide you with further information, if applicable, to inform you of how we collect and use your personal information.

For Example:

- If we retain personal information to comply with a regulatory requirement, we will keep the information for as long as required to comply with that obligation.
- If we retain personal information in order to provide a product or service (e.g insurance policy issuance or claims handling), we will keep the information for as long as the product or service is provided, and for a certain time period following expiry of the policy and the handling of any related claim.

The number of years varies depending on the nature of the product or service provided. For certain insurance policies it may be necessary to keep the personal information for several years after the expiry of the policy. Among other reasons, we retain the information in order to respond to any queries or concerns that may be raised at a later date with respect to the policy or the handling of a claim.

For further information about the period of time for which we retain your personal information, please contact the Privacy Officer at the address set out below in the section titled *"Contacting the Privacy Officer"*

A request to access information in our possession may be made by contacting the Privacy Officer at the address set out below in the section titled *"Contacting the Privacy Officer"*. The right to access information is not absolute. Therefore, AIG may decline access to personal information about you that we have under our control, subject to any legal restrictions. Such instances of refusal may include but are not limited to the following:

- the information is subject to solicitor/client privilege;
- the information would reveal personal information about a third party;
- the information could compromise the investigation of a claim; or
- the information is confidential commercial information.

We may charge a reasonable fee in advance for copying and sending information you have requested and to which you have a right of access.

You may also request that we correct inaccurate personal information about you by contacting the Privacy Officer. The right to access information is not absolute. Therefore, AIG may decline

to modify personal information that we have about you under our control under certain circumstances, subject to any legal restrictions (for example, if we have evidence to support the fact that the personal information is accurate).

9. Contacting the Privacy Officer

Requests for further information about our privacy policies and practices, personal information access or correction, or any concerns about how we handle your information with AIG should be referred to our Privacy Officer, as follows:

Privacy Officer
Mail: AIG Insurance Company of Canada
120 Bremner Blvd.
Suite 2200
Toronto, ON
Canada M5J 0A8
Email: AIGCanadaComplaints@aig.com
Toll-free phone: 1-800-387-4481

10. Internet Privacy Practices

We may collect your personal information through AIG websites or mobile applications. All personal information collected through our websites and mobile applications are subject to these *Privacy Principles*.

We may collect other personal information ("**Other Information**") through our websites or mobile applications that may or may not reveal your specific identity. Other Information includes but is not limited to:

- browser information and settings;
- computer or mobile device information (such as device IDs)
- information collected through cookies, pixel tags, and other technologies;
- demographic information and other similar information provided by you;
- information about your physical location; and
- aggregated information.

We and our third party service providers may collect Other Information in a variety of ways, including, but not limited to, the following:

- **Through your internet browser:** Certain information is collected by us through your internet browser by most websites, such as your IP address (that is, your computer's address on the internet), screen resolution, operating system type (e.g., Windows or Mac OS) and version, internet browser type and version, time of the visit and the page or pages visited. We use this information for purposes such as calculating our website usage levels, helping diagnose server problems, and administering our website.
- **Using cookies:** Cookies are pieces of information stored directly on the computer you are using. Cookies allow us to recognize your computer and to collect information such as internet browser type, time spent on our website, pages visited, and language preferences. We may use the information for security purposes, to facilitate navigation, to display information more effectively, to personalize your experience while visiting our

website, or to gather statistical information about the usage of our website. Cookies further allow us to present to you the advertisements or offers that are most likely to appeal to you. We may also use cookies to track your responses to our advertisements and we may use cookies or other files to track your use of other websites.

- **From you:** Some information (for example, your location or preferred means of communication) is collected when you voluntarily provide it. Unless combined with personal information, this information may not identify you personally.
- **Using your physical location:** We may collect the physical location of your device by, for example, using satellite GPS, cell phone tower or WiFi signals. We may use your device's physical location to provide you with personalized location-based services and content, for example, to provide location based reminders or offers when using applications. We may also share your device's physical location, combined with information about what advertisements you viewed and other information we collect, with our marketing partners to enable them to provide you with more personalized content on our behalf and to study the effectiveness of advertising campaigns. In some instances, you may be permitted to allow or deny such uses and/or sharing of your device's location, but if you choose to deny such uses and/or sharing, we and/or our marketing partners may not be able to provide you with the applicable personalized services and content. In addition, we may obtain the precise geolocation of your device when you use our mobile applications for purposes of providing travel or other assistance services to our clients who are enrolled in such services. In connection with providing travel or other assistance services, we may share your device's precise geolocation information with our clients and other entities with whom we work. You may opt-out of our collection and sharing of precise geolocation information by deleting the mobile application from your device, by disallowing the mobile application to access location services through the permission system used by your device's operating system, or by following any additional opt-out instructions provided in the privacy notice available within the mobile application.
- **By aggregating information:** We may share non-personally identifiable information collected from you and/or from your use of our Apps with our third party service providers in an anonymous and aggregated form for data analytics and to ensure you receive a better consumer experience, in order to improve and modify our products and services.

Please note that we may use and disclose Other Information for any purpose, except where we are required to do otherwise under applicable law. If we are required to treat Other Information as personal information under applicable law, then, in addition to the uses listed in this *"Website Privacy Practices"* section, we may use and disclose Other Information for all the purposes for which we use and disclose personal information.

11. Third Party Websites

These *Privacy Principles* do not address, and we are not responsible for, the privacy, information or other practices of any third parties, including any third party operating any website to which our website contains a link. The inclusion of a link on our website does not imply endorsement of the linked site by us or by our group companies.

12. Use of Site by Minors

Our website is not directed to individuals under the age of 18, and we request that these individuals do not provide personal information through our website.

13. Access Requests and Automated Decision Making

- You may submit a request to be informed of the types of personnel who may have access to your personal information within AIG.
- You may request that AIG cease disseminating your personal information or de-index any hyperlink attached to your name if the dissemination of the information contravenes the law or a court order. Under certain conditions prescribed by law, you may request AIG re-index the hyperlink to provide access to your personal information.
- As part of our business operations, we may render a decision based exclusively on an automated processing of your personal information. These decisions are made using automated computer software and systems without independent human judgment so that we may determine the type of product or services we are able to offer you.
When automated decision making is used, we will provide you with more information prior to or at the time we intend to make the decision. You have the right to submit questions, comments, or complaints to the Privacy Officer at the address set out above in the section titled "Contacting the Privacy Officer".

14. Changes to these Privacy Principles

AIG Canada reserves the right to modify these *Privacy Principles* from time to time. If these *Privacy Principles* change materially, we will take reasonable measures to notify you, including posting a copy of the revised *Privacy Principles* to our website. Accordingly, we recommend that you review our current *Privacy Principles* from time to time at Aig.ca.

LA COMPAGNIE D'ASSURANCE AIG DU CANADA

PRINCIPES DE PROTECTION DES RENSEIGNEMENTS PERSONNELS

AIG et la protection des renseignements personnels

Nous, chez La Compagnie d'assurance AIG du Canada (désignée sous le nom d'« AIG », « nous », « notre » ou « nos »), nous conformons aux présents *Principes de protection des renseignements personnels* et nous voulons que nos proposant, nos titulaires de polices, nos assurés, nos demandeurs et toute autre personne nous ayant fourni des renseignements personnels (désignés sous le nom de « Clients » ou « vous »), soient au courant non seulement de la façon dont nous traitons les renseignements personnels, mais aussi des raisons pour lesquelles nous recueillons lesdits renseignements. Nous consacrons beaucoup d'efforts au respect et au maintien de la confidentialité de vos renseignements personnels. Cependant, en raison de la nature même de notre entreprise, le processus de cueillette, d'utilisation et de divulgation de renseignements personnels est fondamental aux produits et services que nous fournissons.

Nous sommes un chef de file mondial dans la fourniture de produits d'assurance et autres services et, à ce titre, les compagnies membres de l'American International Group, Inc. (les « sociétés AIG ») offrent de nombreux produits et services à plusieurs types de consommateurs et clients dans différents pays partout dans le monde. En conséquence, les différentes sociétés AIG peuvent adopter différentes pratiques en matière de protection des renseignements personnels pour s'adapter à leur propre juridiction et aux exigences de leurs entreprises. Les *Principes de protection des renseignements personnels* des sociétés AIG, disponibles sur notre site, www.aig.com, peuvent également s'appliquer à nos Clients dans l'exercice de nos activités d'entreprise.

Pour les fins des présents *Principes de protection des renseignements personnels*, l'expression « renseignements personnels » signifie des renseignements concernant une personne identifiée ou identifiable. Par exemple, le nom d'un particulier, sa date de naissance, son adresse, son âge, son état de santé et ses renseignements financiers constituent des renseignements personnels qu'AIG peut recueillir, utiliser et dans certaines circonstances, si nécessaire, divulguer, dans le cadre de la fourniture de services d'assurance et dans le cours normal de ses affaires.

1. Consentement et renseignements personnels

AIG obtient le consentement pour la cueillette, l'utilisation et la divulgation de renseignements personnels, sauf dans les cas où le consentement n'est pas requis par la loi. Par exemple, AIG n'obtient pas votre consentement pour la cueillette, l'utilisation et la divulgation de vos coordonnées d'affaires. En présentant une proposition ou en faisant l'acquisition de produits et services d'AIG, vous nous donnez votre consentement à la cueillette, à l'utilisation et à la divulgation de vos renseignements personnels, tel que décrit aux présents *Principes de protection des renseignements personnels*. AIG se fie à l'avis du courtier lorsque le courtier d'assurance indique à AIG que le Client nous a donné son consentement pour la cueillette des renseignements.

Le consentement peut être obtenu par AIG et par ses sociétés affiliées directement ou par l'entremise du courtier ou mandataire, d'un expert en sinistres, d'un rédacteur sinistre, d'un enquêteur ou d'un avocat, lorsque les renseignements personnels sont recueillis aux fins d'une réclamation.

Un particulier peut refuser de consentir à la cueillette et à l'utilisation de renseignements personnels à des fins d'assurance ou retirer son consentement, mais dans de tels cas, les produits d'assurance et les services connexes, ainsi que l'étude des propositions, des réclamations ou des plaintes peuvent être limités ou terminés.

2. La cueillette des renseignements personnels

Nous pourrions recueillir les renseignements directement du particulier concerné, sur les propositions d'assurance et par l'entremise d'interactions directes avec nous, y compris par l'entremise de sites Web d'AIG, d'applications logicielles que nous mettons à votre disposition à des fins d'utilisation sur des ordinateurs et des appareils mobiles (les « applications »), de nos pages de médias sociaux dont les liens figurent dans le pied de page du site AIG.com et par l'entremise de tout autre moyen (comme par exemple, dans le cadre de votre proposition d'assurance ou de vos formulaires de demande d'indemnisation, de vos appels téléphoniques, de vos courriels et autres communications avec nous, ainsi que par l'entremise des enquêteurs, des professionnels de la santé, des témoins ou d'autres tiers avec qui nous transigeons pour faire affaires avec vous). Nous recueillons également des renseignements de diverses autres sources, tels les courtiers d'assurance, les experts en sinistres ou autres intermédiaires, les tiers administrateurs, le gouvernement, les associations de l'industrie et autres entités qui détiennent des renseignements à propos de vous. Par exemple, lorsque cela est permis par la loi et afin de nous aider dans la souscription de votre proposition d'assurance, nous pouvons obtenir votre dossier de conduite, l'historique de vos réclamations et vos antécédents en matière de crédit. Nous, et nos fournisseurs de services pouvons compléter les renseignements personnels que nous recueillons avec des renseignements provenant d'autres sources, tels que les renseignements accessibles au public des services de médias sociaux, des sources commerciales disponibles et des renseignements provenant de nos filiales ou partenaires commerciaux. Lesdits renseignements provenant de tierces parties sont assujettis aux politiques de protection de la vie privée en vertu desquelles les renseignements ont été recueillis.

3. L'utilisation des renseignements personnels

En règle générale, nous recueillons et utilisons les renseignements personnels à des fins d'assurance, telles que : l'évaluation des risques, le traitement des propositions d'assurance, la tarification, l'administration des produits d'assurance, l'élaboration et l'amélioration des produits et services d'assurance et autres services, y compris les outils actuariels et de fixation des prix et les programmes d'ingénierie des risques, de gestion des risques et de prévention des sinistres pour nos clients, l'évaluation, le traitement et le règlement des réclamations, et, le cas échéant, la gestion des litiges liés aux réclamations. AIG utilise également les renseignements personnels afin de détecter et de prévenir la fraude, pour détecter, prévenir et répondre aux incidents réels ou soupçonnés en matière de sécurité des informations, de compiler des statistiques, de vérifier et de fournir des renseignements aux associations de l'industrie de l'assurance, de faire rapport aux entités de réglementation ou aux entités de l'industrie conformément aux lois et aux pratiques de prudence de l'industrie de l'assurance, et pour effectuer des études de marché. Cela peut également inclure la cueillette et la divulgation de renseignements personnels

à propos de tierces parties relativement à des réclamations présentées contre des Clients d'AIG. Il se peut que AIG recueille et utilise des renseignements personnels à d'autres fins, auquel cas nous vous informerons de ces autres fins avant la cueillette et l'utilisation des renseignements personnels.

4. L'utilisation des renseignements personnels à des fins de commercialisation

AIG peut recueillir et utiliser des renseignements personnels à des fins de commercialisation, telles que l'identification des particuliers qui sont les plus susceptibles de porter un intérêt aux produits et services d'AIG et la communication avec ces derniers. AIG peut aussi divulguer des renseignements personnels à ses filiales qui les utiliseront à des fins de commercialisation, pour vous offrir certains de leurs produits et services qui pourraient vous intéresser. Vous pouvez choisir de ne pas nous permettre ou, dans l'alternative, de ne pas permettre à nos filiales de recueillir, d'utiliser ou de divulguer des renseignements personnels à des fins de commercialisation, et dans ce cas, nous, ainsi que nos filiales n'utiliserons ni ne divulguons les renseignements personnels à des fins de commercialisation. Ni nous, ni nos filiales, ne vous enverrons d'offres de garanties améliorées ou complémentaires, d'offres spéciales ou d'offres promotionnelles par publipostage, ni d'offres de produits et services supplémentaires de nos filiales. En tant que Client d'AIG, si vous n'avez pas choisi de recevoir des communications commerciales, vous pourriez recevoir des courriels promotionnels concernant des produits et des services offerts par AIG. Vous trouverez une option de désabonnement au bas de chacun de nos courriels, laquelle vous permet de révoquer votre consentement en tout temps.

5. Exactitude de vos renseignements personnels

AIG maintient des politiques et procédures afin de s'assurer que les renseignements que nous recueillons et utilisons soient exacts, à jour, et aussi complets que possible. Cependant, nous nous fions aux particuliers pour qu'ils nous dévoilent tous les renseignements significatifs et nous informent de toute modification nécessaire. Une demande d'accès à, ou de correction de vos renseignements personnels en notre possession peut être présentée en communiquant avec le Responsable de la protection des renseignements personnels à l'adresse indiquée ci-après à la rubrique « *Communiquer avec le Responsable de la protection des renseignements personnels* » et en nous fournissant une preuve valable de votre identité.

6. La protection de vos renseignements personnels

Nous appliquons les dispositifs de sécurité appropriés à nos réseaux informatiques et à nos dossiers physiques et nous limitons l'accès aux renseignements personnels aux employés d'AIG, et aux employés sous contrat avec AIG, à des prestataires de services tiers indépendants ou à des fournisseurs de services technologiques (« administrateur(s) autorisé(s) »), aux réassureurs, aux conseillers ou aux conseillers d'assurance qui ont besoin desdits renseignements pour leur permettre de souscrire ou d'administrer des produits et des services d'assurance ou de statuer sur une réclamation.

7. Divulcation de renseignements personnels

Les renseignements personnels sont divulgués, tant avec les compagnies d'assurance affiliées qu'indépendantes, qu'avec les réassureurs, les courtiers en assurance et en réassurance et autres intermédiaires et mandataires, les distributeurs et représentants nommés, les institutions financières et les organisations de l'industrie de l'assurance au moment d'évaluer

une proposition d'assurance et tout renouvellement, toute prolongation, toute modification ou toute résiliation d'un contrat déjà établi, ainsi que dans l'éventualité d'une réclamation, dans la mesure nécessaire aux fins des statistiques ou de l'évaluation et de la tarification d'un risque particulier, de la détermination du statut de l'assurance, et de l'étude, de l'administration et de la fourniture de mises à jour concernant les réclamations. Nous divulguons également des renseignements afin d'enquêter en cas d'allégation de fraude, pour détecter, prévenir et répondre aux incidents réels ou soupçonnés en matière de sécurité des informations, là où la loi l'autorise ou l'exige ou encore, à la demande d'institutions gouvernementales conformément à la loi applicable.

AIG peut retenir les services d'une compagnie affiliée, d'un réassureur ou d'un administrateur autorisé pour accomplir certaines fonctions en notre nom à l'appui des produits et services que nous offrons. Ces fonctions pourraient inclure la souscription, l'offre ou l'administration des produits et services d'assurance d'AIG ou de toute réclamation connexe. En conséquence, dans certains cas, ces compagnies affiliées ou tiers demandent vos renseignements personnels dans la mesure nécessaire pour la prestation de ces services spécifiques de réassurance, de souscription, de commercialisation, de consultation, d'administration, d'analyse, de réadaptation, de réclamations, d'investigation, de rapport ou de tout autre service connexe. AIG oblige ces compagnies affiliées et ces tiers à utiliser et à prendre des mesures afin de protéger les renseignements personnels conformément aux exigences des présents *Principes de protection des renseignements personnels*.

Certaines compagnies affiliées de même que certains administrateurs autorisés peuvent se trouver hors de la province dans laquelle vous résidez ou dans une autre juridiction étrangère à l'extérieur du Canada. Dans ce cas, la cueillette, l'utilisation et la divulgation de renseignements personnels seront assujetties aux lois de la juridiction en question. En nous communiquant des renseignements personnels, en présentant une proposition ou en souscrivant des produits et des services d'AIG, vous consentez par les présentes à ce que les compagnies affiliées d'AIG ou les administrateurs autorisés se trouvant à l'extérieur du Canada accèdent à vos renseignements personnels, les traitent ou les conservent (selon le cas) et les divulguent tel que requis par les lois applicables à leur juridiction. Si vous souhaitez obtenir de plus amples renseignements sur notre utilisation des administrateurs autorisés ou de tout autre fournisseur de services situé à l'extérieur du Canada, veuillez communiquer avec l'agent de la protection des renseignements personnels à l'adresse ci-dessous, dans la section intitulée « *Communiquer avec l'agent de protection de la vie privée* ».

AIG pourrait transférer vos renseignements personnels en tant qu'actif dans le cadre de toute vente, de toute fusion ou de toute autre disposition, envisagée ou en cours, de la totalité ou d'une partie de notre clientèle ou de nos biens, ou encore dans le cadre d'une réorganisation de l'entreprise ou de tout autre changement associé au contrôle de l'entreprise, dans le but de déterminer si l'on doit conclure ladite transaction avec les parties en question ou donner suite à toute exigence de leur part en matière de dossiers ou d'autres déclarations. En pareil cas, nous veillerons à ce que le transfert de renseignements personnels soit conforme aux lois en vigueur et nous adopterons des protocoles appropriés de protection et de sécurité des données.

8. Conservation et accès à vos renseignements personnels

Nous conservons vos renseignements personnels aux fins décrites aux présents *Principes de protection des renseignements personnels*, mais seulement pour la période nécessaire pour atteindre le ou les objectifs pour lesquels les renseignements personnels ont été recueillis

conformément à la loi applicable. Les renseignements personnels sont stockés à l'un de nos bureaux au Canada ou à l'emplacement de l'une de nos sociétés affiliées ou administrateurs autorisés aux États-Unis ou dans un autre pays, tel que défini aux termes de la rubrique 7 « *Divulgarion de renseignements personnels* » précédente. L'accès à vos renseignements personnels est limité à nos employés, employés sous contrat, mandataires, intermédiaires d'assurance, réassureurs, administrateurs autorisés qui ont besoin d'y accéder afin d'effectuer leur travail ou de nous fournir des services.

De plus, en tant qu'institution de services financiers, nous sommes tenus de respecter les périodes minimales de conservation réglementées des informations personnelles. Nous vous fournirons des informations supplémentaires, le cas échéant, pour vous informer de la manière dont nous collectons et utilisons vos informations personnelles.

Par exemple:

- Si nous conservons des informations personnelles pour nous conformer à une exigence réglementaire, nous conserverons ces informations aussi longtemps que nécessaire pour nous conformer à cette obligation.
- Si nous conservons des informations personnelles afin de fournir un produit ou un service (par exemple, l'émission d'une police d'assurance ou le traitement des réclamations), nous conserverons ces informations aussi longtemps que le produit ou le service est fourni, et pendant une certaine période après l'expiration de la période de validité de la police et le traitement de toute réclamation connexe.

Le nombre d'années varie selon la nature du produit ou du service fourni. Pour certains contrats d'assurance, il peut être nécessaire de conserver les informations personnelles pendant plusieurs années après l'expiration du contrat. Entre autres raisons, nous conservons les informations afin de répondre à toute question ou préoccupation qui pourrait être soulevée ultérieurement concernant la police ou le traitement d'une réclamation.

Pour plus d'informations sur la période pendant laquelle nous conservons vos informations personnelles, veuillez contacter le responsable de la confidentialité à l'adresse indiquée ci-dessous dans la section intitulée « *Communiquer avec le Responsable de la protection des renseignements personnels* ».

Une demande d'accès aux renseignements en notre possession peut être présentée en communiquant avec le Responsable de la protection des renseignements personnels à l'adresse indiquée ci-après à la rubrique « *Communiquer avec le Responsable de la protection des renseignements personnels* ». Le droit d'accès aux renseignements n'est pas absolu. Par conséquent, AIG peut refuser une demande d'accès si les renseignements personnels à votre sujet qui sont sous notre contrôle font l'objet de restrictions juridiques. De telles situations de refus peuvent inclure mais ne sont pas limitées à :

- des renseignements qui sont assujettis à un privilège avocat/client;
- des renseignements qui révéleraient des renseignements personnels au sujet d'une tierce partie;
- des renseignements qui pourraient compromettre l'étude d'une réclamation; ou
- des renseignements confidentiels de nature commerciale.

Nous pouvons vous facturer à l'avance des frais raisonnables pour copier et transmettre les renseignements que vous avez demandés et auxquels vous avez un droit d'accès.

Vous pouvez également nous demander de corriger des renseignements personnels inexacts vous concernant en contactant le responsable de la protection des renseignements personnels. Le droit d'accès aux informations n'est pas absolu. Par conséquent, AIG peut refuser de modifier les renseignements personnels que nous détenons à votre sujet sous notre contrôle dans certaines circonstances, sous réserve de toute restriction légale (par exemple, si nous avons des preuves pour étayer le fait que les informations personnelles sont exactes).

9. Communiquer avec le Responsable de la protection des renseignements personnels

Les demandes de renseignements supplémentaires, les demandes d'accès aux renseignements personnels ou les questions portant sur nos politiques et procédures et la façon dont nous traitons vos renseignements chez AIG devraient être adressées à notre Responsable de la protection des renseignements personnels comme suit :

Responsable de la protection des renseignements personnels
Poste : La Compagnie d'assurance AIG du Canada
120 Bremner Blvd.
Bureau 2200
Toronto, Ontario
Canada M5J 0A8
Courriel : AIGCanadaComplaints@aig.com
Sans frais : 1-800-387-4481.

10. Principes de protection des renseignements personnels liés à l'Internet

Nous pourrions recueillir des renseignements personnels à votre sujet par l'entremise de sites Web ou d'applications pour appareils mobiles d'AIG. Tous les renseignements personnels recueillis par l'entremise de nos sites Web et de nos applications pour appareils mobiles sont assujettis aux présents *Principes de protection des renseignements personnels*.

Nous pourrions recueillir d'autres renseignements personnels (« **autres renseignements** ») qui pourraient ou ne pourraient pas dévoiler l'identité du particulier par l'entremise de nos sites Web ou de nos applications pour appareils mobiles. Les autres renseignements englobent sans s'y limiter :

- les renseignements recueillis au moyen du navigateur Web et paramètres;
- des renseignements recueillis de l'ordinateur ou de l'appareil mobile (telles que les identifiants de l'appareil)
- les renseignements recueillis par l'entremise de fichiers témoins, de balises Web (pixels invisibles) et d'autres technologies;
- les renseignements démographiques et autres renseignements semblables que vous nous avez fournis;
- les renseignements sur votre emplacement physique; et
- le cumul des renseignements.

Nous et nos fournisseurs de services de tierce partie pourrions recueillir d'autres renseignements par divers moyens, dont les suivants mais pas nécessairement limités aux suivants :

- **Par l'entremise de votre navigateur Internet** : La plupart des sites Internet recueillent certains renseignements par l'entremise de votre navigateur Internet, notamment votre adresse IP (c'est-à-dire, l'adresse Internet de votre ordinateur), la résolution de votre écran, le type de votre système d'exploitation (par exemple, Windows ou Mac OS) et sa version, le type et la version de votre navigateur Internet, l'heure de votre visite, ainsi que la ou les pages consultées. Nous utilisons ces renseignements pour calculer les niveaux d'utilisation de notre site Internet, pour nous aider à diagnostiquer les problèmes de serveur et pour gérer notre site Internet.
- **Utilisation de cookies** : Les cookies sont des données stockées directement sur l'ordinateur que vous utilisez. Les cookies nous permettent de reconnaître votre ordinateur et de recueillir certains renseignements, notamment le type de navigateur que vous utilisez, le temps passé sur notre site Internet, les pages consultées et les préférences linguistiques. Nous pourrions utiliser ces renseignements à des fins de sécurité, pour faciliter la navigation, afficher des renseignements de façon plus efficace, personnaliser votre expérience pendant que vous visitez notre site Internet ou encore pour recueillir des renseignements sur l'utilisation de notre site à des fins de statistiques. Les cookies nous permettent également de vous présenter des messages publicitaires ou des offres qui sont les plus susceptibles de vous intéresser. Nous pourrions aussi utiliser des cookies pour effectuer un suivi de vos réponses à nos publicités, et nous pourrions nous servir des cookies ou d'autres fichiers pour nous enquérir de votre fréquentation d'autres sites Internet.
- **Renseignements de votre part** : Certains renseignements (par exemple, votre emplacement ou votre méthode de communication préférée) sont recueillis lorsque vous nous les fournissez de plein gré. Sauf dans les cas où ils sont jumelés à des renseignements personnels, ces renseignements pourraient ne pas vous identifier spécifiquement.
- **Utilisation de votre emplacement personnel** : Nous pourrions recueillir des renseignements relatifs à votre emplacement, notamment à l'aide de signaux par satellite GPS, par tour de transmission cellulaire ou par WiFi. Nous pourrions utiliser l'emplacement physique de votre appareil pour vous offrir des services et du contenu personnalisés en fonction de votre emplacement, notamment pour vous transmettre des rappels liés à l'emplacement ou des offres lorsque vous utilisez des applications. Nous pourrions également divulguer l'emplacement physique de votre appareil, ainsi que des renseignements sur les publicités visionnées qui, jumelés aux autres renseignements que nous recueillons conjointement avec nos partenaires de commercialisation, leur permettent de vous fournir de notre part du contenu plus personnalisé et d'évaluer l'efficacité de nos campagnes publicitaires. Dans certains cas, vous pourriez avoir le choix de permettre ou de refuser de telles utilisations et la divulgation de l'emplacement de votre appareil, mais si vous refusez de consentir à de telles utilisations et divulgations, nos partenaires de commercialisation et nous pourrions être incapables de vous fournir les services et le contenu personnalisés en question. En outre, nous pourrions obtenir la géolocalisation précise de votre appareil lorsque vous utilisez nos applications pour appareils mobiles, et ce, afin de fournir des services d'assistance voyage ou autres à ceux de nos clients qui souscrivent à de tels services. Dans le cadre de la prestation de services d'assistance voyage ou autres, nous pourrions divulguer les renseignements liés à la géolocalisation précise de votre appareil à nos clients et à d'autres entités avec qui nous travaillons. Vous pouvez refuser de consentir à la

cueillette et la divulgation de renseignements liés à la géolocalisation précise en supprimant l'application de votre appareil mobile, en refusant de permettre à l'application pour appareil mobile d'accéder aux services de localisation à l'aide du système d'autorisation qu'utilise le système d'exploitation de votre appareil ou en suivant toutes directives supplémentaires de retrait figurant à l'avis de protection de la vie privée qui est affiché dans l'application pour appareils mobiles.

- **Cumul des renseignements** : Nous pourrions divulguer à nos fournisseurs de services de tierce partie des renseignements qui n'identifient aucune personne en particulier et que nous avons recueillis auprès de vous et/ou par votre utilisation de nos applications, dans un format cumulé et anonyme propice à l'usage et l'analyse de données et pour faire en sorte de vous offrir une meilleure expérience client, tout en nous permettant d'apporter des améliorations et des modifications à nos produits et services.

Veuillez noter que nous pourrions utiliser et divulguer d'autres renseignements à toute autre fin, sauf lorsque nous sommes tenus d'agir autrement en vertu des lois applicables. Si nous sommes dans l'obligation de traiter d'autres renseignements à titre de renseignements personnels en vertu des lois applicables, alors, en plus des utilisations énumérées à la présente rubrique « *Principes de protection des renseignements personnels à l'égard de l'Internet* », nous pourrions utiliser et divulguer d'autres renseignements à toutes les fins auxquelles nous utilisons et divulguons lesdits renseignements personnels.

11. Sites Internet de tierces parties

Les présents *Principes de protection des renseignements personnels* n'abordent pas les pratiques de confidentialité et de protection des renseignements personnels ou toute autre pratique à cet égard adoptée par de tierces parties, y compris toute tierce partie exploitant tout site Internet visé par un lien figurant sur notre site Internet, et nous n'assumons aucune responsabilité à ce chapitre. L'affichage d'un lien sur notre site Internet ne signifie aucunement que nous approuvons le site visé par ledit lien figurant à notre site Internet ou à celui d'autres sociétés membres de notre groupe.

12. Utilisation du site par des mineurs

Notre site Internet n'est pas destiné à des personnes âgées de moins de 18 ans et nous demandons à ces personnes de ne fournir aucun renseignement personnel par l'entremise de notre site Internet.

13. Demandes d'accès et prise de décision automatisée

- Vous pouvez soumettre une demande pour être informé des types de personnel qui peuvent avoir accès à vos informations personnelles au sein d'AIG.
- Vous pouvez demander à AIG de cesser de diffuser vos informations personnelles ou de désindexer tout lien hypertexte attaché à votre nom si la diffusion de ces informations contrevient à la loi ou à une ordonnance d'un tribunal. Sous certaines conditions prescrites par la loi, vous pouvez demander à AIG de réindexer l'hyperlien pour donner accès à vos informations personnelles.
- Dans le cadre de nos opérations commerciales, nous pouvons prendre une décision basée exclusivement sur un traitement automatisé de vos informations personnelles. Ces décisions sont prises à l'aide de logiciels et de systèmes informatiques automatisés sans jugement humain indépendant afin que nous puissions déterminer le type de produit ou de services que nous sommes en mesure de vous offrir.

Lorsque la prise de décision automatisée est utilisée, nous vous fournirons plus d'informations avant ou au moment où nous avons l'intention de prendre la décision. Vous avez le droit de soumettre des questions, des commentaires ou des plaintes au Responsable de la protection des renseignements personnels à l'adresse indiquée ci-dessus dans la section intitulée « Contacter le responsable de la confidentialité ».

14. Modifications apportées aux présents Principes de protection des renseignements personnels

AIG Canada se réserve le droit d'apporter, de temps à autre, des modifications aux présents *Principes de protection des renseignements personnels*. Si lesdits *Principes de protection des renseignements personnels* sont modifiés de façon importante, nous prendrons des mesures raisonnables pour vous en aviser en affichant notamment une version à jour des *Principes de protection des renseignements personnels* sur notre site Internet. Nous vous recommandons donc de passer en revue notre version la plus récente des *Principes de protection des renseignements personnels* de temps à autre en accédant à Aig.ca.



Canadian Head Office
120 Bremner Boulevard Suite 2200
Toronto, ON M5J 0A8

AIG Insurance Company of Canada
(herein called the Insurer)

Specialty Risk Protector®

POLICY NUMBER: 01-601-30-99

REPLACEMENT OF POLICY NUMBER: 01-334-24-21

DECLARATIONS

NOTICES

THIS POLICY CONTAINS A CLAUSE OR CLAUSES WHICH MAY LIMIT THE AMOUNT PAYABLE. THIS POLICY CONTAINS ONE OR MORE COVERAGE SECTIONS. CERTAIN COVERAGE SECTIONS ARE LIMITED TO LIABILITY FOR CLAIMS THAT ARE FIRST MADE AGAINST THE INSURED DURING THE POLICY PERIOD AND REPORTED IN WRITING TO THE INSURER AS REQUIRED BY THE TERMS OF THE POLICY. DEFENSE COSTS SHALL REDUCE THE APPLICABLE LIMITS OF LIABILITY AND SUBLIMITS OF LIABILITY AND ARE SUBJECT TO APPLICABLE RETENTIONS.

PLEASE READ THIS POLICY CAREFULLY AND REVIEW IT WITH YOUR INSURANCE AGENT OR BROKER.

ITEMS

1	NAMED ENTITY	Named Entity	WORKPLACE SAFETY & INSURANCE BOARD, THE			
		Mailing Address	200 FRONT ST W SUITE 101 TORONTO, ON M5V -3J1			
2	POLICY PERIOD	Inception Date	July 1, 2025	Expiration Date	July 1, 2026	
		12:01 A.M. at the address stated in Item 1				
3	PREMIUM	\$165,000				
4	NAME AND ADDRESS OF INSURER					
	AIG Insurance Company of Canada 120 Bremner Boulevard Suite 2200 Toronto, ON M5J 0A8					
	This Policy is issued only by the insurance company indicated in this Item 4.					
5	LIMIT OF LIABILITY	\$5,000,000				
6	COVERAGE SUMMARY					
	COVERAGE SECTION		SUBLIMIT OF LIABILITY	RETENTION	RETROACTIVE DATE	CONTINUITY DATE
	MC	Media Content Insurance	\$5,000,000	\$500,000	July 1, 2018	July 1, 2018

1617490

	S&P	Security and Privacy Liability Insurance	\$5,000,000	\$500,000	Full Prior Acts	July 1, 2016
		Regulatory Action Sublimit of Liability	\$5,000,000			
	NI	Network Interruption Insurance	\$5,000,000	\$500,000	Not Applicable	Not Applicable
		Waiting Hours Period	12 hours			
	EM	Event Management Insurance	\$5,000,000	\$500,000	Not Applicable	Not Applicable
	CE	Cyber Extortion Insurance	\$5,000,000	\$500,000	Not Applicable	Not Applicable
	RG	ReputationGuard® Insurance	\$50,000	\$5,000	Not Applicable	July 1, 2016
		Coinurance	0 %			

PRODUCER: AON REED STENHOUSE INC
ADDRESS: 1000 RUE DE LA GAUCHETIERE OUE
BUREAU 2400
MONTREAL, QC H3B 4W

All limits of insurance, premiums and other sums of money as expressed in this policy are in Canadian currency unless otherwise stated in writing.

By signing below, the President and Chief Executive Officer of the Insurer agrees on behalf of the Insurer to all the terms of this Policy.

President and Chief Executive Officer
AIG Insurance Company of Canada

TORONTO
SIGNED AT

July 28, 2025
DATE

1617490



Specialty Risk Protector®
General Terms and Conditions
("General Terms and Conditions")

In consideration of the payment of the premium, and in reliance upon the statements made to the **Insurer** by **Application**, the **Insurer** agrees as follows:

1. TERMS AND CONDITIONS

These **General Terms and Conditions** shall be applicable to all **Coverage Sections**. Terms appearing in bold in these **General Terms and Conditions** and not defined in Clause 2. **DEFINITIONS** of these **General Terms and Conditions** shall have the meaning provided for such terms in any applicable **Coverage Section** for purposes of coverage provided under such **Coverage Section**. The terms and conditions set forth in a **Coverage Section** shall only apply to that particular **Coverage Section** and shall in no way be construed to apply to any other **Coverage Section** of this policy.

2. DEFINITIONS

(a) "**Application**" means each and every signed application, any attachments to such applications, other materials submitted therewith or incorporated therein and any other statements, information, representations of any **Insured** or documents submitted by any **Insured** in connection with the underwriting of this policy or the underwriting of any other policy providing the same or similar coverage issued by the **Insurer**, or any of its affiliates, of which this policy is in whole or part a renewal or replacement or which it succeeds in time.

With respect to publicly held companies, **Application** shall also include each and every public filing by or on behalf of any **Insured** made with the SEC, the Ontario Securities Commission or any provincial securities commission including, but not limited to, any **Company's** Annual Report(s), 10-Ks, 10-Qs, 8-Ks and proxy statements, any financial information in such filings, and any certifications relating to the accuracy of the foregoing, provided that such public filing was filed during the period of time:

- (i) beginning at the start of the twelve (12) month period immediately preceding the first submission to the **Insurer** in connection with the underwriting of this policy; and
- (ii) ending at the inception of the **Policy Period**.

(b) "**Claims-Made and Reported Coverage Section**" means any **Coverage Section** designated as such.

(c) "**Company**" means the **Named Entity** and any **Subsidiary** thereof.

(d) "**Continuity Date**" means the date set forth in Item 6 of the Declarations with respect to each **Coverage Section**.

(e) "**Control Group**" mean a Company's Chief Executive Officer, Chief Financial Officer, Chief Security Officer, Chief Technology Officer, Chief Information Officer, Risk Manager and General Counsel (or equivalent positions, regardless of title).

(f) "**Coverage Section**" means each **Coverage Section** that is purchased by the **Named Entity** as indicated in Item 6 of the Declarations.

- (g) **"Discovery Coverage Section"** means any **Coverage Section** designated as such.
- (h) **"Discovery Period"** means any **Automatic Discovery Period** or **Optional Discovery Period**, as such terms are defined in Clause 9. of these **General Terms and Conditions**.
- (i) **"Domestic Partner"** means any natural person legally recognized as a domestic or civil union partner under: (i) the provisions of any applicable federal, provincial, state, municipal or local law; or (ii) the provisions of any formal program established by a **Company**.
- (j) **"First Party Coverage Section"** means any **Coverage Section** designated as such.
- (k) **"First Party Event"** means the event(s) or circumstance(s) contained in the definition of **First Party Event** in a **First Party Coverage Section**.
- (l) **"Insurer"** means the insurance company indicated in the Declarations.
- (m) **"Limit of Liability"** means the amount stated in Item 5 of the Declarations.
- (n) **"Management Control"** means: (i) owning interests representing more than fifty percent (50%) of the voting, appointment or designation power for the selection of a majority of: the board of directors of a corporation, the management committee members of a joint venture or partnership, or the members of the management board of a limited liability company; or (ii) having the right, pursuant to written contract or the by-laws, charter, operating agreement or similar documents of a **Company**, to elect, appoint or designate a majority of: the board of directors of a corporation, the management committee of a joint venture or partnership, or the management board of a limited liability company.
- (o) **"Named Entity"** means the entity listed in Item 1 of the Declarations.
- (p) **"Occurrence Coverage Section"** means any **Coverage Section** designated as such.
- (q) **"Policy Period"** means the period of time from the inception date stated in Item 2 of the Declarations to the earlier of the expiration date stated in Item 2 of the Declarations or the effective date of cancellation of this policy.
- (r) **"Related Acts"** means all **First Party Events** and **Third Party Events** which are the same, related or continuous, and all **First Party Events** and **Third Party Events** which arise from a common nucleus of facts. All **Related Acts** shall be considered to have occurred at the time the first such **Related Act** occurred.
- (s) **"Retroactive Date"** means the date set forth in Item 6 of the Declarations as such for each **Coverage Section**.
- (t) **"Sublimit of Liability"** means the applicable amount, if any, stated in Item 6 of the Declarations as such for each **Coverage Section**.
- (u) **"Subsidiary"** means:
 - (1) any for-profit entity of which the **Named Entity** has or had **Management Control** ("**Controlled Entity**") on or before the inception date of the **Policy Period**, either directly or indirectly through one or more other **Controlled Entities**;



- (2) any for-profit entity of which the **Named Entity** acquires **Management Control** during the **Policy Period**, either directly or indirectly, whose gross revenues for the most recent fiscal year prior to the inception of this policy do not exceed ten percent (10%) of the aggregate gross revenues of the **Companies** for the most recent fiscal year prior to the inception date of this policy;
- (3) any for-profit entity of which the **Named Entity** acquires **Management Control** during the **Policy Period**, either directly or indirectly, whose gross revenues for the most recent fiscal year prior to the inception of this policy exceed ten percent (10%) of the aggregate gross revenues of the **Companies** for the most recent fiscal year prior to the inception date of this policy, but only once (a) the **Named Entity** shall have provided the **Insurer** with full particulars of such entity and agreed to any additional premium and amendments to this policy relating to such entity; and (b) the **Insurer** has ratified its acceptance of such entity as a **Subsidiary** by endorsement to this policy; and
- (4) any not-for-profit entity sponsored exclusively by a **Company**.

Notwithstanding the foregoing, coverage afforded under this policy shall only apply to **Loss** arising out of **First Party Events** and **Third Party Events** occurring or allegedly occurring after the effective time that the **Named Entity** obtained **Management Control** of such **Subsidiary** and prior to the time that such **Named Entity** ceased to have **Management Control** of such **Subsidiary**.

(v) "**Third Party Event**" means the event(s) or circumstance(s) contained in the definition of **Third Party Event** in a **Third Party Coverage Section**.

(w) "**Third Party Coverage Section**" means any **Coverage Section** designated as such.

3. EXTENSIONS

Subject otherwise to the terms hereof, this policy shall cover **Loss** arising from any **Claim** made against (i) the estates, heirs, or legal representatives of deceased natural person **Insureds**, and the legal representatives of natural person **Insureds** in the event of incompetency, insolvency or bankruptcy, who were **Insureds** at the time the **Third Party Events** upon which such **Claims** are based occurred; or (ii) the lawful spouse (whether such status is derived by reason of statutory law, common law or otherwise of any applicable jurisdiction in the world) or **Domestic Partner** of a natural person **Insured** for all **Claims** arising solely out of his or her status as the spouse or **Domestic Partner** of a natural person **Insured**, including a **Claim** that seeks damages recoverable from marital community property, property jointly held by the natural person **Insured** and the spouse or **Domestic Partner**, or property transferred from the natural person **Insured** to the spouse or **Domestic Partner**; provided, however, that this extension shall not afford coverage for any **Claim** for any actual or alleged **Third Party Event** committed by or directly involving the spouse or **Domestic Partner**, but shall apply only to **Claims** arising out of any actual or alleged **Third Party Event** committed by or directly involving a natural person **Insured**, subject to the policy's terms, conditions and exclusions.

4. LIMIT OF LIABILITY

The **Limit of Liability** is the **Insurer's** maximum liability for all **Loss** under all **Coverage Sections** combined and the **Insurer** shall not be responsible to pay any **Loss** upon exhaustion of the **Limit of Liability**.



If a **Sublimit of Liability** is stated in Item 6 of the Declarations with respect to a **Coverage Section**, then such **Sublimit of Liability** shall be the **Insurer's** maximum liability for all **Loss** with respect to such **Coverage Section** and the **Insurer** shall not be responsible to pay any **Loss** under such **Coverage Section** upon exhaustion of such **Sublimit of Liability**. Each **Sublimit of Liability** shall be part of and not in addition to the **Limit of Liability** and shall in no way serve to increase the **Limit of Liability**.

The **Limit of Liability** and any applicable **Sublimits of Liability** for any **Discovery Period** shall be part of, and not in addition to, the **Limit of Liability** and the corresponding **Sublimits of Liability** for the **Policy Period**.

Solely with respect to any **Claims-Made and Reported Coverage Sections**, a **Claim** which is made subsequent to the **Policy Period** or **Discovery Period** pursuant to Clauses 6(b) and 6(c) respectively, which is considered made during the **Policy Period** or **Discovery Period** shall also be subject to the **Limit of Liability** and any applicable **Sublimit of Liability**.

5. RETENTION

The **Insurer** shall only be liable for the amount of **Loss** arising from each **Claim** or **First Party Event** that exceeds the Retention stated in Item 6 of the Declarations as applicable to the **Coverage Section** affording coverage to such **Claim** or **First Party Event**. Such Retention amounts must be borne by the **Insureds** and remain uninsured.

(a) For Third Party Coverage Sections

If a **Claim** triggers more than one **Third Party Coverage Section**, the highest applicable Retention amount shall apply to such **Claim**.

A single Retention amount shall apply to all **Claims** alleging **Related Acts**.

(b) For First Party Coverage Sections

If a **First Party Event** triggers more than one **First Party Coverage Section**, all applicable Retention amounts shall apply to such **First Party Event**.

A separate Retention amount shall apply to each respective **First Party Coverage Section** for **First Party Events** involving **Related Acts**.

(c) For First Party Coverage Sections and Third Party Coverage Sections

If a **First Party Event** or a **Third Party Event** and any **Related Acts** trigger coverage under one or more **First Party Coverage Sections** and one or more **Third Party Coverage Sections**, all **First Party Coverage Section** Retentions shall apply pursuant to (b) above, in addition to the applicable **Third Party Coverage Section** Retention pursuant to (a) above.

6. NOTICE

(a) The **Insureds** shall, as a condition precedent to the obligations of the **Insurer** under this policy, give written notice to the **Insurer** of any **Claim** made against an **Insured** or a **First Party Event** as soon as practicable after:

- (1) any personnel in the office of any member of the **Control Group** first becomes aware of the **Claim**; or
- (2) any **First Party Event** commences or, solely with respect to a **Discovery Coverage Section**, is discovered.

Notwithstanding the foregoing and regardless of whether any personnel described in (1) above has become aware, in all events each **Claim** under a **Claims-Made and Reported Coverage Section** must be reported no later than either:

- (1) forty-five (45) days after the end of the **Policy Period**; or
 - (2) the end of any applicable **Discovery Period**.
- (b) If written notice of a **Claim** or a **First Party Event** has been given to the **Insurer** pursuant to Clause (a) above, then:
- (1) any subsequent **Claim** made against an **Insured**; or
 - (2) any subsequent **First Party Event**;
- arising out of, based upon or attributable to the facts giving rise to such **Claim** or **First Party Event** for which such notice has been given, or alleging any **Related Act** thereto, shall be considered made at the time such notice was given; and
- (c) Solely with respect to any **Claims-Made and Reported Coverage Section**, if during the **Policy Period** or during the **Discovery Period** (if applicable), an **Insured** shall become aware of any circumstances which may reasonably be expected to give rise to a **Claim** being made against an **Insured** and shall choose to give written notice to the **Insurer** of such circumstances, the **Third Party Events**, allegations anticipated and the reasons for anticipating such a **Claim**, with full particulars as to dates, persons and entities involved, then any **Claim** which is subsequently made against an **Insured** and reported to the **Insurer** alleging, arising out of, based upon or attributable to such circumstances or alleging any **Related Act** to that alleged or contained in such circumstances, shall be considered made at the time such notice of such circumstances was given.
- (d) Notice as described herein shall be given in writing to the **Insurer** at the following address or email address:

AIG Insurance Company of Canada
Canadian Head Office
120 Bremner Boulevard, Suite 2200
Toronto, ON M5J 0A8
Canada
Attention: "Claims"
financialclaimsCA@aig.com

Any notice must reference the Policy Number set forth in the Declarations and the **Coverage Section(s)** under which an **Insured** is providing notice.

If mailed or transmitted by electronic mail, the date of such mailing or transmission shall constitute the date that such notice was given and proof of mailing or transmission shall be sufficient proof of notice.

7. INSURED'S OBLIGATIONS

In connection with all **Claims** and **First Party Events** under this policy, each **Insured** agrees to the following:



- (a) such **Insured** shall send the **Insurer** copies of all demands, suit papers, other related legal documents and invoices for **Defence Costs** received by such **Insured**, as soon as practicable;
- (b) such **Insured** shall immediately record the specifics of any **Claim** and **First Party Event** and the date such **Insured** first received such **Claim** or **First Party Event**;
- (c) such **Insured** shall cooperate with and help the **Insurer** and/or any counsel appointed pursuant to the terms of this policy, including, without limitation, as follows:
 - (1) by not admitting liability;
 - (2) in making settlements;
 - (3) in enforcing any legal rights any **Insured** may have against anyone who may be liable to any **Insured**;
 - (4) by attending depositions, examinations for discovery, hearings and trials;
 - (5) by securing and giving evidence, and obtaining the attendance of witnesses;
 - (6) by furnishing any and all documentation within the possession of such **Insured** that may be required; and
 - (7) by taking such actions that such **Insured** and the **Insurer** agree are necessary and practicable to prevent or limit **Loss** arising from any **First Party Event** or **Third Party Event**.
- (d) unless required to do so by law, **Insureds** shall not, without the **Insurer's** prior written consent:
 - (1) assume any financial obligation or incur any cost unless specifically allowed to settle any **Claim** on behalf of all **Insureds** within the retention pursuant to a **Coverage Section**.
 - (2) take any action, or fail to take any required action which prejudices the **Insurer's** rights under this policy.

8. CANCELLATION

- (a) *By the **Named Entity***: This policy may be canceled by the **Named Entity** at any time only by mailing written prior notice to the **Insurer** or by surrender of this policy to the **Insurer's** authorized agent or to the **Insurer**.
- (b) *By the **Insurer***: This policy may be canceled by the **Insurer's** delivering to the **Named Entity** by registered, certified, other first class mail or other reasonable delivery method, at the address of the **Named Entity** set forth in Item 1 of the Declarations, written notice stating when, not less than sixty (60) days thereafter (ten (10) days in the event of cancellation for non-payment of premium), the cancellation shall be effective. Proof of mailing or delivery of such notice as aforesaid shall be sufficient proof of notice and this policy shall be deemed canceled as to all **Insureds** at the date and hour specified in such notice.
- (c) *Return of Premium*: If this policy shall be canceled by the **Named Entity**, the **Insurer** shall retain the customary short rate proportion of the premium hereon. If this policy shall be canceled by the **Insurer**, the **Insurer** shall retain the pro rata proportion of the premium hereon.

9. DISCOVERY

This Clause applies solely to **Claims-Made and Reported Coverage Sections** of this policy, but shall not apply in the event of cancellation for non-payment of premium:



(a) **Automatic Discovery Period:** If the **Named Entity** or the **Insurer** shall cancel or refuse to renew this policy or in the event of a **Transaction** (as that term is defined in Clause 10. below), the **Named Entity** shall have the right following the effective date of such cancellation or nonrenewal to a period of sixty (60) days (the "**Automatic Discovery Period**") in which to give written notice to the **Insurer** of **Claims** first made against an **Insured** during the **Automatic Discovery Period** for any **Third Party Events** occurring prior to the end of the **Policy Period** and otherwise covered by this policy. The **Automatic Discovery Period** shall not apply where an **Optional Discovery Period** has been purchased or to **Claims** that are covered under any subsequent insurance an **Insured** purchases or that is purchased for an **Insured's** benefit, or that would be covered by any subsequent insurance but for the exhaustion of the amount of insurance applicable to such **Claims** or any applicable Retention amount.

(b) **Optional Discovery Period:** Except as indicated below, if the **Named Entity** or the **Insurer** shall cancel or refuse to renew this policy or in the event of a **Transaction** (as that term is defined in Clause 10. below), the **Named Entity** shall have the right to a period of up to three years following the effective date of such cancellation or nonrenewal (an "**Optional Discovery Period**"), upon payment of an additional premium amount of up to:

- (i) one hundred percent (100%) of the full annual premium, for a period of one (1) year,
- (ii) one hundred and seventy-five percent (175%) of the full annual premium, for a period of two (2) years, or
- (iii) two hundred percent (200%) of the full annual premium, for a period of three (3) years,

in which to give written notice to the **Insurer** of **Claims** first made against an **Insured** during the **Optional Discovery Period** for any **Third Party Events** occurring prior to the end of the **Policy Period** and otherwise covered by this policy.

If the **Named Entity** exercises its right to purchase an **Optional Discovery Period**, that period incept at the end of the **Policy Period** and there shall be no **Automatic Discovery Period**.

As used herein, "full annual premium" means the premium amount set forth in the Declarations as such, plus an additional premium charged for any endorsements to this policy.

The right to purchase an **Optional Discovery Period** shall terminate unless written notice of election, together with any additional premium due, is received by the **Insurer** no later than thirty (30) days after the effective date of the cancellation, nonrenewal or **transaction**.

Any **Discovery Period** cannot be canceled and any additional premium charged for an **Optional Discovery Period** shall be fully earned at inception.

This Clause 9. **DISCOVERY** shall not apply to any cancellation resulting from non-payment of premium.

10. TRANSACTIONS

(a) If during the **Policy Period**:

- (1) the **Named Entity** shall consolidate with or merge into, or sell all or substantially all of its assets to any other person or entity or group of persons or entities acting in concert; or
- (2) any person or entity or group of persons or entities acting in concert shall acquire **Management Control** of the **Named Entity**;



(either of the above events herein referred to as the "**Transaction**"), then this policy shall continue in full force and effect only as to those **First Party Events** and **Third Party Events** occurring prior to the effective time of the **Transaction**.

This policy may not be canceled after the effective time of the **Transaction**.

(b) Notwithstanding the foregoing, this policy may continue in full force and effect as to those **First Party Events** and **Third Party Events** occurring subsequent to the effective time of the **Transaction** if:

- (1) within thirty (30) days of such **Transaction** the **Insurer** has been provided with full particulars of the **Transaction**, the related or acquiring person(s) or entity(ies) and any other information requested by the **Insurer**; and
- (2) the **Insurer** waives the restrictions set forth in Paragraph 10(a) above with respect to such **Transaction** by written endorsement to this policy and the **Named Entity** or its successor has paid any additional premium and accepted any amendments to this policy required by the **Insurer**.

11. SUBROGATION

An **Insured** may be able to recover all or part of **Loss** from someone other than the **Insurer**. Such **Insured** must do all that is possible after a **First Party Event** or **Third Party Event** to preserve any, and all, rights of recovery. As a condition of any payment by the **Insurer** under this policy, an **Insured's** rights to recovery will be transferred to the **Insurer**. Each **Insured** will do whatever is necessary, including signing documents, to help the **Insurer** obtain that recovery.

A **Company** may waive an **Insured's** rights to recovery against others if such **Company** does so in writing and before the **First Party Event** or **Third Party Event** occurred.

12. OTHER INSURANCE

Such insurance as is provided by this policy shall apply only as excess over any other valid and collectible insurance, unless such other insurance is expressly written to be excess over the **Limit of Liability** or any applicable **Sublimit of Liability** provided by this policy.

13. NOTICE AND AUTHORITY

Except for the giving of a notice of **Claim**, which shall be governed by the provisions of Section 6 of these **General Terms and Conditions**, all notices required under this policy to be given by an **Insured** to the **Insurer** shall be given in writing to the **Insurer** at the address stated in Item 4(a) of the Declarations. It is agreed that the **Named Entity** shall act on behalf of all **Insureds** with respect to the giving of notice of a **Claim**, the giving and receiving of notice of cancellation and nonrenewal, the payment of premiums and the receiving of any return premiums that may become due under this policy, the receipt and acceptance of any endorsements issued to form a part of this policy, the exercising or declining of the right to tender the defence of a **Claim** to the **Insurer** and the exercising or declining to exercise any right to a **Discovery Period**.

14. ASSIGNMENT

This policy and any and all rights hereunder are not assignable without the prior written consent of the **Insurer**, which consent shall be in the sole and absolute discretion of the **Insurer**.

15. DISPUTE RESOLUTION PROCESS

It is hereby understood and agreed that all disputes or differences which may arise under or in connection with this policy, whether arising before or after termination of this policy, including any determination of the amount of **Loss**, must first be submitted to the non-binding mediation process as set forth in this Clause.

The non-binding mediation will be administered by any mediation facility to which the **Insurer** and the **Named Entity** mutually agree, in which all implicated **Insureds** and the **Insurer** shall try in good faith to settle the dispute by mediation in accordance with the then-prevailing Commercial Mediation Rules. The parties shall mutually agree on the selection of a mediator. The mediator shall have knowledge of the legal, corporate management, or insurance issues relevant to the matters in dispute. The mediator shall also give due consideration to the general principles of the law of the province where the **Named Entity** is incorporated in the construction or interpretation of the provisions of this policy. In the event that such non-binding mediation does not result in a settlement of the subject dispute or difference:

- (a) either party shall have the right to commence a judicial proceeding; or
- (b) either party shall have the right, with all other parties consent, to commence an arbitration proceeding in accordance with the Ontario Arbitration Act, 1991 S.O. 1991, c. 17 or other provincial legislation that will be submitted to an arbitration panel of three (3) arbitrators as follows: (i) the implicated **Insureds** shall select one (1) arbitrator; (ii) the **Insurer** shall select one (1) arbitrator; and (iii) said arbitrators shall mutually agree upon the selection of the third arbitrator. The arbitration shall be conducted in accordance with the Ontario Arbitration Act, 1991 S.O. 1991, c. 17 or other provincial legislation.

Notwithstanding the foregoing, no such judicial or arbitration proceeding shall be commenced until at least 90 days after the date the non-binding mediation shall be deemed concluded or terminated. Each party shall share equally the expenses of the non-binding mediation.

The non-binding mediation may be commenced in Toronto, Ontario; or in the province indicated in Item 1 of the Declarations as the mailing address for the **Named Entity**. The **Named Entity** shall act on behalf of each and every **Insured** in connection with any non-binding mediation under this Clause, the selection of arbitration or judicial proceeding and/or the selection of mediators or arbitrators.

16. ACTION AGAINST INSURER

Except as provided in Clause 15 above, no action shall lie against the **Insurer** unless, as a condition precedent thereto, there shall have been full compliance with all of the terms of this policy, nor until the amount of an **Insured's** obligation to pay shall have been finally determined either by judgment against such **Insured** after actual trial or by written agreement of such **Insured**, the claimant and the **Insurer**.

Any person or organization or the legal representative thereof who has secured such judgment or written agreement shall thereafter be entitled to recover under this policy to the extent of the insurance afforded by this policy. No person or organization shall have any right under this policy to join the **Insurer** as a party to any action against an **Insured** or a **Company** to determine an **Insured's** liability, nor shall the **Insurer** be impleaded by an **Insured** or a **Company** or their legal representatives.



17. BANKRUPTCY

Bankruptcy or insolvency of any **Company** or any **Insured** or of their estates shall not relieve the **Insurer** of any of its obligations hereunder.

18. WORLDWIDE TERRITORY

Where legally permissible, this policy shall apply to **First Party Events** and **Third Party Events** occurring, **Claims** made or **Losses** suffered anywhere in the world.

19. HEADINGS

The descriptions in the headings of this policy are solely for convenience, and form no part of the terms and conditions of coverage.

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Specialty Risk Protector®

CyberEdgeSM Network Interruption Insurance
("Network Interruption Coverage Section")

This is an Occurrence Coverage Section and a First Party Coverage Section

Notice: Pursuant to Clause 1 of the **General Terms and Conditions**, the **General Terms and Conditions** are incorporated by reference into, made a part of and are expressly applicable to this **Network Interruption Coverage Section**, unless otherwise explicitly stated to the contrary in the **General Terms and Conditions** or in this **Network Interruption Coverage Section**.

1. INSURING AGREEMENTS

With respect to the **NETWORK INTERRUPTION INSURING AGREEMENT** of this Clause 1., solely with respect to a **Security Failure** first occurring during the **Policy Period** and reported to the **Insurer** pursuant to the terms of this policy, this **Network Interruption Coverage Section** affords the following coverage:

NETWORK INTERRUPTION INSURING AGREEMENT

The **Insurer** shall pay all **Loss** in excess of the **Remaining Retention** that an **Insured** incurs after the **Waiting Hours Period** and solely as a result of a **Security Failure**.

2. DEFINITIONS

- (a) "**Bodily Injury**" means physical injury, sickness or disease and, if arising out of the foregoing, mental anguish, mental injury, shock, humiliation or death at any time.
- (b) "**Computer System**" means any computer hardware, software or any components thereof that are linked together through a network of two or more devices accessible through the Internet, internal network or connected with data storage or other peripheral devices (including, without limitation, wireless and mobile devices), and are under the ownership, operation or control of, or leased by, a **Company**.

For this **Coverage Section**, "**Computer System**" also means computer hardware, software or any components thereof that are under the ownership, operation or control of an **Outsource Provider**.
- (c) "**First Party Event**" means any **Security Failure**.
- (d) "**Insured**" means a **Company**.
- (e) "**Loss**" means the below listed costs incurred from the beginning of a **Material Interruption** through the 120th day after the end of the **Material Interruption** (or 120 days after the **Material Interruption** would have ended if an **Insured** exercised due diligence and dispatch):

- (1) costs that would not have been incurred but for a **Material Interruption**; and
- (2) the sum of all of following, which shall be calculated on an hourly basis:
 - (a) Net Income (Net Profit or Loss before income taxes) that would have been earned; and



- (b) Continuing normal operating expenses incurred, including payroll.
- (f) "**Material Interruption**" means the actual and measurable interruption or suspension of an **Insured's** business directly caused by a **Security Failure**.
- (g) "**Outsource Provider**" means an entity not owned, operated or controlled by an **Insured** that such **Insured** depends on to conduct its business.
- (h) "**Pollutants**" means, but is not limited to, any solid, liquid, gaseous, biological, radiological or thermal irritant or contaminant, including smoke, vapor, dust, fibers, mold, spores, fungi, germs, soot, fumes, acids, alkalis, chemicals and waste. "Waste" includes, but is not limited to, materials to be recycled, reconditioned or reclaimed and nuclear materials.
- (i) "**Property Damage**" means damage to, loss of use of or destruction of any tangible property. For purposes of this definition, "tangible property" shall not include electronic data.
- (j) "**Remaining Retention**" means the Retention set forth in Item 6 of the Declarations for this **Network Interruption Coverage Section** less the amount of **Loss** incurred by any **Insured** during the **Waiting Hours Period**. If the **Loss** incurred by any **Insured** during the **Waiting Hours Period** is greater than the applicable Retention set forth in the Declarations, the **Remaining Retention** equals zero.
- (k) "**Security Failure**" means a failure or violation of the security of a **Computer System**, including, without limitation, that which results in or fails to mitigate any unauthorized access, unauthorized use, denial of service attack or receipt or transmission of a malicious code. "**Security Failure**" includes any such failure or violation resulting from the theft of a password or access code from a **Company's** premises, a **Company's Computer System**, or an officer, director or employee of a **Company** by non-electronic means.
- (l) "**Waiting Hours Period**" means the number of hours set forth in Item 6 of the Declarations that must elapse once a **Material Interruption** has begun.

3. EXCLUSIONS

The **Insurer** shall not be liable to make any payment for **Loss**:

- (a) arising out of, based upon or attributable to any dishonest, fraudulent, criminal or malicious act, error or omission, or any intentional or knowing violation of the law, if committed by any:
- (1) past or present director, officer, trustee, general or managing partner or principal (or the equivalent positions) of a **Company**, whether acting alone or in collusion with other persons; or
 - (2) past or present employee (other than those referenced in Sub-paragraph (1) above) or independent contractor employed by a **Company** if any of those referenced in Sub-paragraph (1) above participated in, approved of, acquiesced to, or knew or had reason to know prior to the act of, the dishonest, fraudulent, malicious, or criminal act committed by such employee or independent contractor that caused a direct loss to an **Insured** or any other person.
- (b) arising out of, based upon or attributable to any misappropriation or theft of trade secret or infringement of patent, copyright, trademark, trade dress or any other intellectual property right.



- (c) arising out of, based upon or attributable to any (1) presence of **Pollutants**; (2) the actual or threatened discharge, dispersal, release or escape of **Pollutants**; or (3) direction or request to test for, monitor, clean up, remove, contain, treat, detoxify or neutralize pollutants, or in any way respond to or assess the effects of **Pollutants**.
- (d) arising out of, based upon or attributable to any **Bodily Injury** or **Property Damage**.
- (e) arising out of, based upon or attributable to any:
 - (1) fire, smoke, explosion, lightning, wind, water, flood, earthquake, volcanic eruption, tidal wave, landslide, hail, act of God or any other physical event, however caused;
 - (2) war, invasion, military action (whether war is declared or not), civil war, mutiny, popular or military uprising, insurrection, rebellion, revolution, military or usurped power, or any action taken to hinder or defend against any of these events; or
 - (3) satellite failure.
- (f) arising out of, based upon or attributable to any seizure, confiscation, nationalization, or destruction of a **Computer System** by order of any governmental or public authority.
- (g) arising out of, based upon or attributable to any **Security Failure** or **Related Act** thereto which has been reported, or in any circumstances of which notice has been given, under any policy of which this **Network Interruption Coverage Section** is a renewal or replacement or which it may succeed in time.
- (h) for any profit or advantage to which any **Insured** is not legally entitled.
- (i) arising out of, based upon or attributable to: (1) any liability to third-parties for whatever reason; (2) legal costs or legal expenses of any type; (3) updating, upgrading, enhancing, or replacing any **Computer System** to a level beyond that which existed prior to sustaining **Loss**; (4) unfavorable business conditions; or (5) the removal of software program errors or vulnerabilities.

4. LIMIT OF LIABILITY

The following provisions shall apply in addition to the provisions of Clause 4. **LIMIT OF LIABILITY** of the **General Terms and Conditions**:

Notwithstanding anything in the policy to the contrary, the maximum liability of the **Insurer** for all **Loss** arising from a **Security Failure** of the **Computer System** of an **Outsource Provider** shall be \$100,000. This amount shall be part of and not in addition to the **Limit of Liability** or any applicable **Sublimit of Liability**.

5. RETENTION

The following provisions shall apply in addition to the provisions of Clause 5. **RETENTION** of the **General Terms and Conditions**:

Solely with respect to this **Network Interruption Coverage Section**, the applicable Retention shall be the **Remaining Retention**.



6. NOTICE

In addition to the applicable items of Clause 6. **NOTICE** of the **General Terms and Conditions**, and before coverage will apply for **Loss** under this **Network Interruption Coverage Section**, each **Insured** must also:

- (a) complete and sign a written, detailed and affirmed proof of loss within ninety (90) days after the discovery of any **Loss** (unless such period has been extended by the **Insurer** in writing) which shall include, among any other pertinent information:
 - (1) a full description of such **Loss** and the circumstances surrounding such **Loss**, which shall include, among any other necessary information, the time, place and cause of the **Loss**;
 - (2) a detailed calculation of any **Loss**; and
 - (4) all underlying documents and materials that reasonably relate to or form a part of the basis of the proof of such **Loss**.
- (b) upon the **Insurer's** request, submit to an examination under oath.
- (c) immediately record the specifics of any **Loss** or **Security Failure** and the date such **Insured** first became aware of such **Loss** or **Security Failure**.
- (d) provide the **Insurer** with any cooperation and assistance that the **Insurer** may request, including assisting the **Insurer** in:
 - (1) any investigation of a **Security Failure**, **Loss** or circumstance;
 - (2) enforcing any legal rights an **Insured** or the **Insurer** may have against anyone who may be liable to an **Insured**;
 - (3) executing any documents that the **Insurer** deem necessary to secure its rights under this policy; and
 - (4) any calculation or appraisal conducted by or on behalf of the **Insurer** pursuant to this **Network Interruption Coverage Section**.

All adjusted claims shall be due and payable thirty (30) days after the presentation and written acceptance by the **Insurer** of satisfactory proof of **Loss** to the address set forth in the **General Terms and Conditions**. The costs and expenses of establishing or proving an **Insured's Loss** under this **Network Interruption Coverage Section**, including, without limitation, those connected with preparing a proof of loss, shall be such **Insured's** obligation, and are not covered under this policy.

7. NET PROFIT CALCULATIONS

In determining the amount of net profit (or net loss) and charges and expenses covered hereunder for the purpose of ascertaining the amount of **Loss** (and otherwise) under this **Network Interruption Coverage Section**, due consideration shall be given to the prior experience of an **Insured's** business before the beginning of the **Security Failure** and to the probable business an **Insured** could have performed had no **Security Failure** occurred. Provided, however, that such net profit (or net loss) calculations shall not include, and this policy shall not cover, net income that would likely have been earned as a result of an increase in volume of business due to favorable business conditions caused by the impact of **Security Failures** on other businesses. All such net profit (or net loss) and charges and expenses shall be calculated on an hourly basis and based on such an **Insured's** actual net profit



(or net loss) and charges and expenses.

8. APPRAISAL

If any **Insured** and the **Insurer** disagree on the amount of **Loss**, either may make a written demand for an appraisal of such **Loss**. If such demand is made, each party will select a competent and impartial appraiser. The appraisers will then jointly select an umpire. If the appraisers cannot agree on an umpire, they may request that selection be made by a judge of a court having jurisdiction. Each appraiser will separately state the amount of **Loss**. If they fail to agree, they will submit their differences to the umpire. A decision agreed to by any two of these three will be binding.

Such **Insured** and the **Insurer** will:

- (1) pay their respective chosen appraiser; and
- (2) bear the expenses of the umpire equally.

Any appraisal of **Loss** shall be calculated in accordance with all terms, conditions and exclusions of this policy.

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Specialty Risk Protector®
ReputationGuard Insurance®
("ReputationGuard Coverage Section")

This is a Discovery Coverage Section and a First Party Coverage Section

Notice: Pursuant to Clause 1 of the **General Terms and Conditions**, the **General Terms and Conditions** are incorporated by reference into, made a part of and are expressly applicable to this **ReputationGuard Coverage Section**, unless otherwise explicitly stated to the contrary in the **General Terms and Conditions** or in this **ReputationGuard Coverage Section**.

1. INSURING AGREEMENT

With respect to the **REPUTATION THREAT INSURING AGREEMENT** and the **REPUTATION ATTACK INSURING AGREEMENT** of this Clause 1., solely with respect to a **Reputation Threat** or **Reputation Attack** first discovered during the **Policy Period** for which the **Named Entity** has first retained a **Panel PR Firm** during the **Policy Period**, this **ReputationGuard Coverage Section** affords the following coverage:

REPUTATION THREAT INSURING AGREEMENT

The **Insurer** shall pay the **Proactive Costs** in excess of the applicable Retention that an **Insured** incurs in seeking to avoid or minimize the potential impact of a specific **Reputation Threat**.

REPUTATION ATTACK INSURING AGREEMENT

The **Insurer** shall pay the **Response Costs** in excess of the applicable Retention that an **Insured** incurs in seeking to minimize the potential impact of a specific **Reputation Attack**.

2. DEFINITIONS

"**Bold**" terms in this policy have the meaning and/or values ascribed to them in this Clause and/or in Item 6 of the Declarations.

(a) "**Consultation Costs**" mean the:

- (1) fees for crisis communications services provided by a **Panel PR Firm** to an **Insured** to the extent that such services are provided specifically in response to a **Reputation Threat** or **Reputation Attack**; and
- (2) expenses of such **Panel PR Firm** in rendering such crisis communications services.

(b) "**Covered Brand**" means the brand of the **Named Entity** and any other brands owned exclusively by an **Insured**.

(c) "**Crisis Preparedness Program**" means one or more crisis preparedness activities (including, but not limited to, a vulnerabilities assessment, development of a multi-scenario crisis communications plan or crisis response team infrastructure, internal roll-out and employee training on that plan, and simulation exercises) purchased by the **Insureds** and performed by a **Panel PR**

Firm as part of the normal course of business management prior to the identification or occurrence of a covered **Reputation Threat** or a **Reputation Attack**.

- (d) **"First Party Event"** means any **Reputation Threat** or **Reputation Attack**.
- (e) **"Insured"** means the **Named Entity** or any of its **Subsidiaries**.
- (f) **"Loss"** means any: (1) **Proactive Costs**; and (2) **Response Costs**. **Loss**, **Proactive Costs** and **Response Costs** shall not mean: (i) payments made, directly or indirectly, to any person or entity to avoid **Publication** of a **Reputation Threat** by such person or entity; (ii) attorney's fees, accountant's fees or expenses incurred by or in connection with the retention of any attorney or accountant; (iii) employee compensation, benefits or overhead; (iv) cost of any services provided by an **Insured** or any of its affiliates; (v) costs or expenses incurred to withdraw or recall any good, product or service from the marketplace other than **Consultation Costs** and **Targeted Communications Costs**; (vi) forensic investigation costs; (vii) amounts paid to third parties alleged to be harmed in connection with a **Reputation Threat** or **Reputation Attack**, including but not limited to amounts deposited in a consumer redress fund or similar accounts; (viii) cost of a **Crisis Preparedness Program**; (ix) amounts incurred in connection with seeking or opposing the consummation of any transaction that requires a security holder, debt holder or other stakeholder or management vote or approval; or (x) other expenses or charges that an **Insured** had committed to prior to, or planned to incur in the absence of, a **Reputation Threat** or **Reputation Attack**.
- (g) **"Panel Affiliate"** means any entity that a **Panel PR Firm** directly or indirectly controls, is controlled by or is in common control with, and that is specifically retained by the **Named Entity** in connection with a **Reputation Threat** or a **Reputation Attack** at the specific written recommendation of such **Panel PR Firm**.
- (h) **"Panel PR Firm"** means any public relations, crisis management or brand management firm specifically retained by the **Named Entity** in connection with a **Reputation Threat** or a **Reputation Attack** but only if such firm is listed at <http://www.aig.com/us/panelcounseldirectory> under the **"ReputationGuard®"** link as an approved ReputationGuard® **Panel PR Firm** at the time the firm is retained.

If no firm listed under the **ReputationGuard®** link is willing and able to provide crisis communication services to an **Insured** in connection with a specific **Reputation Threat** or **Reputation Attack**, the **Named Entity** may retain a **Panel Affiliate**, and such **Panel Affiliate** shall be treated as a **Panel PR Firm** solely for that specific **Reputation Threat** or a **Reputation Attack** against that specific **Insured**.

If no firm listed under the **ReputationGuard®** link and no **Panel Affiliate** is willing and able to provide crisis communication services to an **Insured** in connection with a specific **Reputation Threat** or **Reputation Attack**, then a public relations, crisis management or brand management firm retained by the **Named Entity** with the **Insurer's** prior written consent shall be treated as a **Panel PR Firm** solely for that specific **Reputation Threat** or a **Reputation Attack** against that specific **Insured**.
- (i) **"Proactive Costs"** means **Consultation Costs** incurred by an **Insured** in connection with a **Reputation Threat** prior to the earlier of: (1) a **Reputation Attack** that arises out of the subject of the **Reputation Threat**, or (2) the ninetieth (90th) day after the date a **Panel PR Firm** was first hired

in response to the **Reputation Threat**.

- (j) "**Publication**" means the dissemination via any medium (including but not limited to dissemination via print, video, audio, electronic, or digital or digitized form) of previously non-public information or opinion specifically concerning an **Insured** or a **Covered Brand**; provided, however, that "**Publication**" does not mean the reporting or disclosure of any financial information, financial projections or estimates, any communication seeking or opposing the consummation of any transaction that requires a security holder, debt holder or other stakeholder or management vote or approval, or any internal communication directed only to an **Insured's** executives and/or employees.
- (k) "**Related Event**" means any **Reputation Threat** or **Reputation Attack** that: (1) is an extension, expansion or **Publication** of another **Reputation Threat** or **Reputation Attack**; or (2) arises out of, is based upon or is attributable to the same or related facts that are or were the subject of another **Reputation Threat** or **Reputation Attack**.
- (l) "**Reputation Attack**" means any **Publication** by a **Third Party** that the **Named Entity** believes: (1) will be seen by any **Insured's** stakeholders (including, but not limited to, actual or potential customers, investors, creditors, vendors, employees, suppliers or regulators) as a material breach of trust, and (2) is likely to have an adverse impact on the public perception of an **Insured** or a **Covered Brand**.
- (m) "**Reputation Threat**" means any act or event that the **Named Entity** believes would, if disclosed in a **Publication**: (1) be seen by any **Insured's** stakeholders (including, but not limited to, actual or potential customers, investors, creditors, vendors, employees, suppliers or regulators) as a material breach of trust, and (2) have an adverse impact on the public perception of an **Insured** or a **Covered Brand**. A "**Reputation Threat**" ceases upon the earlier of any **Publication** or any **Reputation Threat** becoming the subject of a **Reputation Attack**.
- (n) "**Response Costs**" means, to the extent incurred by an **Insured** specifically in response to a **Reputation Attack**:
 - (1) **Consultation Costs**; and
 - (2) **Targeted Communications Costs**;

provided, however, **Response Costs** shall not include the cost of providing any notice or making any disclosure required by law or contract.
- (o) "**Targeted Communications Costs**" means any public relations, communications and marketing expenses (including, but not limited to, the cost of crisis communications-related advertising, printing, mailing, brand monitoring and the operation of a telephone or internet hotline or answer line) incurred within the **Communication Cost Period** commencing at the time of the first **Publication** of a **Reputation Attack**, but only to the extent that such public relations, communications and marketing expenses are incurred at the recommendation of a **Panel PR Firm** as a targeted response, specifically designed to address a **Reputation Attack**.
- (p) "**Third Party**" means any person or entity other than an **Insured**, the directors or officers of any **Insured**, or any of their respective affiliates, agents, successors or assigns.



3. EXCLUSIONS

The **Insurer** shall not be liable to make any payment for **Loss** in connection with any **Reputation Attack** or **Reputation Threat** arising out of, based upon or attributable to any:

- (a) change in population, economic conditions, customer tastes or competitive or business environment;
- (b) bankruptcy or insolvency of any **Insured**; provided, however, the **Insurer** shall pay **Loss** in connection with a public announcement arising out of the actual or anticipated filing of a bankruptcy petition by or on behalf of an **Insured**, subject to a sublimit of \$50,000 for all such **Loss**; provided further that such amount is part of, and not in addition to, the **Limit of Liability** and the **Sublimit of Liability** applicable to this **Coverage Section**.
- (c) criticism of an **Insured's** financial performance, or any change in the financial rating of an **Insured** or of any security issued by an **Insured**;
- (d) direct and foreseeable consequence of an **Insured's** decision to change or discontinue the use of any business strategy, manufacturing process, vendor, supplier or distributor;
- (e) acquisition or merger strategy, any actual or threatened acquisition of or by an **Insured**, or any merger of an **Insured** by or with any other entity; or
- (f) strike or similar labor action, war, invasion, military action (whether war is declared or not), civil war, mutiny, popular or military uprising, insurrection, rebellion, revolution, military or usurped power, or any action taken to hinder or defend against any of these events.

4. COINSURANCE

The Coinsurance percentage applicable to this **Coverage Section** shall be borne by the **Insureds** and remain uninsured. Payments of any Coinsurance percentage by an **Insured** shall not reduce the **Limit of Liability** or the **Sublimit of Liability** for this **Coverage Section**.

5. REPUTATION THREAT OR REPUTATION ATTACK TERMS AND CONDITIONS

Before coverage will apply for **Loss** under this **ReputationGuard Coverage Section**:

- (a) The **Named Entity** shall provide written notice to the **Insurer** of a **Reputation Threat** or **Reputation Attack** as soon as practicable after the **Named Entity** first retains a **Panel PR Firm** in connection with such **Reputation Threat** or **Reputation Attack**. Such notice must be provided no later than fourteen (14) days after the **Named Entity's** retention of such **Panel PR Firm**; provided, however, if the **Named Entity** has purchased a **Crisis Preparedness Program** from such **Panel PR Firm**, notice may be given no later than thirty (30) days after the **Named Entity's** retention of such **Panel PR Firm**.
- (b) If a **Reputation Threat** or **Reputation Attack** in response to which the **Named Entity** has first retained a **Panel PR Firm** during the **Policy Period** is reported in accordance with paragraphs (a) of this Clause, then the **Named Entity** shall be deemed to have first retained a **Panel PR Firm** during the **Policy Period** for any subsequent **Related Events**.
- (c) Each **Insured** shall give the **Insurer** full cooperation and such information as it may reasonably require.
- (d) Payment of covered **Loss** shall be made by the **Insurer** no later than ninety (90) days after the



the presentation and written acceptance by the **Insurer** of satisfactory proof of loss. The cost and expense of establishing or proving an **Insured's Loss** under this **ReputationGuard Coverage Section**, including but not limited to the cost and expense of preparing a proof of loss, shall be such **Insured's** obligation, and are not covered under this policy.

Right to Void Coverage: The **Insurer** shall have the right to void coverage under this **ReputationGuard Coverage Section**, *ab initio*, whether by rescission or otherwise, in the event that:

- (1) the application, statements, warranties or representations materially affected either the acceptance of the risk or the hazard assumed by the **Insurer** under this **Coverage Section** and any **Insured** knew that the application or such statements, warranties and representations were not accurate and complete; or
- (2) any **Insured** had knowledge of any fact or information as of the **Continuity Date** that would lead a reasonable person to believe that a **Reputation Threat** or **Reputation Attack** might occur during the **Policy Period**.



Specialty Risk Protector®

CyberEdgeSM Cyber Extortion Insurance
("Cyber Extortion Coverage Section")

This is an Occurrence Coverage Section and a First Party Coverage Section

Notice: Pursuant to Clause 1 of the **General Terms and Conditions**, the **General Terms and Conditions** are incorporated by reference into, made a part of and are expressly applicable to this **Cyber Extortion Coverage Section**, unless otherwise explicitly stated to the contrary in either the **General Terms and Conditions** or in this **Cyber Extortion Coverage Section**.

1. INSURING AGREEMENTS

With respect to the **CYBER EXTORTION INSURING AGREEMENT** of this Clause 1., solely with respect to a **Security Threat** or **Privacy Threat** first occurring during the **Policy Period** and reported to the **Insurer** pursuant to the terms of this policy, this **Cyber Extortion Coverage Section** affords the following coverage:

CYBER EXTORTION INSURING AGREEMENT

The **Insurer** shall pay all **Loss** in excess of the applicable Retention that an **Insured** incurs solely as a result of a **Security Threat** or **Privacy Threat**.

2. DEFINITIONS

- (a) **"Bodily Injury"** means physical injury, sickness or disease and, if arising out of the foregoing, mental anguish, mental injury, shock, humiliation or death at any time.
- (b) **"Computer System"** means any computer hardware, software or any components thereof that are under the ownership, operation or control of, or that are leased by, a **Company** and are linked together through a network of two or more devices accessible through the Internet, internal network or connected with data storage or other peripheral devices.
- (c) **"Confidential Information"** means any of the following in an **Organization's** care, custody or control or for which an **Organization** is legally responsible:
 - (1) information from which an individual may be uniquely and reliably identified or contacted, including, without limitation, an individual's name, address, telephone number, social security number, account relationships, account numbers, account balances, account histories and passwords;
 - (2) information concerning an individual that would be considered "nonpublic personal information" within the meaning of Title V of the Gramm-Leach Bliley Act of 1999 (Public Law 106-102, 113 Stat. 1338) (as amended) and its implementing regulations, or protected personal information under any similar federal, provincial, state, municipal, local or foreign law;
 - (3) information concerning an individual that would be considered "protected health information" or "electronic protected health information" within the Health Insurance Portability and Accountability Act of 1996 (as amended) (HIPAA) or the Health Information Technology for Economic and Clinical Health Act (HITECH Act), and their implementing regulations, or



- (4) information used for authenticating customers for normal business transactions; or
- (5) any third party's trade secrets, data, designs, interpretations, forecasts, formulas, methods, practices, processes, records, reports or other item of information that is not available to the general public.

(d) "**First Party Event**" means any **Security Threat** or **Privacy Threat**.

(e) "**Insured**" means a **Company**.

(f) "**Loss**" means:

- (1) monies paid by an **Insured** with the **Insurer's** prior written consent to terminate or end a **Security Threat** or **Privacy Threat** that would otherwise result in harm to an **Insured**; and
- (2) the costs to conduct an investigation to determine the cause of a **Security Threat** or **Privacy Threat**.

(g) "**Pollutants**" means, but is not limited to, any solid, liquid, gaseous, biological, radiological or thermal irritant or contaminant, including smoke, vapor, dust, fibers, mold, spores, fungi, germs, soot, fumes, acids, alkalis, chemicals and waste. "Waste" includes, but is not limited to, materials to be recycled, reconditioned or reclaimed and nuclear materials.

(h) "**Privacy Threat**" means any threat or connected series of threats to unlawfully use or publicly disclose **Confidential Information** misappropriated from an **Insured** for the purpose of demanding money, securities or other tangible or intangible property of value from an **Insured**.

(i) "**Property Damage**" means damage to, loss of use of or destruction of any tangible property. For purposes of this definition, "tangible property" shall not include electronic data.

(j) "**Security Threat**" means any threat or connected series of threats to commit an intentional attack against a **Computer System** for the purpose of demanding money, securities or other tangible or intangible property of value from an **Insured**.

3. EXCLUSIONS

The **Insurer** shall not be liable to make any payment for **Loss**:

(a) arising out of, based upon or attributable to any dishonest, fraudulent, criminal or malicious act, error or omission, or any intentional or knowing violation of the law, if committed by any:

- (1) past or present director, officer, trustee, general or managing partner or principal (or the equivalent positions) of a **Company**, whether acting alone or in collusion with other persons; or
- (2) past or present employee (other than those referenced in Sub-paragraph (1) above) or independent contractor employed by a **Company** if any of those referenced in Sub-paragraph (1) above participated in, approved of, or knew or had reason to know prior to the act of, or acquiesced to the dishonest, fraudulent, malicious, or criminal act committed by such employee or independent contractor that caused a direct loss to an **Insured** or any other person.

(b) arising out of, based upon or attributable to any misappropriation of an **Insured's** trade secret or infringement of patent, copyright, trademark, trade dress or any other intellectual property right.



- (c) arising out of, based upon or attributable to any (1) presence of **Pollutants**; (2) the actual or threatened discharge, dispersal, release or escape of **Pollutants**; or (3) direction or request to test for, monitor, clean up, remove, contain, treat, detoxify or neutralize pollutants, or in any way respond to or assess the effects of **Pollutants**.
- (d) for any **Bodily Injury** or **Property Damage**.
- (e) arising out of, based upon or attributable to any war, invasion, military action (whether war is declared or not), civil war, mutiny, popular or military uprising, insurrection, rebellion, revolution, military or usurped power, or any action taken to hinder or defend against any of these events.
- (f) arising out of, based upon or attributable to any **Security Threat** or **Privacy Threat** made by any government entity or public authority.
- (g) arising out of, based upon or attributable to any **Security Threat** or **Privacy Threat** or **Related Act** thereto which has been reported, or in any circumstances of which notice has been given, under any policy of which this **Cyber Extortion Coverage Section** is a renewal or replacement or which it may succeed in time.

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Specialty Risk Protector®

Media Content Insurance ("MEDIA CONTENT COVERAGE SECTION")

THIS IS A CLAIMS MADE AND REPORTED COVERAGE SECTION AND A THIRD PARTY COVERAGE SECTION

Notice: Pursuant to Clause 1 of the **General Terms and Conditions**, the **General Terms and Conditions** are incorporated by reference into, made a part of and are expressly applicable to this **Media Content Coverage Section**, unless otherwise explicitly stated to the contrary in the **General Terms and Conditions** or in this **Media Content Coverage Section**.

1. INSURING AGREEMENTS

With respect to the **MEDIA CONTENT INSURING AGREEMENT**, the **DEFENCE** provisions and the **SETTLEMENT** provisions of this Clause 1., solely with respect to **Claims** first made against an **Insured** during the **Policy Period** or **Discovery Period** (if applicable) and reported to the **Insurer** pursuant to the terms of this policy, this **Media Content Coverage Section** affords the following coverage:

MEDIA CONTENT INSURING AGREEMENT

The **Insurer** shall pay on an **Insured's** behalf all **Loss** in excess of the applicable Retention that such **Insured** is legally obligated to pay resulting from a **Claim** alleging a **Wrongful Act**.

DEFENCE

- (a) The **Insurer** has the right and duty to defend a **Suit** for a **Wrongful Act**, even if the **Suit** is groundless, false or fraudulent.
- (b) The **Insurer** has the right to investigate any **Claim**.
- (c) The **Insurer's** duty to defend ends if an **Insured** refuses to consent to a settlement that the **Insurer** recommends pursuant to the **SETTLEMENT** provision below and that the claimant will accept. As a consequence of such **Insured's** refusal, the **Insurer's** liability shall not exceed the amount for which the **Insurer** could have settled such **Claim** had such **Insured** consented, plus **Defence Costs** incurred prior to the date of such refusal, plus 50% of **Defence Costs** incurred with the **Insurer's** prior written consent after the date of such refusal. This Clause shall not apply to any settlement where the total incurred **Loss** does not exceed the applicable Retention amount.

SETTLEMENT

- (a) The **Insurer** has the right, with the written consent of an **Insured**, to settle any **Claim** if the **Insurer** believes that it is proper.

- (b) An **Insured** may settle any **Claim** on behalf of all **Insureds** to which this insurance applies and which are subject to one Retention amount where the total incurred **Loss** does not exceed the Retention amount.

2. DEFINITIONS

- (a) "**Bodily Injury**" means physical injury, sickness or disease, and, if arising out of the foregoing, mental anguish, mental injury, shock, humiliation or death at any time.
- (b) "**Claim**" means:
- (1) a written demand for money, services, non-monetary relief or injunctive relief;
 - (2) a written request for mediation or arbitration, or to toll or waive an applicable statute of limitations; or
 - (3) a **Suit**.
- (c) "**Defence Costs**" means all reasonable and necessary fees charged by an attorney or lawyer appointed by the **Insurer** (unless otherwise provided for by this policy) in connection with any **Suit** brought against an **Insured** alleging a **Wrongful Act**, as well as all other reasonable and necessary fees, costs and expenses (including premiums for any appeal bond, attachment bond or similar bond arising out of a covered judgment, but without any obligation to apply for or furnish any such bond) incurred in the defence or investigation of a **Claim** by the **Insurer** or by an **Insured** with the **Insurer's** written consent. **Defence Costs** shall not include: (i) compensation of any natural person **Insured**; or (ii) any fees, costs or expenses incurred prior to the time that a **Claim** is first made against an **Insured**.
- (d) "**Insured**" means:
- (1) a **Company**;
 - (2) any past, present or future officer, director, trustee or employee of a **Company** (and in the event that a **Company** is a partnership, limited liability partnership or limited liability company, then any general or managing partner or principal thereof), but only while acting within the scope of his or her duties in connection with the provision of **Material** for such **Company**;
 - (3) any independent contractors, agents, third-party distributors, licensees and sub-licensees, but only:
 - (i) with respect to **Material** that they provide to a **Company**; and
 - (ii) when such **Company** has, prior to the commission of a **Wrongful Act**, expressly agreed in writing to indemnify and defend such party against liability arising out of such **Wrongful Act**;
 - (4) any person or entity that a **Company** has expressly agreed in writing, prior to the commission of a **Wrongful Act**, to add as an **Insured** under this policy, but only for the **Wrongful Acts** of a **Company**; and
 - (5) any other person or entity listed as **Insured** by endorsement to this policy, but only for the **Wrongful Acts** of a **Company**.
- (e) "**Loss**" means compensatory damages, judgments, settlements, pre-judgment and post-judgment interest and **Defence Costs**, including punitive, exemplary and multiple damages where insurable by the applicable law which most favors coverage for such punitive, exemplary and multiple damages.

- (f) **"Material"** means media content in any form, including, without limitation, advertising and written, printed, video, electronic, digital or digitized content, of:
- (1) broadcasts, including without limitation, broadcasts via television, motion picture, cable, satellite television, radio, wireless devices or the Internet; or
 - (2) publications, including without limitation, publications via newspaper, newsletter, magazine, book and other literary, monograph, brochure, directory, screen play, film script, playwright and video publications.
- (g) **"Pollutants"** means, but is not limited to, any solid, liquid, gaseous, biological, radiological or thermal irritant or contaminant, including smoke, vapor, dust, fibers, mold, spores, fungi, germs, soot, fumes, acids, alkalis, chemicals and waste. "Waste" includes, but is not limited to, materials to be recycled, reconditioned or reclaimed and nuclear materials.
- (h) **"Property Damage"** means damage to, loss of use of or destruction of any tangible property. For purposes of this definition, "tangible property" shall not include electronic data.
- (i) **"Suit"** means a civil proceeding for monetary, non-monetary or injunctive relief, which is commenced by service of a complaint, writ of summons, statement of claim, petition or other origination process. **Suit** includes a binding arbitration proceeding to which an **Insured** must submit or does submit with the **Insurer's** consent.
- (j) **"Third Party Event"** means any **Wrongful Act**.
- (k) **"Wrongful Act"** means any act, error, omission, negligent supervision of an employee, misstatement or misleading statement by an **Insured** in connection with **Material** occurring on or after the **Retroactive Date** and prior to the end of the **Policy Period** (including without limitation, any of the foregoing conduct in the gathering, collection, broadcast, creation, distribution, exhibition, performance, preparation, printing, production, publication, release, display, research, or serialization of **Material** by an **Insured**) that results solely in:
- (1) infringement of copyright, title, slogan, trademark, trade name, trade dress, mark, service mark, service name, infringement of domain name, deep-linking or framing, including, without limitation, unfair competition in connection with such conduct;
 - (2) plagiarism, piracy or misappropriation or theft of ideas under implied contract or other misappropriation or theft of ideas or information; including, without limitation, unfair competition in connection with such conduct;
 - (3) invasion, infringement or interference with rights of privacy or publicity, false light, public disclosure of private facts, intrusion and commercial appropriation of name, persona or likeness; including, without limitation, emotional distress or mental anguish in connection with such conduct;
 - (4) defamation, libel, slander, product disparagement or trade libel or other tort related to disparagement or harm to character or reputation; including, without limitation, unfair competition, emotional distress or mental anguish in connection with such conduct;
 - (5) wrongful entry or eviction, trespass, eavesdropping or other invasion of the right to private occupancy, or false arrest, detention or imprisonment or malicious prosecution; including, without limitation, any emotional distress or mental anguish in connection with such conduct; or

- (6) negligent or intentional infliction of emotional distress, outrage or *prima facie* tort in connection with **Material**.

3. EXCLUSIONS

This policy shall not cover **Loss** in connection with a **Claim** made against an **Insured**:

- (a) alleging, arising out of, based upon or attributable to a dishonest, fraudulent, criminal or malicious act, error or omission, or any intentional or knowing violation of the law; provided, however, the **Insurer** will defend **Suits** that allege any of the foregoing conduct, and that are not otherwise excluded, until there is a final, non-appealable judgment or adjudication against an **Insured** as to such conduct in any action or proceeding other than an action or proceeding initiated by the **Insurer** to determine coverage under this policy, at which time the **Insureds** shall reimburse the **Insurer** for **Defence Costs**.
- (b) alleging, arising out of, based upon or attributable to any misappropriation of trade secret or infringement of patent.
- (c) alleging, arising out of, based upon or attributable to any (1) presence of **Pollutants**, (2) the actual or threatened discharge, dispersal, release or escape of **Pollutants**, or (3) direction or request to test for, monitor, clean up, remove, contain, treat, detoxify or neutralize pollutants, or in any way respond to or assess the effects of **Pollutants**.
- (d) alleging, arising out of, based upon or attributable to any **Bodily Injury** or **Property Damage**.
- (e) alleging, arising out of, based upon or attributable to any:
 - (1) fire, smoke, explosion, lightning, wind, water, flood, earthquake, volcanic eruption, tidal wave, landslide, hail, act of God or any other physical event, however caused;
 - (2) strikes or similar labor action, war, invasion, military action (whether war is declared or not), civil war, mutiny, civil commotion, popular or military uprising, insurrection, rebellion, revolution, military or usurped power, or any action taken to hinder or defend against any of these events;
 - (3) electrical or mechanical failures of infrastructure not under the control of an **Insured**, including any electrical power interruption, surge, brownout or blackout;
 - (4) failure of telephone lines, data transmission lines or other telecommunications or networking infrastructure not under the control of an **Insured**; or
 - (5) satellite failure.
- (f) alleging, arising out of, based upon or attributable to any:
 - (1) purchase, sale, or offer or solicitation of an offer to purchase or sell securities;
 - (2) violation of any securities law, including the Securities Act of 1933, as amended, or the Securities Exchange Act of 1934, as amended, the Ontario Securities Act, R.S.O. 1990 c. S.4, as amended, or any regulation promulgated under the foregoing statutes, or any federal, provincial, state, municipal or local laws similar to the foregoing statutes (including "Blue Sky" laws), whether such law is statutory, regulatory or common law;
 - (3) violation of the Organized Crime Control Act of 1970 (commonly known as Racketeer Influenced And Corrupt Organizations Act, or "RICO"), as amended, or any regulation

promulgated thereunder or any federal, provincial, state, municipal or local, Canadian or foreign law similar to the foregoing, whether such law is statutory, regulatory or common law;

- (4) antitrust violations, restraint of trade, unfair competition, or violations of the Sherman Act, Clayton Act or the Robinson-Patman Act, as amended; provided, however, that this exclusion shall not apply to unfair competition as referenced in sub-paragraphs (1), (2) or (4) of the definition of **Wrongful Act**; or
 - (5) violation of the Telephone Consumer Protection Act of 1991, as amended.
- (g) alleging, arising out of, based upon or attributable to an **Insured's** employment of any individual or any of an **Insured's** employment practices (including, without limitation, wrongful dismissal, discharge or termination, discrimination, harassment, retaliation or other employment-related claim).
- (h) alleging, arising out of, based upon or attributable to any unfair or deceptive business practices, including, without limitation, violations of any local, municipal, state, provincial or federal consumer protection laws; provided, however, this exclusion shall not apply to **Claims** in connection with the collection of **Material**.
- (i) brought by or on behalf of:
- (1) any **Insured**;
 - (2) any business entity that is controlled, managed or operated, directly or indirectly, in whole or in part, by an **Insured**; or
 - (3) any parent company, **Subsidiary**, successor or assignee of an **Insured**, or any person or entity affiliated with an **Insured** or such business entity through common **Management Control**;

provided, however, this exclusion shall not apply to an **Insured** as described in Sub-paragraph (d)(4) or (d)(5) of the definition of **Insured**.

- (j) for any of the following:
- (1) the return of an **Insured's** fees or compensation;
 - (2) any profit or advantage to which an **Insured** is not legally entitled;
 - (3) an **Insured's** expenses or charges, including employee compensation and benefits, overhead, over-charges or cost over-runs;
 - (4) civil or criminal fines or penalties imposed against an **Insured** and any matters deemed uninsurable under the law pursuant to which this policy shall be construed;
 - (5) an **Insured's** costs and expenses of complying with any injunctive or other form of equitable relief;
 - (6) taxes incurred by an **Insured**;
 - (7) the amounts for which an **Insured** is not financially liable or which are without legal recourse to any **Insured**;
 - (8) production costs or the cost of recall, reproduction, reprinting, return or correction of **Material** by any person or entity; or
 - (9) amounts an **Insured** agrees to pay pursuant to a contract, including without limitation, liquidated damages, setoffs or penalties.

- (k) alleging, arising out of, based upon or attributable to any obligation that an **Insured** has under a contract, other than liability from a **Wrongful Act** where such liability has been assumed by an **Insured** in the form of a written hold harmless or indemnity agreement that predates the first such **Wrongful Act**.
- (l) alleging, arising out of, based upon or attributable to any **Wrongful Acts**, or any **Related Acts** thereto, alleged or contained in any **Claim** which has been reported, or in any circumstances of which notice has been given, under any policy of which this **Media Content Coverage Section** is a renewal or replacement or which it may succeed in time.
- (m) alleging, arising out of, based upon or attributable to any **Wrongful Act** occurring prior to the **Retroactive Date** or any **Related Act** thereto, regardless of when such **Related Act** occurs.
- (n) alleging, arising out of, based upon or attributable to any **Wrongful Act** occurring prior to the **Continuity Date**, or any **Related Act** thereto (regardless of when such **Related Act** occurs), if, as of the **Continuity Date**, an **Insured** knew or could have reasonably foreseen that such **Wrongful Act** did or would result in a **Claim** against such **Insured**.
- (o) alleging, arising out of, based upon or attributable to any breach of fiduciary duty, responsibility, or obligation in connection with any employee benefit or pension plan, including violations of the responsibilities, obligations or duties imposed upon fiduciaries by the Employee Retirement Income Security Act of 1974 ("ERISA"), as amended, the Pension Benefits Standards Act, R.S.C. 1985, c. 32, the Ontario Pension Benefits Act, R.S.O. c. P.8 and any equivalent provincial legislation, or similar statutory or common law of the United States of America, Canada or any state, province or jurisdiction therein.
- (p) alleging, arising out of, based upon or attributable to (1) false advertising or misrepresentation in advertising of an **Insured's** products or services, (2) any failure of goods, products or services to conform with an advertised quality or performance, or (3) any infringement of trademark or trade dress by any goods, products or services, including any goods or products displayed or contained in any **Material**.
- (q) brought by or on behalf of: (i) ASCAP, SESAC, BMI, RIAA, SOCAN or other music licensing organizations; (ii) the Federal Trade Commission; (iii) the Department of Health and Human Services or Office of Civil Rights; (iv) the Federal Communications Commission; or (v) any other federal, provincial, state, local or foreign government, agency or office.
- (r) brought by or on behalf of any independent contractor, third-party distributor, licensee, sub-licensee, joint venturer, venture partner, any employee of the foregoing, or any employee or agent of an **Insured** alleging, arising out of, based upon or attributable to disputes over the (i) ownership or exercise of rights in **Material**; or (ii) services supplied by such independent contractor, third-party distributor, licensee, sub-licensee, joint venturer, venture partner or employee or agent.
- (s) alleging, arising out of, based upon or attributable to any infringement of copyright related to software, source code or software license; provided, however, that this exclusion shall not apply to any otherwise covered **Claim** alleging an infringement of copyright, trademark or servicemark with respect to **Material** generated or displayed in a publication or broadcast by the use of software.

(t) alleging, arising out of, based upon or attributable to the failure to protect information used for authenticating or identifying an **Insured's** customers, vendors, suppliers or independent contractors in the normal course of an **Insured's** business.

(u) alleging, arising out of, based upon or attributable to any:

- (1) accounting or recovery of profits, royalties, fees or other monies claimed to be due from an **Insured**, or any **Claim** brought by any such party against an **Insured** claiming excessive or unwarranted fees, compensation or charges of any kind made by an **Insured**; or
- (2) licensing fees or royalties ordered, directed or agreed to be paid by an **Insured** pursuant to a judgment, arbitration award, settlement agreement or similar order or agreement, for the continued use of a person or entity's copyright, title, slogan, trademark, trade name, trade dress, service mark, service name, or other intellectual property right.

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Specialty Risk Protector®

CyberEdgeSM Security and Privacy Liability Insurance
("Security and Privacy Coverage Section")

This is a Claims Made and Reported Coverage Section and a Third Party Coverage Section

Notice: Pursuant to Clause 1 of the **General Terms and Conditions**, the **General Terms and Conditions** are incorporated by reference into, made a part of and are expressly applicable to this **Security and Privacy Coverage Section**, unless otherwise explicitly stated to the contrary in the **General Terms and Conditions** or in this **Security and Privacy Coverage Section**.

1. INSURING AGREEMENTS

With respect to the **SECURITY AND PRIVACY INSURING AGREEMENT**, the **DEFENCE** provisions and the **SETTLEMENT** provisions of this Clause 1., solely with respect to **Claims** first made against an **Insured** during the **Policy Period** or the **Discovery Period** (if applicable) and reported to the **Insurer** pursuant to the terms of this policy, this **Security and Privacy Coverage Section** affords the following coverage:

SECURITY AND PRIVACY INSURING AGREEMENT

The **Insurer** shall pay on an **Insured's** behalf all **Loss** in excess of the applicable Retention that such **Insured** is legally obligated to pay resulting from a **Claim** alleging a **Security Failure** or a **Privacy Event**.

DEFENCE

- (a) The **Insurer** has the right and duty to defend a **Suit** or **Regulatory Action** alleging a **Security Failure** or a **Privacy Event**, even if the **Suit** or **Regulatory Action** is groundless, false or fraudulent.
- (b) The **Insurer** has the right to investigate any **Claim**.
- (c) The **Insurer's** duty to defend ends if an **Insured** refuses to consent to a settlement that the **Insurer** recommends pursuant to the **SETTLEMENT** provision below and that the claimant will accept. As a consequence of such **Insured's** refusal, the **Insurer's** liability shall not exceed the amount for which the **Insurer** could have settled such **Claim** had such **Insured** consented, plus **Defence Costs** incurred prior to the date of such refusal, plus 50% of **Defence Costs** incurred with the **Insurer's** prior written consent after the date of such refusal. This Clause shall not apply to any settlement where the total incurred **Loss** does not exceed the applicable Retention amount.

SETTLEMENT

- (a) The **Insurer** has the right, with the written consent of an **Insured**, to settle any **Claim** if the **Insurer** believes that it is proper.
- (b) An **Insured** may settle any **Claim** on behalf of all **Insureds** to which this insurance applies and which are subject to one Retention amount where the total incurred **Loss** does not exceed the Retention amount.

2. DEFINITIONS

- (a) **"Bodily Injury"** means physical injury, sickness or disease, and, if arising out of the foregoing, mental anguish, mental injury, shock, humiliation or death at any time.
- (b) **"Claim"** means:
- (1) a written demand for money, services, non-monetary relief or injunctive relief;
 - (2) a written request for mediation or arbitration, or to toll or waive an applicable statute of limitations;
 - (3) a **Suit**; or
 - (4) a **Regulatory Action**.
- (c) **"Computer System"** means any computer hardware, software or any components thereof that are linked together through a network of two or more devices accessible through the Internet, internal network or connected with data storage or other peripheral devices (including, without limitation, wireless and mobile devices), and are under ownership, operation or control of, or leased by, a **Company**.

For this **Coverage Section**, **"Computer System"** also means "cloud computing" and other hosted resources operated by a third party service provider for the purpose of providing hosted computer resources to a **Company** as provided in a written contract between such third party and a **Company**.

- (d) **"Confidential Information"** means any of the following in a **Company's** or **Information Holder's** care, custody or control or for which a **Company** or **Information Holder** is legally responsible:
- (1) information from which an individual may be uniquely and reliably identified or contacted, including, without limitation, an individual's name, address, telephone number, social security number, account relationships, account numbers, account balances, account histories and passwords;
 - (2) information concerning an individual that would be considered "nonpublic personal information" within the meaning of Title V of the Gramm-Leach Bliley Act of 1999 (Public Law 106-102, 113 Stat. 1338) (as amended) and its implementing regulations, or protected personal information under any similar federal, provincial, state, municipal, local or foreign law;
 - (3) information concerning an individual that would be considered "protected health information" or "electronic protected health information" within the Health Insurance Portability and Accountability Act of 1996 (as amended) (HIPAA) or the Health Information Technology for Economic and Clinical Health Act (HITECH Act), and their implementing regulations, or protected health-related information under any similar federal, provincial, state, municipal, local or foreign law;
 - (4) information used for authenticating customers for normal business transactions; or
 - (5) any third party's trade secrets, data, designs, interpretations, forecasts, formulas, methods, practices, processes, records, reports or other item of information that is not available to the general public.
- (e) **"Defence Costs"** means all reasonable and necessary fees charged by an attorney, lawyer, solicitor or barrister appointed by the **Insurer** (unless otherwise provided for by this policy) in connection with any **Suit** or **Regulatory Action** brought against an **Insured**, as well as all other reasonable and necessary fees, costs and expenses (including premiums for any appeal bond,

attachment bond or similar bond arising out of a covered judgment, but without any obligation to apply for or furnish any such bond) incurred in the defence or investigation of a **Claim** by the **Insurer** or by an **Insured** with the **Insurer's** written consent. **Defence Costs** shall not include: (i) compensation of any natural person **Insured**; or (ii) any fees, costs or expenses incurred prior to the time that a **Claim** is first made against an **Insured**.

- (f) "**Information Holder**" means a third party that:
- (1) a **Company** has provided **Confidential Information** to; or
 - (2) has received **Confidential Information** on behalf of a **Company**.
- (g) "**Insured**" means:
- (1) a **Company**;
 - (2) any past, present or future officer, director, trustee or employee of a **Company** acting in their capacity as such (and in the event a **Company** is a partnership, limited liability partnership or limited liability company, then any general or managing partner or principal thereof acting in their capacity as such); and
 - (3) any entity which a **Company** is required by contract to add as an **Insured** under this **Security and Privacy Coverage Section**, but only for the acts of such **Company** that result in a **Security Failure** or a **Privacy Event**.
- (h) "**Loss**" means compensatory damages, judgments, settlements, pre-judgment and post-judgment interest and **Defence Costs**, including without limitation:
- (1) punitive, exemplary and multiple damages where insurable by the applicable law which most favors coverage for such punitive, exemplary and multiple damages;
 - (2) civil fines or penalties imposed by a governmental agency and arising from a **Regulatory Action**, unless the civil fine or penalty imposed is uninsurable under the law of the jurisdiction imposing such fine or penalty;
 - (3) any monetary amounts an **Insured** is required by law or has agreed to by settlement to deposit into a consumer redress fund; and
 - (4) amounts payable in connection with a **PCI-DSS Assessment**.
- (i) "**PCI Data Security Standards**" means generally accepted and published Payment Card Industry standards for data security (commonly referred to as "PCI-DSS").
- (j) "**PCI-DSS Assessment**" means any written demand received by an **Insured** from a Payment Card Association (e.g., MasterCard, Visa, American Express) or bank processing payment card transactions (i.e., an "Acquiring Bank") for a monetary assessment (including a contractual fine or penalty) in connection with an **Insured's** non-compliance with **PCI Data Security Standards** which resulted in a **Security Failure** or **Privacy Event**.
- (k) "**Pollutants**" means, but is not limited to, any solid, liquid, gaseous, biological, radiological or thermal irritant or contaminant, including smoke, vapor, dust, fibers, mold, spores, fungi, germs, soot, fumes, acids, alkalis, chemicals and waste. "Waste" includes, but is not limited to, materials to be recycled, reconditioned or reclaimed and nuclear materials.
- (l) "**Privacy Event**" means the following occurring on or after the **Retroactive Date** and prior to the end of the **Policy Period**:



- (1) any failure to protect **Confidential Information** (whether by "phishing," other social engineering technique or otherwise) including, without limitation, that which could result in an identity theft or other wrongful emulation of the identity of an individual or corporation;
 - (2) any failure to disclose an event referenced in Sub-paragraph (1) above in violation of any **Security Breach Notice Law**;
 - (3) any unintentional failure of an **Insured** to comply with those parts of a **Company's** privacy policy that (a) prohibit or restrict the disclosure or sale of **Confidential Information** by an **Insured**, or (b) require an **Insured** to allow an individual to access or correct **Confidential Information** about such individual; or
 - (4) any violation of federal, provincial, state, municipal, foreign or local privacy statute alleged in connection with a **Claim** for failure described in Sub-paragraphs (1) or (2) above.
- (m) **"Property Damage"** means damage to, loss of use of or destruction of any tangible property. For purposes of this definition, "tangible property" shall not include electronic data.
- (n) **"Regulatory Action"** means a request for information, civil investigative demand or civil proceeding brought by or on behalf of a governmental agency, including requests for information related thereto.
- (o) **"Security Breach Notice Law"** means any federal, provincial, state, municipal, foreign or local statute or regulation that requires an entity collecting or storing **Confidential Information**, or any entity that has provided **Confidential Information** to an **Information Holder**, to provide notice of any actual or potential unauthorized access by others to such **Confidential Information**, including but not limited to, the statute known as California SB 1386 (§1798.82, *et. seq.* of the California Civil Code).
- (p) **"Security Failure"** means the following occurring on or after the **Retroactive Date** and prior to the end of the **Policy Period**:
- (1) a failure or violation of the security of a **Computer System** including, without limitation, that which results in or fails to mitigate any unauthorized access, unauthorized use, denial of service attack or receipt or transmission of a malicious code; or
 - (2) failure to disclose an event referenced in Sub-paragraph (1) above in violation of any **Security Breach Notice Law**.
- "Security Failure"** includes any such failure or violation, resulting from the theft of a password or access code from an **Insured's** premises, the **Computer System**, or an officer, director or employee of a **Company** by non-electronic means.
- (q) **"Suit"** means a civil proceeding for monetary, non-monetary or injunctive relief, which is commenced by service of a complaint, writ of summons, statement of claim, petition or other originating process. **Suit** includes a binding arbitration proceeding to which an **Insured** must submit or does submit with the **Insurer's** consent.

(r) "Third Party Event" means a **Security Failure** or **Privacy Event**.

3. EXCLUSIONS

This policy shall not cover **Loss** in connection with a **Claim** made against an **Insured**:

(a) alleging, arising out of, based upon or attributable to any dishonest, fraudulent, criminal or malicious act, error or omission, or any intentional or knowing violation of the law, if committed by any:

- (1) past or present director, officer, trustee, general or managing partner or principal (or the equivalent positions) of a **Company**, whether acting alone or in collusion with other persons; or
- (2) past or present employee or independent contractor employed by a **Company** or an **Information Holder** if any person referenced in Sub-paragraph (1) above knew or had reason to know prior to the act of, participated in, approved of or acquiesced to the dishonest, fraudulent, malicious, or criminal act committed by such employee or independent contractor that caused a direct loss to an **Insured** or any other person;

provided, however, the **Insurer** will defend **Suits** that allege any of the foregoing conduct by such person, and that are not otherwise excluded, until there is a final, non-appealable judgment or adjudication as to such conduct in any action or proceeding other than an action or proceeding initiated by the **Insurer** to determine coverage under this policy, at which time the **Insureds** shall reimburse the **Insurer** for **Defence Costs**.

(b) alleging, arising out of, based upon or attributable to any infringement of patent, or any misappropriation of a trade secret by an **Insured**.

(c) alleging, arising out of, based upon or attributable to any (1) presence of **Pollutants**, (2) the actual or threatened discharge, dispersal, release or escape of **Pollutants**, or (3) direction or request to test for, monitor, clean up, remove, contain, treat, detoxify or neutralize pollutants, or in any way respond to or assess the effects of **Pollutants**.

(d) alleging, arising out of, based upon or attributable to any **Bodily Injury** or **Property Damage**.

(e) alleging, arising out of, based upon or attributable to any:

- (1) fire, smoke, explosion, lightning, wind, water, flood, earthquake, volcanic eruption, tidal wave, landslide, hail, act of God or any other physical event, however caused;
- (2) strikes or similar labor action, war, invasion, military action (whether war is declared or not), civil war, mutiny, popular or military uprising, insurrection, rebellion, revolution, military or usurped power, or any action taken to hinder or defend against any of these events;
- (3) electrical or mechanical failures of infrastructure not under the control of an **Insured**, including any electrical power interruption, surge, brownout or blackout; provided, however, this Sub-paragraph (3) shall not apply to a **Security Failure** or a **Privacy Event** that is caused by such electrical or mechanical failure;
- (4) failure of telephone lines, data transmission lines or other telecommunications or networking infrastructure not under the control of an **Insured**; provided, however, this Sub-paragraph (4) shall not apply to a **Security Failure** or a **Privacy Event** that is caused by such failure of telephone lines, data transmission lines or other telecommunication or networking infrastructure; or

(5) satellite failure.

(f) alleging, arising out of, based upon or attributable to any:

- (1) purchase, sale, or offer or solicitation of an offer to purchase or sell securities;
- (2) violation of any securities law, including the Securities Act of 1933, as amended, or the Securities Exchange Act of 1934, as amended, the Ontario Securities Act, R.S.O. 1990 c. S.4, as amended, or any regulation promulgated under the foregoing statutes, or any federal, provincial, state, municipal or local laws similar to the foregoing statutes (including "Blue Sky" laws), whether such law is statutory, regulatory or common law; provided, however, this exclusion does not apply to a **Claim** alleging a **Privacy Event** in violation of Regulation S-P (17 C.F.R. § 248); provided further, however, this exclusion does not apply to a **Claim** alleging a failure to disclose a **Security Failure** or **Privacy Event** in violation of any **Security Breach Notice Law**; or
- (3) violation of the Organized Crime Control Act of 1970 (commonly known as Racketeer Influenced And Corrupt Organizations Act, or "RICO"), as amended, or any regulation promulgated thereunder or any federal, provincial, state, municipal, local, Canadian or foreign law similar to the foregoing, whether such law is statutory, regulatory or common law;

(g) alleging, arising out of, based upon or attributable to an **Insured's** employment of any individual or any of an **Insured's** employment practices (including, without limitation, wrongful dismissal, discharge or termination, discrimination, harassment, retaliation or other employment-related claim); provided, however, this exclusion shall not apply to any **Claim** by an individual to the extent such individual is alleging (1) a **Privacy Event** in connection with such individual's employment or application for employment with a **Company**, or (2) a failure to disclose a **Security Failure** or **Privacy Event** in violation of any **Security Breach Notice Law**.

(h) alleging, arising out of, based upon or attributable to antitrust, unfair competition, restraint of trade, including, without limitation, violations of any local, municipal, state, provincial or federal law regulating such conduct, or that is brought by or on behalf of the Federal Trade Commission ("FTC") or any other federal, provincial, state, municipal or local government agency, or foreign government agency; provided, however, solely with respect to unfair competition, this Paragraph (h) shall not apply to any **Loss** arising out of a covered **Regulatory Action**.

(i) brought by or on behalf of:

- (1) any **Insured**;
- (2) any business entity that is controlled, managed or operated, directly or indirectly, in whole or in part, by an **Insured**; or
- (3) any parent company, **Subsidiary**, successor or assignee of an **Insured**, or any person or entity affiliated with an **Insured** or such business entity through common **Management Control**;

provided, however, this exclusion shall not apply to (i) an **Insured** as described in Sub-paragraph (3) of the definition of **Insured**; or (ii) an **Insured** as described in Sub-paragraph (2) of the definition of **Insured** but only to the extent such **Insured** is alleging a **Privacy Event** or a failure to disclose a **Security Failure** or **Privacy Event** in violation of any **Security Breach Notice Law**.

(j) for any of the following:

- (1) the return of an **Insured's** fees or compensation;

- (2) any profit or advantage to which an **Insured** is not legally entitled;
 - (3) an **Insured's** expenses or charges, including employee compensation and benefits, overhead, over-charges or cost over-runs;
 - (4) an **Insured's** cost of providing, correcting, re-performing or completing any services;
 - (5) civil or criminal fines or penalties imposed by law against an **Insured** and any matters deemed uninsurable under the law pursuant to which this policy shall be construed; provided, however, this Sub-paragraph (5) shall not apply to (a) any monetary amounts an **Insured** is required by law or has agreed to by settlement to deposit into a consumer redress fund, or (b) any civil fine or penalty imposed by a governmental agency arising from a **Regulatory Action**, unless the civil fine or penalty imposed is uninsurable under the law of the jurisdiction imposing such fine or penalty;
 - (6) an **Insured's** costs and expenses of complying with any injunctive or other form of equitable relief;
 - (7) taxes incurred by an **Insured**;
 - (8) the amounts for which an **Insureds** is not financially liable or which are without legal recourse to any **Insured**;
 - (9) amounts an **Insured** agrees to pay pursuant to a contract, including without limitation, liquidated damages, setoffs or penalties; provided, however, this exclusion shall not apply to any **PCI-DSS Assessment**.
- (k) alleging, arising out of, based upon or attributable to any obligation an **Insured** has under contract; provided, however, this exclusion shall not apply to:
- (1) the obligation to prevent a **Security Failure** or a **Privacy Event**, including without limitation, whether same is in violation of an implied or statutory standard of care;
 - (2) liability an **Insured** would have in the absence of such contract or agreement;
 - (3) the obligation to comply with **PCI Data Security Standards**; or
 - (4) with respect to a **Privacy Event**, any liability or obligation under the confidentiality or non-disclosure provisions of any agreement;
- (l) alleging, arising out of, based upon or attributable to any **Security Failure** or **Privacy Event**, or any **Related Acts** thereto, alleged or contained in any **Claim** which has been reported, or in any circumstances of which notice has been given, under any policy of which this **Security and Privacy Coverage Section** is a renewal or replacement or which it may succeed in time.
- (m) alleging, arising out of, based upon or attributable to any **Security Failure** or **Privacy Event** occurring prior to the **Retroactive Date** or any **Related Acts** thereto, regardless of when such **Related Act** occurs.
- (n) alleging, arising out of, based upon or attributable to any **Security Failure** or **Privacy Event** occurring prior to the **Continuity Date**, or any **Related Act** thereto (regardless of when such **Related Act** occurs), if, as of the **Continuity Date**, an **Insured** knew or could have reasonably foreseen that such **Security Failure** or a **Privacy Event** did or would result in a **Claim** against an **Insured**.



- (o) alleging, arising out of, based upon or attributable to any seizure, confiscation, nationalization, or destruction of a **Computer System** by order of any governmental or public authority.
- (p) for (1) the theft of money or securities from an **Insured**; or (2) the transfer or loss of money or securities from or to an **Insured's** accounts or accounts under an **Insured's** control, including customer accounts. For purposes of this Sub-paragraph (p), the term "accounts" shall include, but are not limited to, deposit, credit, debit, prepaid and securities brokerage accounts.

4. LIMIT OF LIABILITY

The following provisions shall apply in addition to the provisions of Clause 4. **LIMIT OF LIABILITY** of the **General Terms and Conditions**:

Notwithstanding anything in the policy to the contrary, the maximum liability of the **Insurer** for all **Loss** arising from a **Regulatory Action** shall be the **Regulatory Action Sublimit of Liability** set forth in Item 6 of the Declarations. This amount shall be part of and not in addition to the **Limit of Liability** and any applicable **Sublimit of Liability**.

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Specialty Risk Protector®

CyberEdgeSM Security Failure/Privacy Event Management Insurance
("Event Management Coverage Section")

This is a Discovery Coverage Section and a First Party Coverage Section

Notice: Pursuant to Clause 1 of the **General Terms and Conditions**, the **General Terms and Conditions** are incorporated by reference into, made a part of and are expressly applicable to this **Event Management Coverage Section**, unless otherwise explicitly stated to the contrary in the **General Terms and Conditions** or in this **Event Management Coverage Section**.

1. INSURING AGREEMENTS

With respect to the **EVENT MANAGEMENT INSURING AGREEMENT** of this Clause 1., solely with respect to a **Security Failure** or **Privacy Event** first discovered during the **Policy Period** and reported to the **Insurer** pursuant to the terms of this policy, this **Event Management Coverage Section** affords the following coverage:

EVENT MANAGEMENT INSURING AGREEMENT

The **Insurer** shall pay all **Loss**, in excess of the applicable Retention, that an **Insured** incurs solely as a result of an alleged **Security Failure** or **Privacy Event** that has actually occurred or is reasonably believed by such **Insured** and the **Insurer** to have occurred.

2. DEFINITIONS

- (a) **"Bodily Injury"** means physical injury, sickness or disease and, if arising out of the foregoing, mental anguish, mental injury, shock, humiliation or death at any time.
- (b) **"Computer System"** means any computer hardware, software or any components thereof that are linked together through a network of two or more devices accessible through the Internet, internal network or connected with data storage or other peripheral devices (including, without limitation, wireless and mobile devices), and are under ownership, operation or control of, or leased by, a **Company**.

For this **Coverage Section**, **"Computer System"** also means "cloud computing" and other hosted resources operated by a third party service provider for the purpose of providing hosted computer resources to a **Company** as provided in a written contract between such third party and a **Company**.

- (c) **"Confidential Information"** means any of the following in a **Company's** or **Information Holder's** care, custody or control or for which a **Company** or **Information Holder** is legally responsible:
 - (1) information from which an individual may be uniquely and reliably identified or contacted, including, without limitation, an individual's name, address, telephone number, social security number, account relationships, account numbers, account balances, account histories and passwords;



- (2) information concerning an individual that would be considered "nonpublic personal information" within the meaning of Title V of the Gramm-Leach Bliley Act of 1999 (Public Law 106-102, 113 Stat. 1338) (as amended) and its implementing regulations, or protected personal information under any similar federal, provincial, state, municipal, local or foreign law;
 - (3) information concerning an individual that would be considered "protected health information" or "electronic protected health information" within the Health Insurance Portability and Accountability Act of 1996 (as amended) (HIPAA) or the Health Information Technology for Economic and Clinical Health Act (HITECH Act) and their implementing regulations, or protected health-related information under any similar federal, provincial, state, municipal, local or foreign law;
 - (4) information used for authenticating customers for normal business transactions; or
 - (5) any third party's trade secrets, data, designs, interpretations, forecasts, formulas, methods, practices, processes, records, reports or other item of information that is not available to the general public.
- (d) **"Electronic Data"** means any software or electronic data stored electronically on a **Computer System**, including without limitation **Confidential Information**.
- (e) **"First Party Event"** means any **Privacy Event** or **Security Failure**.
- (f) **"Information Holder"** means a third party that:
- (1) an **Insured** has provided **Confidential Information** to; or
 - (2) has received **Confidential Information** on behalf of a **Company**.
- (g) **"Insured"** means a **Company**.
- (h) **"Loss"** means the following reasonable and necessary expenses and costs incurred by an **Insured** within one year of the discovery of the **Security Failure** or **Privacy Event**:
- (1) to conduct an investigation (including a forensic investigation) to determine the cause of the **Security Failure** or **Privacy Event**;
 - (2) for a public relations firm, crisis management firm or law firm agreed to by the **Insurer** to advise an **Insured** on minimizing the harm to such **Insured**, including, without limitation, maintaining and restoring public confidence in such **Insured**;
 - (3) to notify those whose **Confidential Information** is the subject of the **Security Failure** or **Privacy Event** and advise of any available remedy in connection with the **Security Failure** or **Privacy Event**, including, without limitation, those expenses and costs for printing, advertising and mailing of materials;
 - (4) for identity theft education and assistance, identity theft call center services, credit file or identity monitoring and victim reimbursement insurance made available to those persons notified about a **Security Failure** or **Privacy Event** pursuant to subparagraph (3) above;
 - (5) for any other services approved by the **Insurer** at the **Insurer's** sole and absolute discretion;
 - (6) to restore, recreate or recollect **Electronic Data**; or
 - (7) to determine whether **Electronic Data** can or cannot be restored, recollected or recreated.

Provided, however, **Loss** shall not include compensation, fees, benefits, overhead or internal charges of any **Insured**.



- (i) **"Pollutants"** means, but is not limited to, any solid, liquid, gaseous, biological, radiological or thermal irritant or contaminant, including smoke, vapor, dust, fibers, mold, spores, fungi, germs, soot, fumes, acids, alkalis, chemicals and waste. "Waste" includes, but is not limited to, materials to be recycled, reconditioned or reclaimed and nuclear materials.
- (j) **"Privacy Event"** means any failure to protect **Confidential Information** (whether by "phishing," other social engineering technique or otherwise), including, without limitation, that which could result in an identity theft or other wrongful emulation of the identity of an individual or corporation.
- (k) **"Property Damage"** means damage to, loss of use of or destruction of any tangible property. For purposes of this definition, "tangible property" shall not include electronic data.
- (l) **"Security Failure"** means a failure or violation of the security of a **Computer System**, including, without limitation, that which results in or fails to mitigate any unauthorized access, unauthorized use, denial of service attack or receipt or transmission of a malicious code. **"Security Failure"** includes any such failure or violation resulting from the theft of a password or access code from an **Insured's** premises, the **Computer System**, or an officers, director or employee of a **Company** by non-electronic means.

3. EXCLUSIONS

The **Insurer** shall not be liable to make any payment for **Loss**:

- (a) arising out of, based upon or attributable to any dishonest, fraudulent, criminal or malicious act, error or omission, or any intentional or knowing violation of the law, if committed by any:
 - (1) past or present director, officer, trustee, general or managing partner or principal (or the equivalent positions) of a **Company**, whether acting alone or in collusion with other persons; or
 - (2) past or present employee (other than those referenced in Sub-paragraph (1) above) or independent contractor employed by a **Company** if any person referenced in Sub-paragraph (1) above participated in, approved of, acquiesced to, or knew or had reason to know prior to the act of, the dishonest, fraudulent, malicious, or criminal act committed by such employee or independent contractor that caused a direct loss to an **Insured** or any other person.
- (b) arising out of, based upon or attributable to any misappropriation of an **Insured's** trade secret, any misappropriation of a trade secret by an **Insured** or any employee of an **Insured** or any infringement of patent, copyright, trademark or trade dress.
- (c) arising out of, based upon or attributable to any (1) presence of **Pollutants**; (2) the actual or threatened discharge, dispersal, release or escape of **Pollutants**; or (3) direction or request to test for, monitor, clean up, remove, contain, treat, detoxify or neutralize pollutants, or in any way respond to or assess the effects of **Pollutants**.
- (d) for any **Bodily Injury** or **Property Damage**.
- (e) arising out of, based upon or attributable to any:
 - (1) fire, smoke, explosion, lightning, wind, water, flood, earthquake, volcanic eruption, tidal wave, landslide, hail, act of God or any other physical event, however caused;



- (2) war, invasion, military action (whether war is declared or not), civil war, mutiny, popular or military uprising, insurrection, rebellion, revolution, military or usurped power, or any action taken to hinder or defend against any of these events; or
- (3) satellite failure.
- (f) arising out of, based upon or attributable to any seizure, confiscation, nationalization, or destruction of a **Computer System** or **Electronic Data** by order of any governmental or public authority.
- (g) arising out of, based upon or attributable to any **Security Failure** or **Privacy Event**, or any **Related Acts** thereto, which has been reported, or in any circumstances of which notice has been given, under any policy of which this **Event Management Coverage Section** is a renewal or replacement or which it may succeed in time.
- (h) for any profit or advantage to which any **Insured** is not legally entitled.
- (i) arising out of, based upon or attributable to any amounts for: (i) the original creation of; (ii) diminution of value of; (iii) lost profits of; (iv) or loss of use of, a trade secret, patent, copyright, trademark, trade dress or any other intellectual property.

4. NOTICE

In addition to the applicable items of Clause 6. **NOTICE** of the **General Terms and Conditions**, and before coverage will apply for **Loss** under this **Event Management Coverage Section**, each **Insured** must also:

- (a) complete and sign a written, detailed and affirmed proof of loss within ninety (90) days after the discovery of any **Loss** (unless such period has been extended by the **Insurer** in writing) which shall include, among any other pertinent information:
 - (1) a full description of such **Loss** and the circumstances surrounding such **Loss**, which shall include, among any other necessary information, the time, place and cause of the **Loss**;
 - (2) a detailed calculation of any **Loss**; and
 - (3) all underlying documents and materials that reasonably relate to or form any part of the proof of such **Loss**.
- (b) upon the **Insurer's** request, submit to an examination under oath.
- (c) immediately record the specifics of any **Loss**, **Security Failure** or **Privacy Event** and the date such **Insured** first became aware of such **Loss**, **Security Failure** or **Privacy Event**.
- (d) provide the **Insurer** with any cooperation and assistance that the **Insurer** may request, including assisting the **Insurer** in:
 - (1) any investigation of a **Security Failure**, **Privacy Event**, **Loss** or circumstance;
 - (2) enforcing any legal rights an **Insured** or the **Insurer** may have against anyone who may be liable to an **Insured**; and
 - (3) executing any documents that the **Insurer** deems necessary to secure its rights under this policy.



All adjusted claims shall be due and payable thirty (30) days after the presentation and written acceptance by the **Insurer** of satisfactory proof of **Loss** to the address set forth in the **General Terms and Conditions**. The costs and expenses of establishing or proving an **Insured's Loss** under this **Event Management Coverage Section**, including, without limitation, those connected with preparing a proof of loss, shall be such **Insured's** obligation, and are not covered under this policy.

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ENDORSEMENT# 1

This endorsement, effective at 12:01 am July 1, 2025 forms a part of
Policy number 01-601-30-99
Issued to: WORKPLACE SAFETY & INSURANCE BOARD, THE

By: AIG Insurance Company of Canada
Product Name: SPECIALTY RISK PROTECTOR

GENERAL TERMS AND CONDITIONS AMENDATORY ENDORSEMENT

This endorsement modifies insurance provided under the following:

**Specialty Risk Protector®
General Terms and Conditions**

In consideration of the premium charged, it is hereby understood and agreed that the **General Terms and Conditions** are amended as follows:

1. *Subsidiary Definition Amendatory.* In Clause 2. **DEFINITIONS**, paragraph (u) the definition of "**Subsidiary**" is amended by deleting subparagraphs (2) and (3) in their entirety and replacing them with the following:
 - (2) any for-profit entity of which the **Named Entity** acquires **Management Control** during the **Policy Period**, either directly or indirectly, whose gross revenues for the most recent fiscal year prior to the inception of this policy do not exceed fifteen percent (15%) of the aggregate gross revenues of the **Companies** for the most recent fiscal year prior to the inception date of this policy;
 - (3) any for-profit entity of which the **Named Entity** acquires **Management Control** during the **Policy Period**, either directly or indirectly, whose gross revenues for the most recent fiscal year prior to the inception of this policy exceed fifteen percent (15%) of the aggregate gross revenues of the **Companies** for the most recent fiscal year prior to the inception date of this policy, but only once (a) the **Named Entity** shall have provided the **Insurer** with full particulars of such entity and agreed to any additional premium and amendments to this policy relating to such entity; and (b) the **Insurer** has ratified its acceptance of such entity as a **Subsidiary** by endorsement to this policy; and
2. *Retention Amendatory.* Clause 5. **RETENTION** is deleted in its entirety and replaced with the following:

5. RETENTION

The **Insurer** shall only be liable for the amount of **Loss** arising from each **Claim** or **First Party Event** that exceeds the Retention stated in Item 6 of the Declarations as applicable to the **Coverage Section** affording coverage to such **Claim** or **First Party Event**. Such Retention amounts must be borne but the **Insureds** and remain uninsured; provided, however, the **Insurer**, in its sole and absolute discretion, may pay all or part of the Retention to settle a **Claim**, in which case the **Insureds** agree to repay the **Insurer** promptly upon notification by the **Insurer** of such settlement.

If a **First Party Event** or a **Third Party Event** and any **Related Acts** trigger coverage under more than one **Coverage Section**, the highest applicable Retention amount shall

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END 001

apply to all **Loss** arising out of such **First Party Event** or **Third Party Event** and all **Related Acts**.

3. *Notice Amendatory.* In Clause 6. **NOTICE**, Paragraph (a), the second paragraph is deleted in its entirety and replaced with the following:

Notwithstanding the foregoing and regardless of whether any personnel described in (1) above has become aware, in all events each **Claim** under a **Claims-Made and Reported Coverage Section** must be reported no later than either:

- (1) ninety (90) days after the end of the **Policy Period**; or
- (2) the end of any applicable **Discovery Period**.

4. *Insured's Obligations Amendatory.* In Clause 7. **INSURED'S OBLIGATIONS**, the first sentence in paragraph (c) is deleted in its entirety and replaced with the following :

- (c) such **Insured** (including former officers, directors, trustees or employees of a **Company**, to the extent practicable) shall cooperate with and help the **Insurer** and/or any counsel appointed pursuant to the terms of this policy, including, without limitation, as follows:

5. *Cancellation Amendatory.* In Clause 8. **CANCELLATION**, paragraphs (b) and (c) are deleted in their entirety and replaced with the following:

- (b) *By the Insurer:* This policy may be canceled by the **Insurer's** delivering to the **Named Entity** by registered, certified, other first class mail or other reasonable delivery method, at the address of the **Named Entity** set forth in Item 1 of the Declarations, written notice stating when, not less than ninety (90) days thereafter (ten (10) days in the event of cancellation for non-payment of premium), the cancellation shall be effective. Proof of mailing or delivery of such notice as aforesaid shall be sufficient proof of notice and this policy shall be deemed canceled as to all **Insureds** at the date and hour specified in such notice.

- (c) *Return of Premium:* If this policy shall be cancelled by the **Named Entity**, the **Insurer** shall retain the pro rata proportion of the premium hereon. If this policy shall be cancelled by the **Insurer**, the **Insurer** shall retain the pro rata proportion of the premium hereon.

6. In Clause 9. **DISCOVERY**, paragraph (b) is deleted in its entirety and replaced with the following:

- (b) *Optional Discovery Period:* Except as indicated below, if the **Named Entity** or the **Insurer** shall cancel or refuse to renew this policy or in the event of a **Transaction** (as that term is defined in Clause 10. below), the **Named Entity** shall have the right to a period of up to three (3) years following the effective date of such cancellation or nonrenewal (an "**Optional Discovery Period**"), upon payment of an additional premium amount of up to:

- (i) *One hundred (100%)* percent of the full annual premium, for a period of one (1) year,
- (ii) *One hundred fifty (150%)* percent of the full annual premium, for a period of two (2) years, or
- (iii) *One hundred seventy five (175%)* percent of the full annual premium, for a period of three (3) years,

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END 001

in which to give written notice to the **Insurer** of **Claims** first made against an **Insured** during the **Optional Discovery Period** for any **Third Party Events** occurring prior to the end of the **Policy Period** and otherwise covered by this policy.

If the **Named Entity** exercises its right to purchase an **Optional Discovery Period**, that period incepts at the end of the **Policy Period** and there shall be no **Automatic Discovery Period**.

As used herein, "full annual premium" means the premium amount set forth in the Declarations as such, plus an additional premium charged for any endorsements to this policy.

The right to purchase an **Optional Discovery Period** shall terminate unless written notice of election, together with any additional premium due, is received by the **Insurer** no later than thirty (30) days after the effective date of the cancellation, nonrenewal or **Transaction**.

7. In Clause 10. **TRANSACTIONS**, subparagraph (b)(1) is deleted in its entirety and replaced with the following:

- (1) within forty-five (45) days of such **Transaction** the **Insurer** has been provided with full particulars of the **Transaction**, the related or acquiring person(s) or entity(ies) and any other information requested by the **Insurer**; and

8. Clause 12. **OTHER INSURANCE** is delete in its entirety and replaced with the following:

12. OTHER INSURANCE

Such insurance as is provided by any **Third Party Coverage Section** shall apply only as excess over any other valid and collectible insurance, unless such other insurance is expressly written to be excess over the **Limit of Liability** or any applicable **Sublimit of Liability** provided by this policy.

Notwithstanding the foregoing, such insurance as is provided by any **First Party Coverage Section** shall apply as primary to any other valid and collectible insurance.

9. Clause 15. **DISPUTE RESOLUTION PROCESS** is deleted in its entirety and replaced with the following:

15. DISPUTE RESOLUTION PROCESS

All disputes or differences which may arise under or in connection with this policy, whether arising before or after termination of this policy, including any determination of the amount of **Loss**, shall be submitted to an alternative dispute resolution process (ADR) - Mediation or Arbitration -as provided in this clause. The **Named Entity** may elect the type of ADR process provided, however, that in the absence of a timely election, the **Insurer** may elect the type of ADR. To the extent the **Insurer** elects the type of ADR, the **Named Entity** shall have the right to reject the **Insurer's** choice of the type of ADR process at any time prior to the commencement, after which, the **Insurer's** choice of ADR shall control.

- (a) *Mediation*: In the event of mediation, either party shall have the right to commence a judicial proceeding; provided, however, that no such judicial proceeding shall be commenced until the mediation shall have been terminated and at least 60 days shall have elapsed from the date of the termination of the mediation.
- (b) *Arbitration*: In the event of arbitration, the decision of the arbitrator(s) shall be final, binding and provided to both parties, and the arbitration award shall not include attorney's fees or other costs.
- (c) *Selection of Arbitrator(s) or Mediator*: The **Insurer** and the **Named Entity** shall mutually consent to: (i) in the case of arbitration, an odd number of arbitrators which shall constitute the arbitration panel, or (ii) in the case of mediation, a single mediator. The arbitrator, arbitration panel members or mediator must be disinterested and have knowledge of the legal, coverage subject matter, or insurance issues relevant to the matters in dispute. In the absence of agreement, the **Insurer** and the **Named Entity** each shall select one arbitrator, the two arbitrators shall select a third arbitrator, and the panel shall then determine applicable procedural rules in accordance with the Ontario Arbitration Act, 1991 S.O. 1991, c. 17 or other applicable provincial legislation.
- (d) *ADR Rules*: In considering the construction or interpretation of the provisions of this policy, the mediator or arbitrator(s) must give due consideration to the general principles of the law of the province in which this policy is issued. Each party shall share equally the expenses of the process elected. At the election of the **Named Entity**, either choice of ADR process shall be commenced in Toronto, Ontario or in the province indicated in Item 1 of the Declarations as the mailing address of the **Named Entity**. The **Named Entity** shall act on behalf of each and every **Insured** under this Alternative Dispute Resolution Clause. In all other respects, the **Insurer** and the **Named Entity** shall mutually agree to the procedural rules for the mediation or arbitration. In the absence of such an agreement, after reasonable diligence, the arbitrator(s) or mediator shall specify commercially reasonable rules.

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.



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END 001

ENDORSEMENT# 2

This endorsement, effective **at 12:01AM July 01, 2025**
Policy number: **01-601-30-99**
Issued to: **WORKPLACE SAFETY & INSURANCE BOARD, THE**

forms a part of

By: *AIG Insurance Company of Canada*

MODIFIED CYBER EXTORTION COVERAGE SECTION AMENDATORY ENDORSEMENT

This endorsement modifies the Cyber Extortion Coverage Section.

In consideration of the premium charged, it is hereby understood and agreed that the **Cyber Extortion Coverage Section** is amended as follows:

1. In Clause 2. **DEFINITIONS**, paragraph (f) the definition of “**Loss**” is amended by deleting subparagraph (1) in its entirety and replacing it with the following:
 - (1) monies paid by an **Insured** with the **Insurer’s** prior written consent to terminate or end a **Security Threat** or **Privacy Threat** that would otherwise result in harm to an **Insured**, including ransom payments, reward payments and the cost to obtain Bitcoin or other cryptocurrency to be surrendered as a ransom or reward payment to terminate a **Security Threat** or **Privacy Threat**;
2. In Clause 2. **DEFINITIONS**, paragraph (i) the definition of “**Property Damage**” is deleted in its entirety and replaced with the following:
 - (i) “**Property Damage**” means damage to, loss of use of or destruction of any tangible property; provided, however, **Property Damage** does not include the loss of use of electronic equipment caused by the reprogramming of the software (including the firmware) of such electronic equipment rendering it useless for its intended purpose. For purposes of this definition, “tangible property” shall not include electronic data.
3. In Clause 3. **EXCLUSIONS**, subparagraph (a)(1) is deleted in its entirety and replaced with the following:
 - (1) past or present members of the **Control Group** or duly elected or appointed directors, trustees, general or managing partners or principals (or the equivalent positions) of a **Company**, while serving in such capacity and whether acting alone or in collusion with other persons; or

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.



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END 002

ENDORSEMENT# 3

This endorsement, effective at *12:01 am July 1, 2025* forms a part of
Policy number *01-601-30-99*
Issued to: *WORKPLACE SAFETY & INSURANCE BOARD, THE*

By: *AIG Insurance Company of Canada*
Product Name: *SPECIALTY RISK PROTECTOR*

SECURITY AND PRIVACY COVERAGE SECTION AMENDATORY ENDORSEMENT

This endorsement amends the Security and Privacy Coverage Section.

In consideration of the premium charged, it is hereby understood and agreed that the **Security and Privacy Coverage Section** is amended as follows:

1. In Clause 1. **INSURING AGREEMENTS**, the Section titled "**DEFENCE**" is amended by deleting paragraph (c) in its entirety and replacing it with the following:
 - (c) The **Insurer's** duty to defend ends if an **Insured** refuses to consent to a settlement that the **Insurer** recommends pursuant to the **SETTLEMENT** provision below and that the claimant will accept. As a consequence of such **Insured's** refusal, the **Insurer's** liability shall not exceed the amount for which the **Insurer** could have settled such **Claim** had such **Insured** consented, plus **Defence Costs** incurred prior to the date of such refusal, plus 50% of **Loss** incurred after the date of such refusal (including 50% of the **Defence Costs** incurred with the **Insurer's** prior written consent). This provision shall not apply to any settlement where the total incurred **Loss** does not exceed the applicable Retention amount.
2. In Clause 2. **DEFINITIONS**, paragraph (a), the definition of "**Bodily Injury**" is deleted in its entirety and replaced with the following:
 - (a) "**Bodily Injury**" means physical injury, sickness or disease, and, if arising solely out of the foregoing, mental anguish, mental injury, shock, humiliation or death at any time.
3. In Clause 2. **DEFINITIONS**, paragraph (d), the definition of "**Confidential Information**" is deleted in its entirety and replaced with the following:
 - (d) "**Confidential Information**" means any of the following, in any format, in a **Company's** or **Information Holder's** care, custody or control or for which a **Company** or **Information Holder** is legally responsible:
 - (1) information from which an individual may be uniquely and reliably identified or contacted, including, without limitation, an individual's name, address, telephone number, social security number, online identifiers, account relationships, account numbers, account balances, account histories and passwords;

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END 003

Page 1 of 4

- (2) information concerning an individual that would be considered "nonpublic personal information" within the meaning of Title V of the Gramm-Leach Bliley Act of 1999 (Public Law 106-102, 113 Stat. 1338) (as amended) and its implementing regulations, or protected personal information under any similar federal, state, local or foreign law;
 - (3) information concerning an individual that would be considered "protected health information" or "electronic protected health information" within the Health Insurance Portability and Accountability Act of 1996 (as amended) (HIPAA) or the Health Information Technology for Economic and Clinical Health Act (HITECH Act), and their implementing regulations, or protected health-related information under any similar federal, state, local or foreign law;
 - (4) personal information that would be considered protected under Canada's Personal Information Protection and Electronic Documents Act (PIPEDA)(as amended) or under any similar provincial or territorial law;
 - (5) information used for authenticating customers for normal business transactions; or
 - (6) any third party's trade secrets, data, designs, interpretations, forecasts, formulas, methods, practices, processes, records, reports or other item of information that is not available to the general public.
4. In Clause 2. **DEFINITIONS**, subparagraph (h)(2) of the definition of "**Loss**" is deleted in its entirety and replaced with the following:
- (2) non-criminal fines or penalties imposed by a governmental agency, the Office of the Privacy Commissioner of Canada (the "**OPC**"), a court or arising from a **Regulatory Action**, unless the civil fine or penalty imposed is uninsurable under the law of the jurisdiction imposing such fine or penalty;
5. In Clause 2. **DEFINITIONS**, paragraph (l) the definition of "**Privacy Event**" is amended by deleting subparagraph (3) in its entirety and replacing it with the following:
- (3) any unintentional failure of an **Insured** to comply with those parts of a **Company's** privacy policy or any guidance issued by the **OPC** that (a) prohibit or restrict the disclosure or sale of **Confidential Information** by an **Insured**, or (b) require an **Insured** to allow an individual to access or correct **Confidential Information** about such individual; or
6. In Clause 2. **DEFINITIONS**, paragraph (l) the definition of "**Privacy Event**" is further amended by adding the following to the end thereof:
- "Privacy Event"** also includes any such failure or violation resulting from the use of a third-party computer or electronic device, including mobile phones, tablets or computers owned or controlled by a partner, shareholder, officer or employee of a **Company**, to store or access **Confidential Information**.
7. In Clause 2. **DEFINITIONS**, paragraph (n) the definition of "**Regulatory Action**" is deleted in its entirety and replaced with the following:

- (n) **Regulatory Action** means a request for information, non-criminal investigative demand or non-criminal proceedings brought by or on behalf of a governmental agency, the **OPC** or any provincial or territorial privacy commissioner, or foreign equivalent, including requests for information related thereto.
8. In Clause 2. **DEFINITIONS**, paragraph (o) the definition of "**Security Breach Notice Law**" is deleted in its entirety and replaced with the following:
- (o) "**Security Breach Notice Law**" means any federal, state, local or foreign statute or regulation that requires an entity collecting or storing **Confidential Information**, or any entity that has provided **Confidential Information** to an **Information Holder**, to provide notice of any actual or potential unauthorized access by others to such **Confidential Information**, including but not limited to, Canada's Digital Privacy Act and the statute known as California SB 1386 (§1798.82, *et. seq.* of the California Civil Code).
9. In Clause 2. **DEFINITIONS**, paragraph (p) the definition of "**Security Failure**" is amended by deleting the last paragraph in its entirety and replacing it with the following:
- "**Security Failure**" includes any such failure or violation, resulting from the theft of a password or access code from (i) an **Insured's** premises, (ii) the **Computer System**, (iii) an officer, director or employee of a **Company** by non-electronic means or (iv) the use of a third-party computer or electronic device, including mobile phones, tablets or computers owned or controlled by an **Insured**, to access a **Computer System**.
10. In Clause 3. **EXCLUSIONS**, subparagraph (a)(1) is deleted in its entirety and replaced with the following:
- (1) past or present members of the **Control Group**, or duly elected or appointed directors, trustees, general or managing partners or principals (or the equivalent positions) of a **Company**, while serving in such capacity and whether acting alone or in collusion with other persons; or
11. In Clause 3. **EXCLUSIONS**, paragraph (b) is deleted in its entirety and replaced with the following:
- (1) (b) alleging, arising out of, based upon or attributable to any infringement of patent, or any misappropriation of a third party's trade secret by any **Insured**.
12. In Clause 3. **EXCLUSIONS**, subparagraph (f)(2) is deleted in its entirety and replaced with the following:
- (2) violation by any **Insured** of any securities law, including the Securities Act of 1933, as amended, or the Securities Exchange Act of 1934, as amended, or any regulation promulgated under the foregoing statutes, or any federal, state or local laws similar to the foregoing statutes (including "Blue Sky" laws), whether such law is statutory, regulatory or common law; provided, however, this exclusion does not apply to a **Claim** alleging a **Privacy Event** in violation of Regulation S-P (17 C.F.R. § 248); provided further, however, this exclusion does not apply to a **Claim** alleging a failure to disclose a **Security Failure** or **Privacy Event**; or

13. In Clause 3. **EXCLUSIONS**, paragraph (g) is deleted in its entirety and replaced with the following:

(g) alleging, arising out of, based upon or attributable to any of an **Insured's** employment practices (including, without limitation, wrongful dismissal, discharge or termination, discrimination, harassment, retaliation or other employment-related claim); provided, however, this exclusion shall not apply to any **Claim** by an individual to the extent such individual is alleging (1) a **Privacy Event** in connection with such individual's employment or application for employment with a **Company**, or (2) a failure to disclose a **Security Failure** or **Privacy Event** in violation of any **Security Breach Notice Law** or any related regulatory guidelines; or

14. In Clause 3. **EXCLUSIONS**, paragraph (h) is deleted in its entirety and replaced with the following:

(h) alleging, arising out of, based upon or attributable to antitrust, unfair competition, restraint of trade, including, without limitation, violations of any local, state or federal law regulating such conduct provided, however, solely with respect to unfair competition, this Paragraph (h) shall not apply to any **Loss** arising out of a covered **Regulatory Action** alleging such conduct directly in connection with a **Security Failure** or **Privacy Event**.

15. In Clause 3. **EXCLUSIONS**, subparagraph (j)(5) is deleted in its entirety and replaced with the following:

(5) non-criminal or criminal fines or penalties imposed by law against an **Insured** and any matters deemed uninsurable under the law pursuant to which this policy shall be construed; provided, however, this Sub-paragraph (5) shall not apply to (a) any monetary amounts an **Insured** is required by law or has agreed to by settlement to deposit into a consumer redress fund, or (b) any non-criminal fine or penalty imposed by a governmental agency arising from a **Regulatory Action**, unless the non-criminal fine or penalty imposed is uninsurable under the law of the jurisdiction imposing such fine or penalty;

16. In Clause 3. **EXCLUSIONS**, subparagraph (k)(4) is deleted in its entirety and replaced with the following:

(4) any liability or obligation under the confidentiality or non-disclosure provisions of any agreement;

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.



AUTHORIZED REPRESENTATIVE

ENDORSEMENT# 4

This endorsement, effective at *12:01 am July 1, 2025* forms a part of
Policy number *01-601-30-99*
Issued to: *WORKPLACE SAFETY & INSURANCE BOARD, THE*

By: *AIG Insurance Company of Canada*
Product Name: *SPECIALTY RISK PROTECTOR*

EVENT MANAGEMENT COVERAGE SECTION AMENDATORY ENDORSEMENT

This endorsement modifies the Event Management Coverage Section.

In consideration of the premium charged, it is hereby understood and agreed that the **Event Management Coverage Section** is amended as follows:

1. In Clause 1. **INSURING AGREEMENTS**, the Section titled "**EVENT MANAGEMENT INSURING AGREEMENT**" is deleted in its entirety and replaced with the following:

EVENT MANAGEMENT INSURING AGREEMENT

The **Insurer** shall pay all **Loss**, in excess of the applicable Retention, that an **Insured** incurs solely as a result of an alleged **Security Failure** or **Privacy Event** that has actually occurred or is reasonably believed by such **Insured** to have occurred.

2. In Clause 2. **DEFINITIONS**, paragraph (h) the definition of "**Loss**" is deleted in its entirety and replaced with the following:

(h) "**Loss**" means the following reasonable and necessary expenses and costs incurred by an **Insured** within one year of the discovery of the **Security Failure** or **Privacy Event**:

- (1) to conduct an investigation (including a forensic investigation) to determine the existence, cause and scope of the **Security Failure** or **Privacy Event**;
- (2) for a public relations firm or crisis management firm, appointed or agreed to by the **Insurer**, to advise an **Insured** on minimizing the harm to such **Insured**, including, without limitation, maintaining and restoring public confidence in such **Insured**, and the cost of implementing any resulting public relations campaign designed specifically to avoid or minimize any adverse effects of negative publicity resulting from the **Security Failure** or **Privacy Event**;
- (3) for a law firm, appointed or agreed to by the **Insurer**, to advise an **Insured**: (a) on minimizing the harm to such **Insured**; (b) regarding the course of action that is legally required or appropriate to respond to the **Security Failure** or **Privacy Event**; and (c) on the appropriate content, scope and distribution of any notice to consumers, government agencies or other interested parties concerning the **Security Failure** or **Privacy Event**;
- (4) to notify those individuals and entities whose **Confidential Information** is reasonably believed to be the subject of the **Security Failure** or **Privacy Event** and advise of any available remedy in connection with the **Security Failure** or **Privacy Event**, including, without limitation, those expenses and costs for printing, advertising and mailing of materials;
- (5) for identity theft education and assistance, identity theft call center services, credit file or identity monitoring, identity theft restoration services and victim expense

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END 004

reimbursement insurance made available to those persons notified about a **Security Failure** or **Privacy Event** pursuant to subparagraph (3) above;

- (6) for any other services approved by the **Insurer** at the **Insurer's** sole and absolute discretion;
- (7) to restore, recreate or recollect **Electronic Data**; or
- (8) to determine whether **Electronic Data** can or cannot be restored, recollected or recreated.

Provided, however, **Loss** shall not include compensation, fees, benefits, overhead or internal charges of any **Insured**.

- 3. In Clause 2. **DEFINITIONS**, paragraph (j) the definition of "**Privacy Event**" is amended to include the following at the end thereof:

"**Privacy Event**" also includes any such failure or violation resulting from the use of a third-party computer or electronic device, including mobile phones, tablets or computers owned or controlled by a partner, shareholder, officer or employee of a **Company**, to store or access **Confidential Information**.

- 4. In Clause 2. **DEFINITIONS**, paragraph (k) the definition of "**Property Damage**" is deleted in its entirety and replaced with the following:

(k) "**Property Damage**" means damage to, loss of use of or destruction of any tangible property; provided, however, **Property Damage** does not include the loss of use of electronic equipment caused by the reprogramming of the software (including the firmware) of such electronic equipment rendering it useless for its intended purpose. For purposes of this definition, "tangible property" shall not include electronic data.

- 5. In Clause 2. **DEFINITIONS**, paragraph (l) the definition of "**Security Failure**" is amended to include the following at the end thereof:

"**Security Failure**" also includes any such failure or violation resulting from the use of a third-party computer or electronic device, including mobile phones, tablets or computers owned or controlled by a partner, shareholder, officer or employee of a **Company**, to access a **Computer System**.

- 6. In Clause 3. **EXCLUSIONS**, subparagraph (a)(1) is deleted in its entirety and replaced with the following:

(1) past or present members of the **Control Group**, or duly elected or appointed directors, trustees, general or managing partners or principals (or the equivalent positions) of a **Company**, while serving in such capacity and whether acting alone or in collusion with other persons; or

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.



AUTHORIZED REPRESENTATIVE

ENDORSEMENT# 5

This endorsement, effective **at 12:01AM July 01, 2025**
Policy number: **01-601-30-99**
Issued to: **WORKPLACE SAFETY & INSURANCE BOARD, THE**

forms a part of

By: *AIG Insurance Company of Canada*

WAR EXCLUSION AMENDED

This endorsement modifies insurance provided under the following:

Specialty Risk Protector®
Security and Privacy Coverage Section (if purchased)
Event Management Coverage Section (if purchased)
Network Interruption Coverage Section (if purchased)
Cyber Extortion Coverage Section (if purchased)

In consideration of the premium charged, it is hereby understood and agreed that the policy is amended as follows:

1. In Clause 3. **EXCLUSIONS** of each of the **Security and Privacy Coverage Section**, the **Event Management Coverage Section**, the **Network Interruption Coverage Section** and the **Cyber Extortion Coverage Section**, subparagraph (e)(2) is deleted in its entirety.
2. Solely with respect to the coverages afforded under the **Security and Privacy Coverage Section**, the **Event Management Coverage Section**, the **Network Interruption Coverage Section** and the **Cyber Extortion Coverage Section**, the Insurer shall not be liable to make any payment of **Loss**, or provide coverage for any **Claim**, alleging, arising out of, based upon or attributable to:
 - 2.1. a **War**; and/or
 - 2.2. a **Cyber Operation** that is carried out as part of a **War** or the immediate preparation for a **War**; and/or
 - 2.3. a **Cyber Operation** causing an **Impacted State**.

Provided, however, paragraph 2.3 shall not apply to the impact of a **Cyber Operation** on those portions of any **Computer System** owned by or leased to the **Insured** or its third-party service providers that are not physically located in an **Impacted State** but are impacted by a **Cyber Operation**.

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END 005

ENDORSEMENT# 5 (Continued)

This endorsement, effective **at 12:01AM July 01, 2025**
Policy number: **01-601-30-99**
Issued to: **WORKPLACE SAFETY & INSURANCE BOARD, THE**

forms a part of

By: *AIG Insurance Company of Canada*

3. The following definitions apply solely to this endorsement. If there is an inconsistency between a definition set forth below and a definition for the same term in any other part of the policy, the definition below shall apply to the interpretation of this endorsement:

“Computer System” means any computer, hardware, software, communications system, electronic device (including but not limited to, smart phone, laptop, tablet, wearable device), server, cloud infrastructure or microcontroller including any similar system or any configuration of the aforementioned and including any associated input, output, data storage device, networking equipment or back up facility.

“Cyber Operation” means the use of a **Computer System** by, at the direction, or under the control of a sovereign state to:

- (1) disrupt, deny access to or degrade functionality of a **Computer System**; or
- (2) copy, remove, manipulate, deny access to or destroy information in a **Computer System**.

“Essential Service” means a service that is essential for the maintenance of vital functions of a state, whether such service is provided by the state, a subdivision within the state or private entities, including, but not limited to, national defense, law enforcement, energy, telecommunication services and infrastructure, health services, utility services, emergency services, transportation services, and services necessary for the maintenance, operation and regulation of the financial systems (including banking and financial market infrastructure).

“Impacted State” means a sovereign state where a **Cyber Operation** has had a major detrimental impact on:

- (1) the functioning of that sovereign state due to critical disruption to the availability, integrity or delivery of an **Essential Service** in that sovereign state; or
- (2) the security or defense of that sovereign state.

Provided, however, an **Impacted State** shall not result from an attack, or related series of attacks, solely impacting the **Insured**.

“War” means armed conflict involving physical force either:

- (1) by a sovereign state against another sovereign state; or
 - (2) as part of a civil war, rebellion, revolution, insurrection, military action or usurpation of power;
- regardless of whether war is declared.

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END 005

ENDORSEMENT# 5 (Continued)

This endorsement, effective ***at 12:01AM July 01, 2025*** forms a part of
Policy number: ***01-601-30-99***
Issued to: ***WORKPLACE SAFETY & INSURANCE BOARD, THE***

By: *AIG Insurance Company of Canada*

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.



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END 005

ENDORSEMENT# 6

This endorsement, effective *12:01 am July 1, 2025* forms a part of
policy number *01-601-30-99*
issued to *WORKPLACE SAFETY & INSURANCE BOARD, THE*

by *AIG Insurance Company of Canada*

CRIMINAL REWARD COVERAGE EXTENSION

This endorsement modifies insurance provided under the following:

Specialty Risk Protector®

In consideration of the premium charged, it is hereby understood and agreed that the policy is amended as follows:

1. The terms, conditions, exclusions and other limitations set forth in this endorsement are solely applicable to coverage afforded by this endorsement, and do not modify the terms, conditions, exclusions and other limitations contained in the policy unless specifically set forth herein. Unless otherwise set forth herein, the terms, conditions, exclusions and other limitations contained in the policy apply to the coverage provided by this endorsement.
2. **CRIMINAL REWARD INSURING AGREEMENT**
The **Insurer** may pay on an **Insured's** behalf, at the **Insurer's** sole and absolute discretion, up to fifty thousand dollars (\$50,000), in the aggregate, as a **Criminal Reward Fund**. No Retention shall apply to this coverage.
3. Solely with respect to the coverage afforded under this endorsement, "**Criminal Reward Fund**" means any amount offered by the **Insurer** for information that leads to the arrest and conviction of any individual(s) committing or trying to commit any illegal act related to the coverage afforded by any **Coverage Section** of this policy.
4. The **Insurer** shall not pay any **Criminal Reward Fund** for, and this policy shall not cover any amount based upon, any information provided by any **Insured**, an **Insured's** auditors, whether internal or external, any individual hired or retained to investigate the aforementioned illegal acts, or any other individuals with responsibilities for the supervision or management of the aforementioned individuals.
5. All exclusions applicable to **Loss** under the **SPL Coverage Section**, **Security and Privacy Coverage Section**, the **Network Interruption Coverage Section**, or the **Event Management Coverage Section** (to the extent any such **Coverage Sections** are purchased) shall apply to the **Criminal Reward Fund** and the coverage afforded under this endorsement.
6. Solely with respect to the coverage afforded under this endorsement, Clause 4. **LIMIT OF LIABILITY** of the **General Terms and Conditions** is amended to include the following paragraph at the end thereof:

CR(a) The **Insurer's** maximum payment as a **Criminal Reward Fund** arising from any and all events occurring during the **Policy Period**, in the aggregate, regardless of the number of events, incidents or **Claims** or amount of **Loss** reported during the **Policy Period**, shall be \$50,000. The **Criminal Reward Fund** shall be in addition to, and is not part of, the **Limit of Liability**.

ENDORSEMENT# 6 (continued)

7. There shall be no **Retention** applicable to the coverage afforded by this endorsement.

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.



AUTHORIZED REPRESENTATIVE

ENDORSEMENT# 7

This endorsement, effective at *12:01 am July 1, 2025* forms a part of
Policy number *01-601-30-99*
Issued to: *WORKPLACE SAFETY & INSURANCE BOARD, THE*

By: *AIG Insurance Company of Canada*
Product Name: *SPECIALTY RISK PROTECTOR*

**CYBER EXTORTION COVERAGE ENHANCEMENT ENDORSEMENT
(THREAT CONSULTANT, BITCOIN, RANSOMWARE)**

This endorsement modifies insurance provided under the following:

**Specialty Risk Protector®
Cyber Extortion Coverage Section**

In consideration of the premium charged, it is hereby understood and agreed that the **Cyber Extortion Coverage Section** is amended as follows:

1. The definition of "**Loss**" in paragraph 2(f) is amended to include the following at the end thereof:

"**Loss**" also includes: (i) the reasonable costs of retaining a qualified consultant to advise an **Insured** as to the proper response to a **Security Threat** or **Privacy Threat** and to assist an **Insured** in negotiating a resolution to a **Security Threat** or **Privacy Threat**; and (ii) any monies paid by an **Insured**, with the **Insurer's** prior written consent, to obtain Bitcoin or other cryptocurrency to be surrendered as payment to terminate a **Security Threat** or **Privacy Threat**.

2. The definition of "**Security Threat**" in paragraph 2(j) is deleted in its entirety and replaced with the following:

(j) "**Security Threat**" means any:

- (1) intentional attack against a **Computer System** (including, without limitation, through the use of ransomware), or
- (2) threat or connected series of threats to commit an intentional attack against a **Computer System**,

for the purpose of demanding money, securities or other tangible or intangible property of value from an **Insured**.

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.



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END 007

ENDORSEMENT# 8

This endorsement, effective at *12:01 am July 1, 2025* forms a part of
Policy number *01-601-30-99*
Issued to: *WORKPLACE SAFETY & INSURANCE BOARD, THE*

By: *AIG Insurance Company of Canada*
Product Name: *SPECIALTY RISK PROTECTOR*

**CONFIDENTIAL INFORMATION DEFINITION AMENDED ENDORSEMENT
(SOCIAL INSURANCE NUMBERS, PIPEDA, GDPR)**

This endorsement modifies insurance provided under the following:

**Security and Privacy Coverage Section
Event Management Coverage Section
Cyber Extortion Insurance Coverage Section**

In consideration of the premium charged, it is hereby understood and agreed that:

1. In Clause 2. **DEFINITIONS** of each of the **Security and Privacy Coverage Section**, the **Event Management Coverage Section** and the **Cyber Extortion Coverage Section**, the definition of "**Confidential Information**" is amended by deleting subparagraphs (1), (2) and (3) in their entirety and replacing them with the following:
 - (1) information from which an individual may be uniquely and reliably identified or contacted, including, without limitation, an individual's name, address, telephone number, social security number, social insurance number, account relationships, account numbers, account balances, account histories and passwords;
 - (2) information concerning an individual that would be considered "personal information" within the meaning of the Personal Information Protection and Electronic Documents Act, S.C. 2000, c. 5 (PIPEDA), or would be considered "nonpublic personal information" within the meaning of Title V of the Gramm-Leach Bliley Act of 1999 (Public Law 106-102, 113 Stat. 1338) (as amended) and its implementing regulations, or protected personal information under any similar federal, provincial, territorial, state, local or foreign law;
 - (3) information concerning an individual that would be considered "personal health information", "protected health information" or "electronic protected health information" within PIPEDA, the Ontario Personal Health Information Protection Act, S.O. 2004, c.3, the Health Insurance Portability and Accountability Act of 1996 (as amended) (HIPAA) or the Health Information Technology for Economic and Clinical Health Act (HITECH Act), and their implementing regulations, or protected health-related information under any similar federal, provincial, territorial, state, local or foreign law;

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END 008

2. In Clause 2. **DEFINITIONS** of each of the **Security and Privacy Coverage Section**, the **Event Management Coverage Section** and the **Cyber Extortion Coverage Section**, the definition of "**Confidential Information**" is further amended by adding the following subparagraph (6) to the end thereof:
- (6) information concerning an individual that would be considered "personal data" or "sensitive personal data" within the meaning of the General Data Protection Regulation (Regulation (EU) 2016/679) (GDPR) and any amendments thereto;

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.



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END 008

ENDORSEMENT# 9

This endorsement, effective *12:01 am July 1, 2025* forms a part of
policy number *01-601-30-99*
issued to *WORKPLACE SAFETY & INSURANCE BOARD, THE*

by *AIG Insurance Company of Canada*

WRONGFUL COLLECTION COVERAGE ENDORSEMENT

This endorsement modifies insurance provided under the following:

**Specialty Risk Protector®
Security and Privacy Coverage Section**

In consideration of the premium charged, it is hereby understood and agreed that in Clause 2. **DEFINITIONS** of the **Security and Privacy Coverage Section**, Paragraph (I), the definition of "**Privacy Event**" is amended to include the following sentence at the end thereof:

"**Privacy Event**" also means the wrongful collection of **Confidential Information** by an **Insured** on or after the **Retroactive Date** and prior to the end of the **Policy Period**.

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.



AUTHORIZED REPRESENTATIVE

ENDORSEMENT# 10

This endorsement, effective **at 12:01AM July 01, 2025**
Policy number: **01-601-30-99**
Issued to: **WORKPLACE SAFETY & INSURANCE BOARD, THE**

forms a part of

By: *AIG Insurance Company of Canada*

CYBEREDGE CYBER MEDIA ENDORSEMENT

This endorsement modifies insurance provided under the following:

Specialty Risk Protector®

Media Content Coverage Section

In consideration of the premium charged, it is hereby understood and agreed that the **Media Content Coverage Section** is amended as follows:

1. In Clause 2. **DEFINITIONS**, the definition of “**Material**” is deleted in its entirety and replaced as follows:

“**Material**” means electronic, digital or digitized media content displayed on a **Company’s** website, including advertising, audio, video and written content.

Notwithstanding the foregoing, “**Material**” shall not include any musical works or sound recordings.

2. In Clause 2. **DEFINITIONS**, the definition of “**Wrongful Act**” is deleted in its entirety and replaced as follows:

(k) “**Wrongful Act**” means any act, error, omission, negligent supervision of an employee,

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This endorsement, effective **at 12:01AM July 01, 2025**
Policy number: **01-601-30-99**
Issued to: **WORKPLACE SAFETY & INSURANCE BOARD, THE**

forms a part of

By: *AIG Insurance Company of Canada*

misstatement or misleading statement by an **Insured** solely in connection with **Material** occurring on or after the **Retroactive Date** and prior to the end of the **Policy Period** that results solely in:

- (1) infringement of copyright, title, slogan, trademark, trade name, trade dress, mark, service mark, service name, infringement of domain name, deep-linking or framing, including, without limitation, unfair competition in connection with such conduct;
 - (2) plagiarism, piracy or misappropriation or theft of ideas under implied contract or other misappropriation or theft of ideas or information; including, without limitation, unfair competition in connection with such conduct;
 - (3) invasion, infringement or interference with rights of privacy, false light, public disclosure of private facts, and intrusion; including, without limitation, emotional distress or mental anguish in connection with such conduct; or
 - (4) defamation, libel, slander, product disparagement or trade libel or other tort related to disparagement or harm to character or reputation; including, without limitation, unfair competition, emotional distress or mental anguish in connection with such conduct.
3. In Clause 3. **EXCLUSIONS**, paragraphs (h), (p) and (s) are deleted in their entirety and replaced with the following:
- (h) alleging, arising out of, based upon or attributable to any unfair or deceptive business practices, including, without limitation, violations of any local, state or federal consumer protection laws.
 - (p) alleging, arising out of, based upon or attributable to (1) false advertising or misrepresentation in advertising, (2) any failure of goods, products or services to conform with an advertised quality or performance, or (3) any infringement of trademark or trade dress by any goods, products or services, including any goods or products displayed or contained in any **Material**.
 - (s) alleging, arising out of, based upon or attributable to any infringement of copyright related to software, source code or software license.

ENDORSEMENT# 10 (Continued)

This endorsement, effective **at 12:01AM July 01, 2025**
Policy number: **01-601-30-99**
Issued to: **WORKPLACE SAFETY & INSURANCE BOARD, THE**

forms a part of

By: *AIG Insurance Company of Canada*

4. Clause 3. **EXCLUSIONS** is further amended by adding the following additional exclusions to the end thereof:

CM(a) alleging, arising out of, based upon or attributable to: (1) corporate financial data of a **Company**; (2) infringement of copyright, trademark, trade dress or other intellectual property right by a **Company's** name or by a product manufactured or sold by a **Company**; or (3) **Material** posted on a **Company's** internal system or intranet.

CM(b) alleging, arising out of, based upon or attributable to any misappropriation of the name, persona or likeness of any individual;

CM(c) alleging, arising out of, based upon or attributable to:

- (i) copyright infringement related to any musical work or sound recording; or
- (ii) the unauthorized use or dissemination of any musical work or sound recording;

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.



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END 010

ENDORSEMENT# 11

This endorsement, effective at *12:01 am July 1, 2025* forms a part of
Policy number *01-601-30-99*
Issued to: *WORKPLACE SAFETY & INSURANCE BOARD, THE*

By: *AIG Insurance Company of Canada*
Product Name: *SPECIALTY RISK PROTECTOR*

REPUTATION-BASED INCOME LOSS COVERAGE ENDORSEMENT

This endorsement amends the Event Management Coverage Section.

ENDORSEMENT SCHEDULE

Reputation Income Loss Sublimit	\$5,000,000
Waiting Period	14 Days

In consideration of the premium charged, it is hereby understood and agreed that the **Event Management Coverage Section** of the policy is amended as follows:

1. The following clause is added to the end of the **Event Management Coverage Section** and is solely with respect to **Adverse Publicity** concerning a **Security Failure** or **Privacy Event** first discovered during the **Policy Period**:

REPUTATION INCOME LOSS INSURING AGREEMENT

The **Insurer** shall pay all **Loss** in excess of the applicable Retention that an **Insured** incurs after the **Waiting Period** solely as a result of **Adverse Publicity** concerning an actual or alleged **Security Failure** or **Privacy Event**.

2. Solely with respect to the coverage afforded under this endorsement, the following definitions are added to Clause 2. **DEFINITIONS**:

RI(a) "**Adverse Publicity**" means the dissemination via any medium (including but not limited to dissemination via print, video, audio, electronic, or digital or digitized form) of previously non-public information specifically concerning an actual or alleged **Security Failure** or **Privacy Event** affecting an **Insured's** customers, clients or patients. In determining the applicable **Waiting Period** and **Period of Indemnity**, all **Adverse Publicity** relating to the same **Security Failure** or **Privacy Event** or any **Related Acts** thereto shall be deemed to occur at the time of the first such **Adverse Publicity**.

RI(b) "**Period of Indemnity**" means the six (6) month period of time beginning at the conclusion of the **Waiting Period**.

RI(c) "**Waiting Period**" means the amount of time set forth in the ENDORSEMENT SCHEDULE that must elapse after the **Adverse Publicity**.

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END 011

3. Solely with respect to the coverage afforded in this endorsement, the definition of "**Loss**" in paragraph 2(h) is deleted in its entirety and replaced with the following:

(h) "**Loss**" means the Net Income (Net Profit before income taxes) that would have been earned by the **Insured** during the **Period of Indemnity** but for the **Adverse Publicity**.

4. Solely with respect to the coverage afforded in this endorsement, the definition of "**First Party Event**" in paragraph 2(e) is amended to include any **Adverse Publicity**.

5. In addition to the exclusions set forth in Clause 3. **EXCLUSIONS**, the following also apply to the coverage afforded by this endorsement:

The **Insurer** shall not be liable to make any payment for **Loss**:

- (a) for the fees or expenses for the services of a public relations firm, crisis management firm or law firm to advise an **Insured** on minimizing the harm to an **Insured's** brand or reputation or restoring public confidence in an **Insured**.
- (b) for public relations expenses, advertising expenses, or expenses to notify those persons or entities that may have been affected by the **Security Failure** or **Privacy Event**.
- (c) arising out of, based upon or attributable to **Adverse Publicity** that refers or relates to the security or privacy of other entities in the same or similar business or industry as an **Insured**, including an **Insured's** competitors, unless there are specific assertions as to a **Security Failure** or **Privacy Event** affecting the **Insured**.
- (d) for any liability to third parties regardless of reason, including, without limitation, any legal costs and expenses, liquidated damages, contractual penalties, civil or criminal fines or penalties, or consequential damages.
- (e) for any **Loss** resulting from an actual interruption or suspension of an **Insured's** business directly caused by a **Security Failure**.

6. NOTICE

- a. Solely with respect to the coverage afforded under this endorsement, subparagraph (a) of Clause 4. **NOTICE** is deleted in its entirety and replaced with the following:

(a) complete and sign a written, detailed and affirmed proof of loss no earlier than ninety (90) days after, and no later than one hundred fifty (150) days after, the end of the **Period of Indemnity** (unless such requirement has been modified by the **Insurer** in writing) which shall include, along with any other pertinent information:

- (1) a full description of such **Loss** and the circumstances surrounding such **Loss**, which shall include, among any other necessary information, the time, place and cause of the **Loss**;
- (2) a detailed calculation of any **Loss**; and
- (3) all underlying documents and materials that reasonably relate to or form a part of the basis of the proof of such **Loss**.

b. Subparagraph (c) of Clause 4. **NOTICE** is deleted in its entirety and replaced with the following:

(c) immediately record the specifics of any **Loss, Security Failure, Privacy Event or Adverse Publicity** and the date such **Insured** first became aware of such **Loss, Security Failure, Privacy Event or Adverse Publicity**.

7. SUBLIMIT OF LIABILITY

The maximum liability of the **Insurer** for all **Loss** for which coverage is provided by this endorsement shall be the **Reputation Income Loss Sublimit** set forth in the ENDORSEMENT SCHEDULE. The **Reputation Income Loss Sublimit** is part of, and not in addition to, the **Limit of Liability** and the **Sublimit of Liability** for the **Event Management Coverage Section**.

8. CONDITIONS

Solely with respect to the coverage afforded by this endorsement, due consideration shall be given to the following conditions when calculating **Loss**:

- (a) the experience of the **Insured's** business before the **Adverse Publicity** and probable experience thereafter during the **Period of Indemnity** had no **Adverse Publicity** occurred and to the continuation of only those normal charges and expenses that would have existed had no **Adverse Publicity** occurred.
- (b) any **Loss** made up during, or within a reasonable time after the end of, the **Period of Indemnity**.

9. Solely with respect to the coverage afforded by this endorsement, Clause 15. **DISPUTE RESOLUTION PROCESS** of the **General Terms and Conditions** is deleted in its entirety and replaced with the following **APPRAISAL** clause:

APPRAISAL

Notwithstanding any other provision of this policy to the contrary, if the **Named Entity** and the **Insurer** disagree on the amount of **Loss**, either may make a written demand for an appraisal of such **Loss**. If such demand is made, each party will select a competent and impartial appraiser. The appraisers will then jointly select an umpire. If the appraisers cannot agree on an umpire, they may request that selection be made by a judge of a court having jurisdiction. Each appraiser will separately state the amount of **Loss**. If they fail to agree, they will submit their differences to the umpire. A decision agreed to by any two of these three will be binding.

Such **Insured** and the **Insurer** will:

- (a) pay their respective chosen appraiser; and
- (b) bear the expenses of the umpire equally.

Any appraisal of **Loss** shall be calculated in accordance with all terms, conditions and exclusions of this policy.

ENDORSEMENT# 11 (continued)

If there is an appraisal, it is without prejudice to the **Insurer's** rights under the terms and conditions of this policy and the **Insurer's** right to deny the claim in whole or in part.

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.



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END 011

ENDORSEMENT# 12

This endorsement, effective at *12:01 am July 1, 2025* forms a part of
Policy number *01-601-30-99*
Issued to: *WORKPLACE SAFETY & INSURANCE BOARD, THE*

By: *AIG Insurance Company of Canada*
Product Name: *SPECIALTY RISK PROTECTOR*

**PROPERTY DAMAGE AND SECURITY FAILURE DEFINITION AMENDED ENDORSEMENT
(BRICKING)**

**This endorsement amends the Network Interruption, Security and Privacy, and Event
Management Coverage Sections.**

In consideration of the premium charged it is hereby understood and agreed that the policy
is amended as follows:

1. In Clause 2. DEFINITIONS of the **Network Interruption, Security and Privacy, and Event
Management Coverage Sections** the definition of "**Property Damage**" is deleted in its
entirety and replaced with the following:

"**Property Damage**" means damage to, loss of use of or destruction of any tangible
property; provided, however, "**Property Damage**" does not include the loss of use of
electronic equipment caused by the reprogramming of the software (including the
firmware) of such electronic equipment rendering it useless for its intended purpose.
For purposes of this definition, "tangible property" shall not include electronic data.

2. In Clause 2. DEFINITIONS of the **Network Interruption, Security and Privacy, and Event
Management Coverage Sections** the definition of "**Security Failure**" is amended to
include the following sentence to the end thereof:

"**Security Failure**" also means the loss of use of all or part of a **Computer System**
caused by the unauthorized reprogramming of software (including firmware) which
renders such **Computer System**, or any component thereof, nonfunctional or useless for
its intended purpose.

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.



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END 012

ENDORSEMENT# 13

This endorsement, effective **at 12:01AM July 01, 2025**
Policy number: **01-601-30-99**
Issued to: **WORKPLACE SAFETY & INSURANCE BOARD, THE**

forms a part of

By: *AIG Insurance Company of Canada*

**MODIFIED CYBER EXTORTION COVERAGE ENHANCEMENT ENDORSEMENT (ADD SCOPE TO
DEFINITION OF LOSS)**

This endorsement modifies insurance provided under the following:

Specialty Risk Protector®

Cyber Extortion Coverage Section

In consideration of the premium charged, it is hereby understood and agreed that the **Cyber Extortion Coverage Section** is amended as follows:

1. The definition of “**Loss**” in paragraph 2(f) is amended to delete subparagraph 2(f)(2) in its entirety and replace it with the following:

(2) the costs to conduct an investigation to determine the cause and scope of a **Security Threat or Privacy Threat**;

2. The definition of “**Loss**” in paragraph 2(f) is further amended to include the following at the end thereof:

“**Loss**” also includes the reasonable costs of retaining a qualified consultant to advise an **Insured** on the proper response to a **Security Threat** or **Privacy Threat** and to assist an **Insured** in negotiating a resolution to a **Security Threat** or **Privacy Threat**.

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END 013

ENDORSEMENT# 13 (Continued)

This endorsement, effective **at 12:01AM July 01, 2025**
Policy number: **01-601-30-99**
Issued to: **WORKPLACE SAFETY & INSURANCE BOARD, THE**

forms a part of

By: *AIG Insurance Company of Canada*

3. The definition of “**Security Threat**” in paragraph 2(j) is deleted in its entirety and replaced with the following:

- (j) “**Security Threat**” means any threat, or connected series of threats, to commit or continue an intentional attack against a **Computer System** for the purpose of demanding money, securities or other tangible or intangible property or value from an **Insured**.

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.



AUTHORIZED REPRESENTATIVE

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END 013

ENDORSEMENT# 14

This endorsement, effective ***at 12:01AM July 01, 2025***
Policy number: ***01-601-30-99***
Issued to: ***WORKPLACE SAFETY & INSURANCE BOARD, THE***

forms a part of

By: *AIG Insurance Company of Canada*

**NETWORK INTERRUPTION COVERAGE ENHANCEMENT ENDORSEMENT
(SYSTEM FAILURE, OSP LIMITS, VOLUNTARY SHUTDOWN, PROOF OF LOSS COSTS)**

This endorsement modifies insurance provided under the following:

Specialty Risk Protector®

Network Interruption Coverage Section

ENDORSEMENT SCHEDULE

System Failure Sublimit	\$5,000,000
IT Service Provider Security Failure Sublimit	\$5,000,000
Non-IT Service Provider Security Failure Sublimit	\$5,000,000
Other Provider Security Failure Sublimit	\$1,000,000
IT Service Provider System Failure Sublimit	\$5,000,000
Non-IT Service Provider System Failure Sublimit	\$5,000,000
Other Provider System Failure Sublimit	\$1,000,000
Proof of Loss Preparation Costs Sublimit	\$100,000
Extended Period of Indemnity	180 Days

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END 014

ENDORSEMENT# 14 (Continued)

This endorsement, effective **at 12:01AM July 01, 2025** forms a part of
Policy number: **01-601-30-99**
Issued to: **WORKPLACE SAFETY & INSURANCE BOARD, THE**

By: *AIG Insurance Company of Canada*

Security Failure Waiting Hours Period	<i>12 Hours</i>
System Failure Waiting Hours Period	<i>12 Hours</i>

In consideration of the premium charged, it is hereby understood and agreed that the **Network Interruption Coverage Section** of the policy is amended as follows:

1. Clause 1. **INSURING AGREEMENTS** is deleted in its entirety and replaced with the following:

1. INSURING AGREEMENTS

With respect to the **NETWORK INTERRUPTION INSURING AGREEMENT** of this Clause 1., solely with respect to a **Security Failure** or **System Failure** first occurring during the **Policy Period** and reported to the **Insurer** pursuant to the terms of this policy, this **Network Interruption Coverage Section** affords the following coverage:

NETWORK INTERRUPTION INSURING AGREEMENT

The **Insurer** shall pay all **Loss** sustained by an **Insured**, in excess of the **Remaining Retention**, after the **Waiting Hours Period** and solely as a result of a **Security Failure** or a **System Failure**.

2. The following definitions in Clause 2. **DEFINITIONS** are deleted in their entirety and replaced with the following:

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ENDORSEMENT# 14 (Continued)

This endorsement, effective **at 12:01AM July 01, 2025** forms a part of
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By: *AIG Insurance Company of Canada*

(c) **“First Party Event”** means any **Security Failure** or **System Failure**.

(e) **“Loss”** means the actual **Business Income Loss, Expenses to Reduce Loss, Extra Expenses** and **Proof of Loss Preparation Costs** sustained or incurred by an **Insured**.

(f) **“Material Interruption”** means:

- (1) the partial or total interruption, suspension or impairment of an **Insured’s** business directly caused by a **Security Failure** or **System Failure**; or
- (2) the necessary, partial or total, interruption or suspension of an **Insured’s** business directly caused by a **Voluntary Shutdown**.

(g) **“Outsource Provider”** means any:

- (1) **IT Service Provider**,
- (2) **Non-IT Service Provider**, or
- (3) **Other Provider**.

Provided, however, **Outsource Provider** does not mean or include any entity in connection with its providing services as:

- (a) a public utility (including, without limitation, a provider of electricity, gas, water or telecommunication services);

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ENDORSEMENT# 14 (Continued)

This endorsement, effective **at 12:01AM July 01, 2025** forms a part of
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By: *AIG Insurance Company of Canada*

- (b) an internet service provider (including any provider of internet connectivity), or
- (c) a securities exchange or market.

(l) **“Waiting Hours Period”** means:

- (1) for any **Material Interruption** resulting from a **Security Failure** (including a **Voluntary Shutdown**), the **Security Failure Waiting Hours Period** set forth in the Endorsement Schedule above; and
- (2) for any **Material Interruption** resulting from a **System Failure**, the **System Failure Waiting Hours Period** set forth in the Endorsement Schedule above.

3. Clause 2. **DEFINITIONS** is amended to include the following paragraphs at the end thereof:

“Business Income Loss” means the sum of the following incurred during the **Period of Indemnity** and the **Extended Period of Indemnity** (if any):

- (1) net profits that would have been earned but for the **Material Interruption** (after charges and expenses, but not including any capital receipts, outlays properly chargeable to capital, and deductions for taxes and profits); and
- (2) charges and expenses which necessarily continue (including ordinary payroll).

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ENDORSEMENT# 14 (Continued)

This endorsement, effective **at 12:01AM July 01, 2025** forms a part of
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By: *AIG Insurance Company of Canada*

If there would have been no net profit, **Business Income Loss** means the charges and expenses which necessarily continue less any loss from business operations that would have been sustained had there been no **Material Interruption**.

“Expenses to Reduce Loss” means expenses incurred by the **Insured** during the **Period of Indemnity**, over and above normal operating expenses, for the purpose of reducing **Business Income Loss** or shortening the **Period of Indemnity**.

“Extended Period of Indemnity” means the time period beginning at the end of the **Period of Indemnity** and concluding after the number of days set forth in the Endorsement Schedule above.

“Extra Expenses” means expenses incurred by the **Insured** during the **Period of Indemnity** or the **Extended Period of Indemnity** (if any), other than **Expenses to Reduce Loss**, that would not have been incurred but for a **Material Interruption**.

“IT Service Provider” means an entity, other than an **Insured**, that:

- (1) provides “cloud computing” or other hosted computer resources to an **Insured**; or
- (2) provides information technology services required by an **Insured** to operate a **Computer System** under its ownership, operation or control;

in each case pursuant to a written contract with an **Insured**.

“Non-IT Service Provider” means an entity, other than an **Insured**, that provides goods or services to an **Insured** pursuant to a written contract; provided, however, under no

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ENDORSEMENT# 14 (Continued)

This endorsement, effective **at 12:01AM July 01, 2025**
Policy number: **01-601-30-99**
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forms a part of

By: *AIG Insurance Company of Canada*

circumstances shall an entity be considered a **Non-IT Service Provider** with respect to services provided as an **IT Service Provider**.

“Other Provider” means an entity, other than an **Insured**, an **IT Service Provider** or a **Non-IT Service Provider**, that an **Insured** depends on to conduct its business.

“Period of Indemnity” means the period of time beginning at the inception of the **Material Interruption** and ending:

- (1) with respect to a **Security Failure, System Failure or Voluntary Shutdown** of a **Computer System** under the ownership, operation or control of, or leased by, a **Company**, at the time the **Insured** restores access to the **Computer System** to the same or similar conditions that existed prior to the time of the **Material Interruption** (or could have restored access to the **Computer System** if the **Insured** exercised due diligence and dispatch); or
- (2) with respect to a **Security Failure or System Failure** of a **Computer System** under the ownership, operation or control of an **Outsource Provider**, the earlier of:
 - (i) the time the **Insured** restores its business to the same or similar conditions that existed prior to the time of the **Material Interruption** (or could have restored its business if the **Insured** exercised due diligence and dispatch); or
 - (ii) the time such **Outsource Provider** restores access to the **Computer System** to the same or similar conditions that existed prior to the time of the **Material Interruption**.

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ENDORSEMENT# 14 (Continued)

This endorsement, effective **at 12:01AM July 01, 2025** forms a part of
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By: *AIG Insurance Company of Canada*

The **Period of Indemnity** shall not be cut short by the end of the **Policy Period**.

“Proof of Loss Preparation Costs” means fees and expenses incurred by an **Insured** for the services of a third-party forensic accounting firm to establish and prove the amount of **Loss**, including those costs in connection with preparing a proof of loss. **“Proof of Loss Preparation Costs”** does not include any fees or expenses for consultation on coverage or negotiation of claims.

“System Failure” means any unintentional and unplanned outage of a **Computer System** that is not part of or caused by a **Security Failure**.

“Voluntary Shutdown” means the voluntary and intentional shutdown or impairment of a **Computer System** under the ownership, operation or control of a **Company**, by or at the direction of the Chief Information Security Officer of the **Company** (or the equivalent position regardless of title), after the discovery of a **Security Failure**, with the reasonable belief that such shutdown would limit the **Loss** that would otherwise be incurred as the result of such **Security Failure**.

4. In Clause 3. **EXCLUSIONS**, paragraph (g) is deleted in its entirety and replaced with the following:

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END 014

ENDORSEMENT# 14 (Continued)

This endorsement, effective **at 12:01AM July 01, 2025** forms a part of
Policy number: **01-601-30-99**
Issued to: **WORKPLACE SAFETY & INSURANCE BOARD, THE**

By: *AIG Insurance Company of Canada*

(g) arising out of, based upon or attributable to any **System Failure, Security Failure or Related Act** thereto which has been reported, or in any circumstances of which notice has been given, under any policy of which this **Network Interruption Coverage Section** is a renewal or replacement or which it may succeed in time.

5. In Clause 3. **EXCLUSIONS**, sub-paragraphs (i)(3) and (i)(5) are deleted in their entirety.

6. Clause 3. **EXCLUSIONS** is amended to include the following at the end thereof:

The **Insurer** shall not be liable to make any payment for **Loss**:

NI(a) arising out of, based upon or attributable to any:

(1) failure, interruption or outage of power, water, gas, telephone, electrical, mechanical, telecommunication or networking infrastructure not under the direct control of an **Insured**, including, without limitation, the failure of any public utility or internet services provider; or

(2) failure, interruption or outage of any satellite, securities exchange or market.

NI(b) for any: (1) contractual penalties or consequential damages; (2) updating, upgrading, enhancing or replacing any **Computer System** to a level beyond that which existed prior to sustaining **Loss**; or (3) removal of software program errors or vulnerabilities.

7. Clause 4. **LIMIT OF LIABILITY** is deleted in its entirety and replaced with the following:

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ENDORSEMENT# 14 (Continued)

This endorsement, effective **at 12:01AM July 01, 2025** forms a part of
Policy number: **01-601-30-99**
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By: *AIG Insurance Company of Canada*

4. LIMIT OF LIABILITY

The following provisions shall apply in addition to the provisions of Clause 4. **LIMIT OF LIABILITY** of the **General Terms and Conditions**:

Notwithstanding anything in the policy to the contrary:

- (a) the maximum liability of the **Insurer** for all **Loss** arising from all **System Failures** is the **System Failure Sublimit** set forth in the Endorsement Schedule above;
- (b) the maximum liability of the **Insurer** for all **Loss** arising from a **Security Failure** of the **Computer System** of an **IT Service Provider** is the **IT Service Provider Security Failure Sublimit** set forth in the Endorsement Schedule above;
- (c) the maximum liability of the **Insurer** for all **Loss** arising from a **Security Failure** of the **Computer System** of a **Non-IT Service Provider** is the **Non-IT Service Provider Security Failure Sublimit** set forth in the Endorsement Schedule above;
- (d) the maximum liability of the **Insurer** for all **Loss** arising from a **Security Failure** of the **Computer System** of an **Other Provider** is the **Other Provider Security Failure Sublimit** set forth in the Endorsement Schedule above;
- (e) the maximum liability of the **Insurer** for all **Loss** arising from a **System Failure** of the **Computer System** of an **IT Service Provider** is the **IT Service Provider System Failure Sublimit** set forth in the Endorsement Schedule above
- (f) the maximum liability of the **Insurer** for all **Loss** arising from a **System Failure** of

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ENDORSEMENT# 14 (Continued)

This endorsement, effective **at 12:01AM July 01, 2025** forms a part of
Policy number: **01-601-30-99**
Issued to: **WORKPLACE SAFETY & INSURANCE BOARD, THE**

By: *AIG Insurance Company of Canada*

the **Computer System** of a **Non-IT Service Provider** is the **Non-IT Service Provider System Failure Sublimit** set forth in the Endorsement Schedule above;

- (g) the maximum liability of the **Insurer** for all **Loss** arising from a **System Failure** of the **Computer System** of an **Other Provider** is the **Other Provider System Failure Sublimit** set forth in the Endorsement Schedule above; and
- (h) the maximum liability of the **Insurer** for all **Proof of Loss Preparation Costs** is the **Proof of Loss Preparation Costs Sublimit** set forth in the Endorsement Schedule above.

Each of the sublimits set forth herein is part of and not in addition to the **Limit of Liability** and the **Sublimit of Liability** for this **Coverage Section**.

- 8. Clause 6. **NOTICE** is amended by deleting the final sentence in its entirety and replacing it with the following:

Other than the express coverage provided herein for **Proof of Loss Preparation Costs**, all costs and expenses of establishing or proving **Loss** under this **Coverage Section** shall be the obligation of the **Insured** and not covered under this policy.

- 9. Clause 7. **NET PROFIT CALCULATIONS** is deleted in its entirety and replaced with the following:

7. NETWORK INTERRUPTION PROVISIONS AND CONDITIONS

- (a) Coverage provided under this **Coverage Section** shall not exceed the actual loss sustained by an **Insured**.

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END 014

ENDORSEMENT# 14 (Continued)

This endorsement, effective **at 12:01AM July 01, 2025**
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forms a part of

By: *AIG Insurance Company of Canada*

(b) When calculating **Business Income Loss**, due consideration shall be given to:

- (1) the experience of the business before the date of the **Material Interruption** and the probable experience thereafter during the **Period of Indemnity** had no **Material Interruption** occurred;
- (2) the continuation of only those necessary charges and expenses that would have existed had no **Material Interruption** occurred; and
- (3) **Business Income Loss** which is made up during the **Extended Period of Indemnity** (if any) or within a reasonable period of time (no less than one year) after the expiration of the **Period of Indemnity** and the **Extended Period of Indemnity** (if any).

(c) Each **Insured** agrees, as soon as practicable, to use overtime, extra time and any other resource owned or controlled by such **Insured**, or obtainable by such **Insured** from other sources (including any other **Insured**), in order to continue its business and reduce **Loss**.

(d) Each **Insured** must act with due diligence and dispatch to repair or restore the **Computer System** to the same or equivalent operating conditions that existed prior to the damage in order to continue its business and to reduce **Loss**.

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ENDORSEMENT# 14 (Continued)

This endorsement, effective **at 12:01AM July 01, 2025** forms a part of
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Issued to: **WORKPLACE SAFETY & INSURANCE BOARD, THE**

By: *AIG Insurance Company of Canada*

- (e) No **Loss** or part of **Loss** shall be paid hereunder to the extent an **Insured** has collected such **Loss** or part of **Loss** from an **Outsource Provider** or any other third party.

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.



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ENDORSEMENT# 15

This endorsement, effective at *12:01 am July 1, 2025* forms a part of
Policy number *01-601-30-99*
Issued to: *WORKPLACE SAFETY & INSURANCE BOARD, THE*

By: *AIG Insurance Company of Canada*
Product Name: *SPECIALTY RISK PROTECTOR*

REGULATORY ACTION DEFINITION CLARIFICATION ENDORSEMENT

This endorsement modifies insurance provided under the following:

**Specialty Risk Protector (Canada)
Security and Privacy Coverage Section**

In consideration of the premium charged, it is hereby understood and agreed that in Clause 2. **DEFINITIONS** of the **Security and Privacy Coverage Section**, paragraph (n), the definition of "**Regulatory Action**" shall also include, without limitation, a request for information, non-criminal investigative demand, non-criminal proceeding or other non-criminal process brought by or on behalf of the Privacy Commissioner of Canada or provincial or territorial privacy commissioner, or foreign equivalent, including requests for information related thereto.

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.



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ENDORSEMENT# 16

This endorsement, effective at *12:01 am July 1, 2025* forms a part of
Policy number *01-601-30-99*
Issued to: *WORKPLACE SAFETY & INSURANCE BOARD, THE*

By: *AIG Insurance Company of Canada*
Product Name: *SPECIALTY RISK PROTECTOR*

**LOSS DEFINITION AMENDED ENDORSEMENT
(FINES AND PENALTIES)**

This endorsement modifies insurance provided under the following:

**Specialty Risk Protector®
Security and Privacy Coverage Section**

In consideration of the premium charged, it is hereby understood and agreed that in Clause 2. **DEFINITIONS** of the **Security and Privacy Coverage Section**, subparagraph (2) of the definition of "**Loss**" is deleted in its entirety and replaced with the following:

- (2) civil fines or penalties imposed by a governmental agency and arising from a **Regulatory Action**, where insurable by the applicable law which most favors coverage for such fines or penalties;

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.



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ENDORSEMENT# 17

This endorsement, effective at *12:01 am July 1, 2025* forms a part of
Policy number *01-601-30-99*
Issued to: *WORKPLACE SAFETY & INSURANCE BOARD, THE*

By: *AIG Insurance Company of Canada*
Product Name: *SPECIALTY RISK PROTECTOR*

**UPDATE/UPGRADE EXCLUSION AMENDED ENDORSEMENT
(REPLACEMENT COST CARVEBACK)**

This endorsement amends the Network Interruption Coverage Section.

In consideration of the premium charged, it is hereby understood and agreed that, in Clause 3. **EXCLUSIONS** of the **Network Interruption Coverage Section**, subparagraph (i)(3) is deleted in its entirety and replaced with the following:

- (3) updating, upgrading, enhancing or replacing any component of the **Computer System** to a level beyond that which existed prior to sustaining **Loss**; provided, however, this exclusion shall not apply to the extent that a replacement of a component: (a) is necessary to prevent a repeat of the **Security Failure**; and (b) can only be reasonably replaced with an upgraded or enhanced component;

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.



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END 017

ENDORSEMENT# 18

This endorsement, effective at *12:01 am July 1, 2025* forms a part of
Policy number *01-601-30-99*
Issued to: *WORKPLACE SAFETY & INSURANCE BOARD, THE*

By: *AIG Insurance Company of Canada*

Product Name: *SPECIALTY RISK PROTECTOR*

**DEFENSE PROVISION AMENDED ENDORSEMENT
(AMEND COOPERATION CLAUSE - 50% OF LOSS)**

**This endorsement amends the SPL Coverage Section,
the Media Content Coverage Section
and the Security and Privacy Coverage Section.**

In consideration of the premium charged, it is hereby understood and agreed that in Clause 1. **INSURING AGREEMENTS** of each of the **SPL Coverage Section**, the **Media Content Coverage Section** and the **Security and Privacy Coverage Section**, paragraph (c) of the **DEFENSE** provision is deleted in its entirety and replaced with the following:

- (c) The **Insurer's** duty to defend ends if an **Insured** refuses to consent to a settlement that the **Insurer** recommends pursuant to the **SETTLEMENT** provision below and that the claimant will accept. As a consequence of such **Insured's** refusal, the **Insurer's** liability shall not exceed the amount for which the **Insurer** could have settled such **Claim** had such **Insured** consented, plus **Defense Costs** incurred prior to the date of such refusal, plus 50% of **Loss** incurred after the date of such refusal (including 50% of the **Defense Costs** incurred with the **Insurer's** prior written consent). This provision shall not apply to any settlement where the total incurred **Loss** does not exceed the applicable Retention amount.

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.



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END 018

ENDORSEMENT# 19

This endorsement, effective **at 12:01AM July 01, 2025**
Policy number: **01-601-30-99**
Issued to: **WORKPLACE SAFETY & INSURANCE BOARD, THE**

forms a part of

By: *AIG Insurance Company of Canada*

**TERRITORY RESTRICTION ENDORSEMENT
(ALL COVERAGE SECTIONS OTHER THAN SPL & CCP)**

It is hereby understood and agreed that each **Applicable Coverage Section** is amended as follows:

Notwithstanding anything to the contrary in this policy, or any appendix or endorsement added to this policy, there shall be no coverage afforded by any **Applicable Coverage Section** for any:

- i. entity organized or incorporated pursuant to local law in a **Specified Area**, or headquartered in a **Specified Area**;
- ii. part of any claim, action, suit or proceeding made, brought or maintained in a **Specified Area**, other than amounts incurred outside the **Specified Area** by a natural person outside the **Specified Area** to defend a claim, action, suit or proceeding made, brought or maintained in the **Specified Area**, but solely as those amounts are covered elsewhere in such **Applicable Coverage Section**; however, in connection with the payment of any such amounts, the insurer shall have no duty to defend or investigate such claim, action, suit or proceeding; or
- iii. loss of, theft of, damage to, loss of use of, encryption of, interruption to the operations or availability of, or destruction of any part of any property (tangible or intangible) located in a **Specified Area**, including, but not limited to, any computer system, data, digital assets, money or securities located in a **Specified Area**; however, nothing in this subparagraph shall limit the coverage afforded in connection with property which is in a **Specified Area** as a consequence of theft or misappropriation of such property from outside a **Specified Area**.

For purposes of this endorsement, "**Specified Area**" means:

- a. The Republic of Belarus; or
- b. The Russian Federation (as recognized by the United Nations) or their territories, including territorial waters, or protectorates where they have legal control; legal control shall mean where recognized by the United Nations.

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END 019

ENDORSEMENT# 19 (Continued)

This endorsement, effective **at 12:01AM July 01, 2025** forms a part of
Policy number: **01-601-30-99**
Issued to: **WORKPLACE SAFETY & INSURANCE BOARD, THE**

By: *AIG Insurance Company of Canada*

Where there is any conflict between the terms of this endorsement and the terms of the policy, the terms of this endorsement shall apply, subject at all times to the application of any Sanctions clause.

If any provision of this endorsement is or at any time becomes to any extent invalid, illegal or unenforceable under any enactment or rule of law, such provision will, to that extent, be deemed not to form part of this endorsement but the validity, legality and enforceability of the remainder of this endorsement will not be affected.

As used in this endorsement, **"Applicable Coverage Section"** means any purchased **Coverage Section** other than the **SPL Coverage Section** and **CCP Coverage Section**.

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.



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END 019

ENDORSEMENT# 20

This endorsement, effective at *12:01 am July 1, 2025* forms a part of
Policy number *01-601-30-99*
Issued to: *WORKPLACE SAFETY & INSURANCE BOARD, THE*

By: *AIG Insurance Company of Canada*
Product Name: *SPECIALTY RISK PROTECTOR*

LAW ENFORCEMENT COOPERATION ENDORSEMENT

This endorsement amends the General Terms and Conditions.

In consideration of the premium charged, it is hereby understood and agreed that the **General Terms and Conditions** are amended to include the following clause:

LAW ENFORCEMENT COOPERATION

A **Company** may receive a request from a law enforcement authority to keep confidential certain information about an actual or possible **First Party Event** or **Third Party Event** (including, without limitation, and **Security Failure** or **Privacy Event**). In such circumstances, a notice of such **First Party Event**, or of a **Claim** relating to or arising out of such **Third Party Event**, shall be considered timely under the policy if:

1. As soon as practicable after receipt such request, an officer or employee of the **Company** requests permission to share such information with the **Insurer**;
2. The **Company** only withholds from the **Insurer** that portion of the information that it has been instructed not to share with the **Insurer**; and
3. The **Company** provides full notice of such **Claim** or **First Party Event** to the **Insurer** as soon as legally permitted .

In addition, to the extent the procedure set forth above is followed in connection with an authorized law enforcement request, any failure or delay in providing information to the **Insurer** shall not be the basis for denial of coverage for a **Claim** or **First Party Event** under the policy on the basis of an **Insured's** failure to provide documentation and otherwise cooperate, as required by Paragraph 7(c) of the **General Terms and Conditions**.

Notwithstanding the above, no coverage shall be afforded for any **Claim** or **First Party Event** if the information withheld relating to such **First Party Event** or **Third Party Event** was: (i) known to the **Company** prior to the **Continuity Date**, or if no **Continuity Date** is specified, prior to the inception date of the first Specialty Risk Protector policy (or other policy providing substantively identical coverage) issued by the **Insurer** (or an insurance company affiliate of the **Insurer**) to the **Named Entity** and continually renewed by the **Insurer** (or an affiliate) until the inception date of this policy, and (ii) not disclosed in the **Application**.

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.



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END 020

ENDORSEMENT# 21

This endorsement, effective *12:01 am July 1, 2025* forms a part of
policy number *01-601-30-99*
issued to *WORKPLACE SAFETY & INSURANCE BOARD, THE*

by *AIG Insurance Company of Canada*

**SECURITY FAILURE DEFINITION AMENDATORY ENDORSEMENT
(PHYSICAL THEFT OF HARDWARE)**

This endorsement modifies insurance provided under the following:

**Specialty Risk Protector®
Security and Privacy Coverage Section**

In consideration of the premium charged, it is hereby understood and agreed that in Clause 2. **DEFINITIONS** of the **Security and Privacy Coverage Section**, paragraph (p), the definition of "**Security Failure**" is amended to include the following:

"**Security Failure**" also means the physical theft of hardware controlled by a **Company** (or components thereof) on which electronic data is stored, by a person other than an **Insured**, from a premises occupied and controlled by a **Company**, occurring on or after the **Retroactive Date** and prior to the end of the **Policy Period**.

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.



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END 021

ENDORSEMENT# 22

This endorsement, effective **at 12:01AM July 01, 2025**
Policy number: **01-601-30-99**
Issued to: **WORKPLACE SAFETY & INSURANCE BOARD, THE**

forms a part of

By: *AIG Insurance Company of Canada*

CYBEREDGE LOSS PREVENTION SERVICES ENDORSEMENT

In consideration of your purchase of this policy, it is hereby understood and agreed that the **Named Entity** is eligible to enroll for **Loss Prevention Services**. It is at the discretion of the **Named Entity** to enroll in the **Loss Preventions Services**, and such enrollment shall have no impact on the premium charged under this policy. The **Named Entity** can begin the enrollment process by visiting the following site: www.aig.com/cyberlosscontrol.

For purposes of this endorsement, "**Loss Prevention Services**" means cyber risk management tools and services made available to the **Named Entity** as further described at the link set forth above. The annual premium for this policy, as set forth in Item 3 of the Declarations, shall determine the tier of **Loss Prevention Services** in which the **Named Entity** is eligible to enroll.

Annual Premium	Tier of Loss Prevention Services
\$899 or less	Tier I
\$900 - \$4,999	Tier II
\$5,000 or greater	Tier III

The **Insurer** may modify (by adding, removing or replacing a tool or service) or discontinue the **Loss Prevention Services** at any time. The **Insurer** may partner with third party vendors to provide any or all of the **Loss Prevention Services** to the **Named Entity**.

The **Named Entity** is only eligible for **Loss Prevention Services** during the **Policy Period**.

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.



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END 022

ENDORSEMENT# 23

This endorsement, effective **at 12:01AM July 01, 2025**
Policy number: **01-601-30-99**
Issued to: **WORKPLACE SAFETY & INSURANCE BOARD, THE**

forms a part of

By: *AIG Insurance Company of Canada*

NOTICE PROVISION AMENDED ENDORSEMENT

This endorsement amends the General Terms and Conditions.

In consideration of the premium charged, it is hereby understood and agreed that paragraph (d) of Clause 6. **NOTICE** is amended to include the following at the end thereof:

In addition to the above, written notice may be given to the **Insurer** by completing and submitting the First Notice of Loss ("FNOL") form in the CyberEdge^(R) Communications Platform (powered by Cygnvs) available to the **Named Entity** at <https://cygnvs.net>.

Use of the above method of reporting is conditioned upon the **Named Entity** first being provisioned to the CyberEdge^(R) Communications Platform. If the **Named Entity** has not been provisioned to the CyberEdge^(R) Communications Platform already, they should contact CyberLossControl@aig.com for support or submit a request at cygnvs.info/aigriskservices.

The date of submission to the **Insurer** on CyberEdge^(R) Communications Platform shall constitute the date that such notice was given.

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.



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END 023

ENDORSEMENT# 24

This endorsement, effective **at 12:01AM July 01, 2025**
Policy number: **01-601-30-99**
Issued to: **WORKPLACE SAFETY & INSURANCE BOARD, THE**

forms a part of

By: *AIG Insurance Company of Canada*

COOPERATION CLAUSE AMENDED ENDORSEMENT (PERCENTAGE OF DEFENSE COSTS ONLY)

**This endorsement amends the Security and Privacy Coverage Section
and the Media Content Coverage Section.**

In consideration of the premium charged, it is hereby understood and agreed that in Clause 1. **INSURING AGREEMENTS** of the **Security and Privacy Coverage Section** and the **Media Content Coverage Section**, paragraph (c) of the section entitled "**DEFENSE**" is deleted in its entirety and replaced as follows:

- (c) The **Insurer's** duty to defend ends if an **Insured** refuses to consent to a settlement that the **Insurer** recommends pursuant to the **SETTLEMENT** provision below and that the claimant will accept. As a consequence of such **Insured's** refusal, the **Insurer's** liability shall not exceed the amount for which the **Insurer** could have settled such **Claim** had such **Insured** consented, plus **Defense Costs** incurred prior to the date of such refusal, plus **80%** of the **Defense Costs** incurred with the **Insurer's** prior written consent after the date of such refusal. This provision shall not apply to any settlement where the total incurred **Loss** does not exceed the applicable Retention amount.

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.



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END 024

ENDORSEMENT# 25

This endorsement, effective **at 12:01AM July 01, 2025**
Policy number: **01-601-30-99**
Issued to: **WORKPLACE SAFETY & INSURANCE BOARD, THE**

forms a part of

By: *AIG Insurance Company of Canada*

**LOSS DEFINITION AMENDED ENDORSEMENT
(INCURRED AND PAID WITHIN TWO YEARS OF DISCOVERY)**

This endorsement modifies insurance provided under the following:

**Specialty Risk Protector®
Event Management Coverage Section**

In consideration of the premium charged, it is hereby understood and agreed that in Clause 2. **DEFINITIONS** of the **Event Management Coverage Section**, the definition of “**Loss**” is amended by deleting the lead-in sentence in its entirety and replacing it with the following:

“**Loss**” means the following reasonable and necessary expenses and costs incurred and paid by an **Insured** within two (2) years of the discovery of the **Security Failure** or **Privacy Event**:

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.



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END 025

ENDORSEMENT# 26

This endorsement, effective **at 12:01AM July 01, 2025**
Policy number: **01-601-30-99**
Issued to: **WORKPLACE SAFETY & INSURANCE BOARD, THE**

forms a part of

By: *AIG Insurance Company of Canada*

STATUTORY CONDITIONS AMENDATORY

Wherever used in this endorsement: (1) "Insurer" means the insurance company which issued this policy; (2) "Policyholder" means the Named Corporation, Named Entity, Named Insured, Named Organization, Named Sponsor or Insured that is named on the declarations page of this policy; and (3) "Insured" means all other persons or entities afforded coverage under this policy.

In consideration of the premium charged, it is hereby understood and agreed that if this policy is made or deemed to be made in the provinces of Alberta, British Columbia, Manitoba, and Saskatchewan, pursuant to the provisions of the Insurance Acts of Alberta, British Columbia, Manitoba, and Saskatchewan, this endorsement shall apply to any Insured solely to the extent that this endorsement provides terms that are more favourable to the Insured than the other terms of this policy and any endorsements to this policy:

Change of Interest

The Insurer is liable for covered loss or damage occurring after an authorized assignment under the *Bankruptcy and Insolvency Act* (Canada) or a change of title by succession, by operation of law or by death.

Property of Others

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END 026

ENDORSEMENT# 26 (Continued)

This endorsement, effective ***at 12:01AM July 01, 2025*** forms a part of
Policy number: ***01-601-30-99***
Issued to: ***WORKPLACE SAFETY & INSURANCE BOARD, THE***

By: ***AIG Insurance Company of Canada***

The Insurer is not liable for loss or damage to property owned by a person other than the Insured unless:

- (a) otherwise specifically stated in the policy, or
- (b) the interest of the Insured in that property is stated in the policy.

Material Change in Risk

- (1) The Insured must promptly give notice in writing to the Insurer or its agent of a change that is:
 - (a) material to the risk, and
 - (b) within the control and knowledge of the Insured.
- (2) If an Insurer or its agent is not promptly notified of a change under subparagraph (1) of this condition, the policy is void as to the part affected by the change.
- (3) If an Insurer or its agent is notified of a change under subparagraph (1) of this condition, the Insurer may:
 - (a) terminate the policy in accordance with the Termination of Insurance condition set forth below, or

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END 026

ENDORSEMENT# 26 (Continued)

This endorsement, effective **at 12:01AM July 01, 2025**
Policy number: **01-601-30-99**
Issued to: **WORKPLACE SAFETY & INSURANCE BOARD, THE**

forms a part of

By: *AIG Insurance Company of Canada*

- (b) notify the Insured in writing that, if the Insured desires the policy to continue in force, the Insured must, within 15 days after receipt of the notice, pay to the Insurer an additional premium specified in the notice.
- (4) If the Insured fails to pay an additional premium when required to do so under subparagraph (3)(b) of this condition, the policy is terminated at that time and Termination of Insurance condition (2)(a) applies in respect of the unearned portion of the premium.

Termination of Insurance

- (1) The policy may be terminated:
 - (a) by the Insurer giving to the Policyholder 15 days' notice of termination by registered mail or 5 days' written notice of termination personally delivered, or
 - (b) by the Policyholder at any time on request.
- (2) If the policy is terminated by the Insurer:
 - (a) the Insurer must refund the excess of premium actually paid by the Policyholder over the prorated premium for the expired time, but in no event may the prorated premium for the expired time be less than any minimum retained premium specified in the policy, and

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END 026

ENDORSEMENT# 26 (Continued)

This endorsement, effective **at 12:01AM July 01, 2025**
Policy number: **01-601-30-99**
Issued to: **WORKPLACE SAFETY & INSURANCE BOARD, THE**

forms a part of

By: **AIG Insurance Company of Canada**

- (b) the refund must accompany the notice unless the premium is subject to adjustment or determination as to amount, in which case the refund must be made as soon as practicable.
- (3) If the policy is terminated by the Policyholder, the Insurer must refund as soon as practicable the excess of premium actually paid by the Insured over the short rate premium for the expired time specified in the policy, but in no event may the short rate premium for the expired time be less than any minimum retained premium specified in the policy.
- (4) The 15 day period referred to in subparagraph (1)(a) of this condition starts to run on the day the registered letter or notification of it is delivered to the Policyholder's postal address.

Notice

- (1) Written notice to the Insurer may be delivered at, or sent by registered mail to, the chief agency or head office of the Insurer in the province.
- (2) Written notice to the Insured may be personally delivered at, or sent by registered mail addressed to, the Insured's last known address as provided to the Insurer by the Insured.

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.



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END 026

ENDORSEMENT# 27

This endorsement, effective *12:01 am July 1, 2025*
policy number *01-601-30-99*
issued to *WORKPLACE SAFETY & INSURANCE BOARD, THE*

forms a part of

by *AIG Insurance Company of Canada*

FORMS INDEX ENDORSEMENT

The contents of the Policy is comprised of the following forms:

FORM NUMBER	EDITION DATE	FORM TITLE
101009 CAN	05/14	SRP DECLARATIONS (CANADA)
101013 CAN	05/14	SRP GENERAL TERMS AND CONDITIONS
101021 CAN	05/14	SRP NETWORK INTERRUPTION COVERAGE SECTION
115982 CAN	05/14	SRP REPUTATIONGUARD COVERAGE SECTION
101017 CAN	05/14	SRP CYBER EXTORTION COVERAGE SECTION
101019 CAN	05/14	SRP MEDIA CONTENT COVERAGE SECTION (CLAIMS MADE)
101024 CAN	05/14	SRP SECURITY AND PRIVACY COVERAGE SECTION
101018 CAN	05/14	SRP EVENT MANAGEMENT COVERAGE SECTION
125815 CAN	07/17	GENERAL TERMS AND CONDITIONS AMENDATORY ENDORSEMENT (CANADA)
151635 CAN	02/24	MODIFIED CYBER EXTORTION COVERAGE SECTION AMENDATORY ENDORSEMENT
125814 CAN	07/17	SECURITY AND PRIVACY COVERAGE SECTION AMENDATORY ENDORSEMENT
125816 CAN	07/17	EVENT MANAGEMENT COVERAGE SECTION AMENDATORY ENDORSEMENT
151409	12/23	WAR EXCLUSION AMENDED
105567	05/10	CRIMINAL REWARD COVERAGE EXTENSION
123622	03/17	CYBER EXTORTION COVERAGE ENHANCEMENT ENDORSEMENT (THREAT CONSULTANT BITCOIN RANSOMWARE)
128889 CAN	04/18	CONFIDENTIAL INFORMATION DEFINITION AMENDED ENDORSEMENT (SOCIAL INSURANCE NUMBERS, PIPEDA, GDPR)
105163	12/13	WRONGFUL COLLECTION COVERAGE ENDORSEMENT
142397	10/21	CYBEREDGE CYBER MEDIA ENDORSEMENT
125872	07/17	REPUTATION BASED INCOME LOSS COVERAGE ENDORSEMENT
126366	10/17	PROPERTY DAMAGE AND SECURITY FAILURE DEFINITION AMENDED (BRICKING)
122857	12/16	MODIFIED CYBER EXTORTION COVERAGE ENHANCEMENT ENDORSEMENT (ADD SCOPE TO DEFINITION OF LOSS)

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END 027

ENDORSEMENT# 27

This endorsement, effective *12:01 am July 1, 2025*
policy number *01-601-30-99*
issued to *WORKPLACE SAFETY & INSURANCE BOARD, THE*

forms a part of

by *AIG Insurance Company of Canada*

FORMS INDEX ENDORSEMENT

The contents of the Policy is comprised of the following forms:

FORM NUMBER	EDITION DATE	FORM TITLE
135500	02/20	NETWORK INTERRUPTION COVERAGE ENHANCEMENT SYSTEM FAILURE, OSP LIMITS, VOLUNTARY SHUTDOWN, PROOF OF LOSS COSTS
131235 CAN	12/18	REGULATORY ACTION DEFINITION CLARIFICATION ENDORSEMENT
131159	11/18	LOSS DEFINITION AMENDED ENDORSEMENT FINES AND PENALTIES
128890 CAN	04/18	UPDATE UPGRADE EXCLUSION AMENDED ENDORSEMENT (REPLACEMENT COST CARVEBACK)
119689	08/15	DEFENSE PROVISION AMENDED ENDORSEMENT (AMEND COOPERATION CLAUSE - 50 PERCENT OF LOSS)
143890	06/22	TERRITORY RESTRICTION ENDORSEMENT (ALL COVERAGE SECTIONS OTHER THAN SPL CCP)
123224	10/16	LAW ENFORCEMENT COOPERATION ENDORSEMENT
115989	12/13	SECURITY FAILURE DEFINITION AMENDATORY ENDORSEMENT (PHYSICAL THEFT OF HARDWARE)
153784	08/24	CYBEREDGE LOSS PREVENTION SERVICES ENDORSEMENT
147160	11/22	NOTICE PROVISION AMENDED ENDORSEMENT
122780	11/16	COOPERATION CLAUSE AMENDED ENDORSEMENT (PERCENTAGE OF DEFENSE COSTS ONLY)
155644 CAN	06/25	LOSS DEFINITION AMENDED ENDORSEMENT INCURRED AND PAID WITHIN TWO YEARS OF DISCOVERY
139855 CAN	12/20	STATUTORY CONDITIONS AMENDATORY
78859	10/01	FORMS INDEX ENDORSEMENT

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.



AUTHORIZED REPRESENTATIVE



**CUSTOMER ADVISORY
REGARDING THE ENFORCEMENT OF
ECONOMIC EMBARGOES AND TRADE SANCTIONS**

This Trade Sanction Advisory is part of **AIG Insurance Company of Canada** comprehensive compliance program and is meant to serve as a reminder of the existing applicable legal requirements with respect to Trade Sanctions.

Your rights as a policyholder and payments to you, any insured or claimant, for loss under this policy may be affected by the administration and enforcement of economic embargoes and trade sanctions applicable to you, any insured, claimant and/or to the insurer and their respective controlling entities (hereinafter "Trade Sanctions").

WHAT IS AN ECONOMIC EMBARGO AND/OR TRADE SANCTION?

Trade Sanctions involve the imposition by a country of legal measures to restrict or prohibit trade, services or other economic activity with a target country, entity or individual. For example, the Parliament of Canada has enacted legislation authorizing the imposition of Trade Sanctions through the *United Nations Act*, the *Special Economic Measures Act* and some provisions of the *Export and Import Permits Act*.

Depending upon the identity, domicile, place of incorporation or nationality of the policyholder, insured, claimant, insurer, or the parent company and ultimate controlling entity of the policyholder, insured, claimant or insurer, or the country where the claim arises, Trade Sanctions of foreign countries, including the United States of America, may be applicable. The application of sanctions could necessitate the seizure or freezing of property, including but not limited to the payment of a claim.

Existing Trade Sanctions can be amended, and new Trade Sanctions can be imposed, at any time.

OBLIGATIONS PLACED ON US AS A RESULT OF TRADE SANCTIONS

If we determine that you or any insured, additional insured, loss payee, or claimant are on a prohibited list or are connected to a sanctioned country, entity or individual, or a prohibited activity, as designated by the relevant Trade Sanction, we may be required to comply with the requirements of the applicable Trade Sanction, which by way of example, may include blocking or "freezing" property and payment of any funds and the reporting of such occurrences to the relevant authorities within the prescribed time periods, if any.

POTENTIAL ACTIONS BY US

Depending upon the requirements of the relevant Trade Sanction:

1. We may be required to immediately cancel your coverage effective on the day that we determine that we have transacted business with an individual or entity associated with your policy on a prohibited list or connected to a sanctioned country as described in the relevant Trade Sanction.
2. If we cancel your coverage, you may not receive a return premium unless permitted pursuant to the relevant Trade Sanction. All blocked or frozen funds will be placed in an interest bearing blocked account established on the books of a financial institution.
3. We may not pay a claim, accept premium or exchange monies or assets of any kind to or with individuals, entities or companies (including a bank) on a prohibited list or connected to, or carrying on business in, a sanctioned country as designated by the relevant Trade Sanction. Furthermore, we may not defend or provide any other benefits under your policy to individuals, entities or companies on a prohibited list or connected to, or carrying on business in, a sanctioned country as designated by the relevant Trade Sanction.